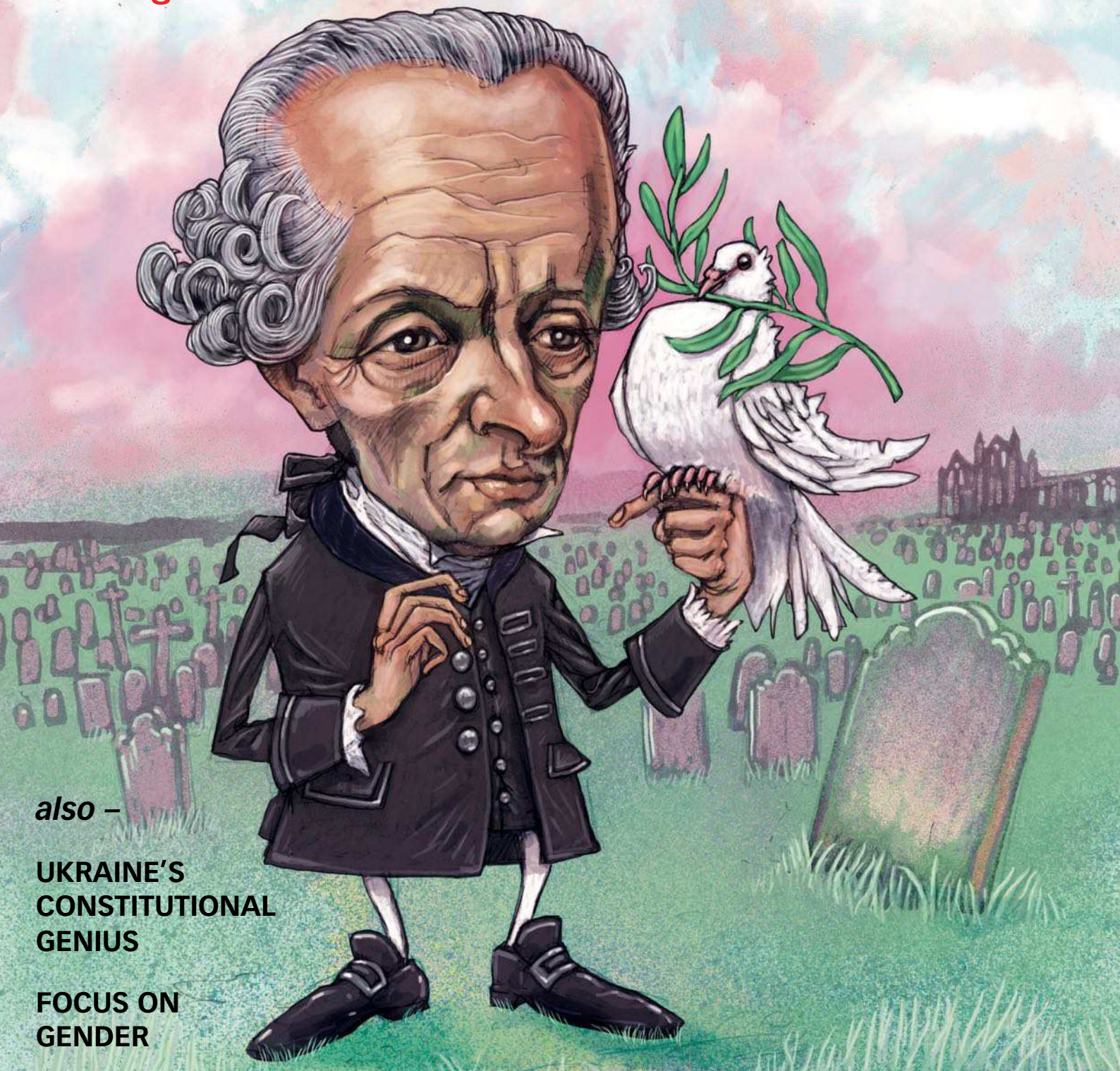
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a magazine of ideas



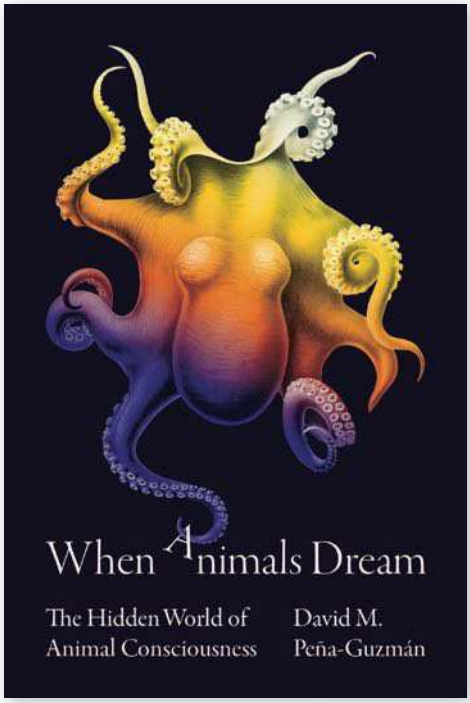
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UKRAINE'S CONSTITUTIONAL GENIUS

FOCUS ON GENDER

Immanuel Kant

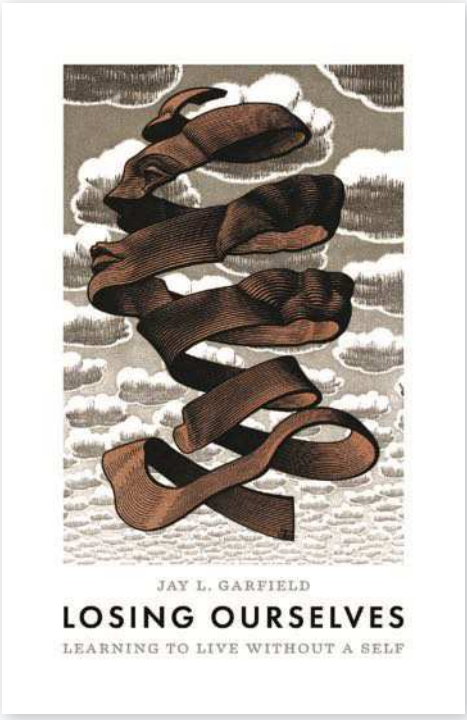
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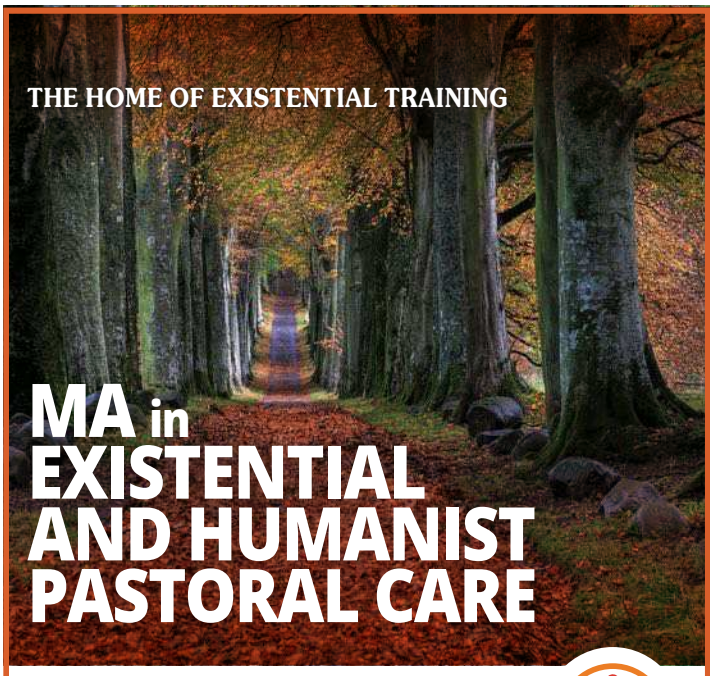


Why you don't have a self—and why that's a good thing

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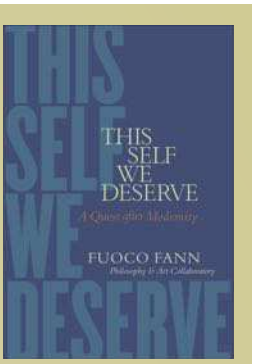
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We Are Stuck in the Present Knowledge



The voice in our head drones on and on. Knowledge is treated as a commodity. "I think" no longer affirms that "I am." We are stuck so we keep talking.

In *This Self We Deserve: A Quest after Modernity*, cultural theorist Fuoco B. Fann offers a fresh examination of the modern self today. Drawing from such thinkers as Michel Foucault, Jacques Derrida, Jean-François Lyotard, and Jean Baudrillard, Fann reflects anew on old philosophical questions. Who are we and what can we know? How did we get here and what can we do?

"Fann's take is one deeply entrenched in world history. To understand the present, he seems to assert, readers must first expand their scope; only then can they begin to investigate the past. A dense but worthwhile inquiry into the evolution of Western thought." *-Kirkus Reviews*

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The World in Kant's Head

> "Our age is the age of criticism, to which everything must submit. Religion through its holiness and legislation through its majesty commonly seek to exempt themselves from it. But in this way they excite a just suspicion against themselves, and cannot lay claim to that unfeigned respect that reason grants only to that which has been able to withstand its free and public examination."
>
> Immanuel Kant, *Critique of Pure Reason*, 1781

In many ways, Immanuel Kant was a man for our times. The bewigged eighteenth century thinker sat at home for years, reading and writing, taking a walk once a day, barely ever travelling more than a few miles from his home town, yet he tried to set down some universal truths about what we can know, what people are, and how we should all live. Innumerable people today, hunched in the glow of their computer screens, try to do all that on Twitter, but one difference is that Kant was extremely good at it. He dug deep – deeper than a mole in a coalmine – trying to tunnel under the barriers that the universe has erected to hide itself from our understanding. An indication of his success is that his ideas seem to become more, not less, relevant as the centuries go by.

Kant was born in the East Prussian city of Königsberg, and lived there all his life. He worked as a private tutor for years before finally, in middle age, gaining tenure as a lecturer at the university. He didn't even start publishing his best stuff until he was 57, which is a consolation to some of us, and after that the works just poured out of him. He had far too many ground-breaking ideas to discuss in a single article, or even in an entire themed number of *Philosophy Now*, which is why we are returning to him again in this issue.

One example of Kant's contemporary relevance is a very short essay he published in 1795 called *Perpetual Peace*. He started it with an anecdote about the origin of its title:

> "Whether this satirical inscription on a Dutch innkeeper's sign upon which a burial ground was painted had for its object mankind in general, or the rulers of states in particular, who are insatiable of war, or merely the philosophers who dream this sweet dream, it is not for us to decide."

Hence this issue's front cover by Steve Lillie showing Kant in a cemetery. Clearly Kant didn't agree that perpetual peace is only possible for the dead, as his essay puts forward a whole set of recommendations for avoiding future wars. It was a remarkable document for its time, and in some ways laid foundations for the liberal, internationalistic, rule-governed world order that has faced such a test over the last three months. And as Matt Qvortrup explains in his article, this wasn't Kant's only venture into political philosophy.

The other essays in our Kant special section deal with two of the main areas of his philosophy. First, in his *Critique of Pure Reason* (1781), Kant theorized that there are certain facts about the contents and structure of the inside of our heads that you can establish even *before* you whip out a scalpel or plug in some hi-tech medical scanner. For while Kant agrees with early modern empiricists like Hume that there could not be any knowledge without experience, he performs a 'Copernican Revolution' in that he argues that experience itself, and consequently the content of our knowledge, is shaped by the way our human minds work. In other words, the world we experience is always a human world. For more on this see the articles by Thomas Morrison and Joshua Mozersky.

That was pretty clever, but if anything he surpassed it a few years later with two books applying parallel methods to ethics. These were the *Groundwork for the Metaphysics of Morals* (1785) and the *Critique of Practical Reason* (1788), in which he develops the 'categorical imperative'. He defines this in several different ways, as you'll read in the articles by Matt McManus and Samantha Neave, but his basic conclusion is that we have a duty to act as if our actions are setting a standard for the whole world, and that we should therefore treat other people as ends in themselves, not merely as means to our own ends. Kant's duty-based system of ethics has been massively influential on subsequent moral philosophers, and is still, after over two centuries, one of the three main secular approaches to ethics, along with consequentialism and virtue ethics.

In recent years, one topic right at the centre of philosophy has been the nature of consciousness, and the question of how consciousness arises in what is presumably a physical universe of causes and effects. It seems surprising that Kant hasn't been invoked more often in those debates, given his careful investigation of how the human mind must be organised in order to make sense of the world. Maybe we'll hear more of this in the future, giving us cause to wonder anew at the amazing insight of the old guy with the grey wig.

This is our 150th issue of *Philosophy Now*. It is 31 years and one pandemic since it was launched, but our aims are unchanged – to entertain and inform; to open up the long and fascinating conversation of philosophy to all comers; to enable professional philosophers to engage with thinkers in other walks of life; and to share a few jokes with likeminded people. Thanks for supporting our efforts, and we hope you enjoy this issue.

Rick Lewis

Philosophy *Now*

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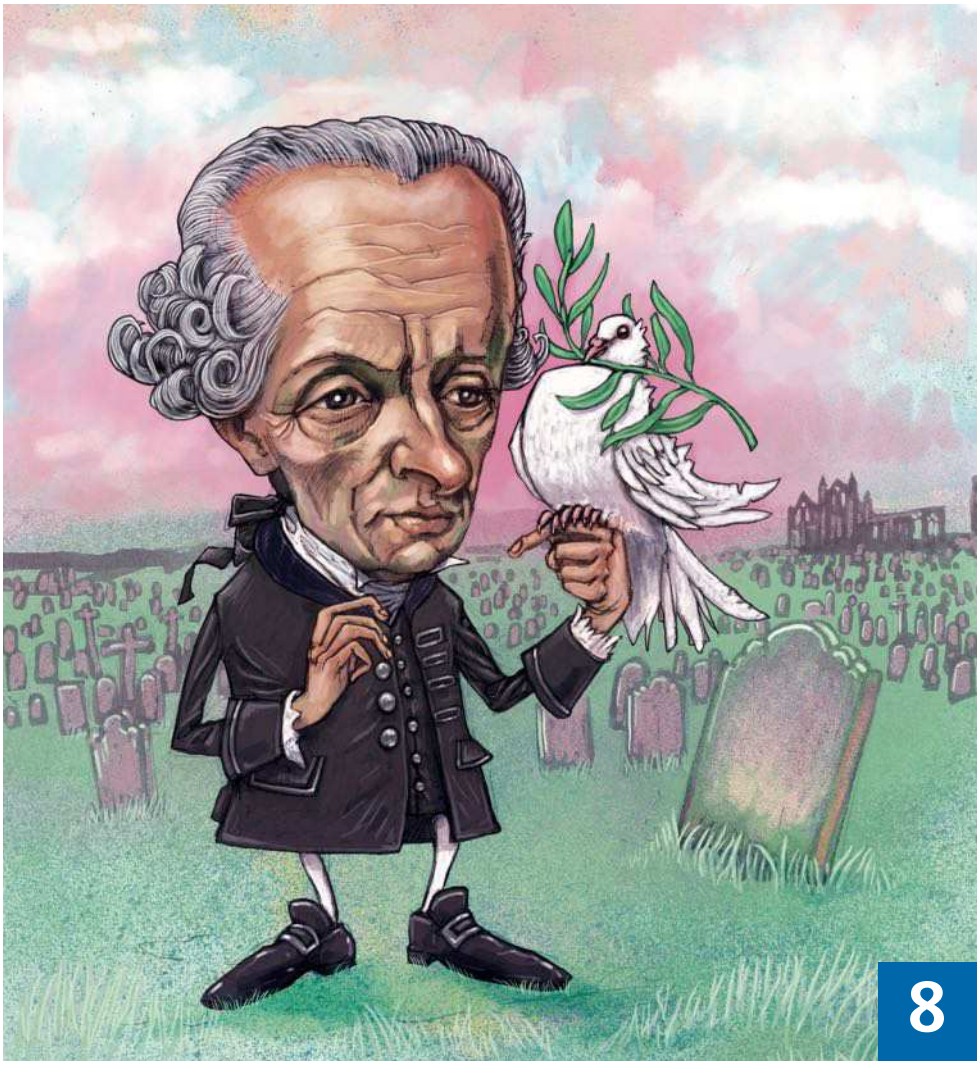
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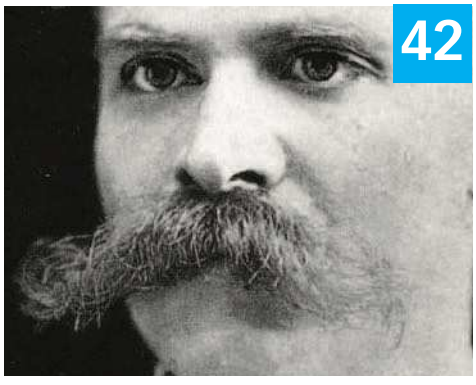
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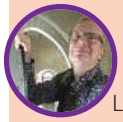
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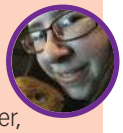
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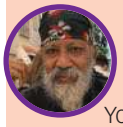
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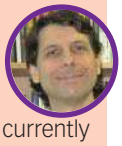
Stephen Lillie is a professional illustrator based in London. He's a compulsive mark-maker and enjoys letting the crazy creatures that rent space in his head run riot on the page. Or, in fact, on any piece of paper that's within reach. Despite working on literally hundreds of books and magazines, he still manages to find time for beer. When he's not working, he's usually playing chess, getting high on coffee, and testing out new pen-nibs.



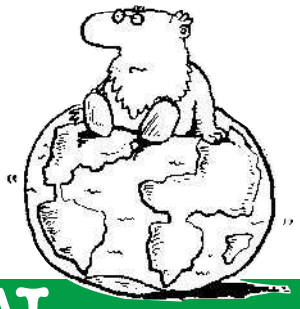
Samantha Neave is an animal lover from London. She especially loves her guinea pig, Amber, and Fly, the family collie. Recently graduated from the Open University, she's had poetry published in the *Cambridge News,* and is currently focused on her writing. She is thankful to Great Ormond Street Hospital for saving her life. Over the years she's enjoyed acting, from LAMDA exams to performing in plays.



Venantius J. Pinto a graduate of Pratt Institute living in New York, sees himself as an artistic labourer. Of Indian descent and Goan parentage, his paintings target meshings at the intersection of religion, philosophy and consciousness. He is a 7th Dan in shodō. Photo credit: Mo Riza.



Peter Stone is an associate professor in political science at Trinity College Dublin. He currently serves as Head of Department and as President of the Political Science Association of Ireland. A second edition of his book *Bertrand Russell: Public Intellectual* (co-edited by Tim Madigan) was published last year by Tiger Bark Press.



News

- Mendelssohn Dreams of Enlightenment
- Poll Says Public Want Vegan Cars
- Bertrand Russell Comes to Bloomsbury

News reports by Anja Steinbauer



Moses Mendelssohn (1729-1786)

Enlightenment Dreams: Moses Mendelssohn Exhibition

Enrolled to attend David Fränkel's Talmudic seminary, 14 year old Moses Mendelssohn arrived in Berlin in 1743 after a five day walk from his home in Dessau. His determination and enthusiasm for learning stood him in good stead: he grew up to be one of the greatest thinkers of the Enlightenment. *We Dreamed of Nothing but Enlightenment* is the name of a new exhibition devoted to him at the Jewish Museum in Berlin. The quote is taken from one of Mendelssohn's letters. Not only does the exhibition contain this and many other letters and manuscripts but also paintings and historical mementos such as Mendelssohn's reading glasses. The curators have tried to show how Mendelssohn's ideas are still relevant by including contemporary terminology within the explanations such as 'networks', 'supply chains', 'fake news' and 'information flood'. The exhibition runs until 11th September 2022. Fun fact: there's a tenuous connection between this news item and the theme of this issue. Immanuel Kant and Moses Mendelssohn entertained a long literary friendship. They had overlapping philosophical interests and corresponded extensively and enthusiastically. Kant praised Mendelssohn's book *Jerusalem*, which argues for freedom of conscience, calling it "an irrefutable book."

Moscow Philosopher

Alexander Zipko, an 80 year old philosopher from Moscow, recently published a biting critique of the current state of Russian intellectual life in the daily newspaper *Nezavisimaya Gazeta*. Under Mikhail Gorbachev, Zipko was one of the architects of Perestroika, the attempt to restructure the Communist USSR into a democratic society. After serving in the army, Zipko joined the Institute of Economics at the Russian Academy of Sciences, where he has worked since 1972. The author of more than a dozen books, he also taught in Japan and the US and believes that "the Russian people exist but the Russian nation doesn't." Criticising a dominant ideology that values "beautiful myths over reality" and idolises "suffering", Zipko sarcastically expresses the belief that the sense of value intrinsic to each human life has been lost in his culture.

Vegan Vehicles

Applied ethics in action? The Vegan Society (vegansociety.com) has published a poll showing, they say, that many British drivers would be keen to drive 'fully vegan' cars, demonstrating "a strong consumer desire to remove animals from car manufacturing." So your cat can no longer moonlight at the Toyota factory. 75% of the 750 people surveyed were in favour of no longer using any animal products in cars or other vehicles, 70% said they would actively be interested in buying a car free of animal products. Avoiding leather seats and steering-wheel covers is relatively easy. What is harder is that the manufacture of rubber for tires involves stearic acid derived from animal fats, and beef tallow is widely used as an industrial lubricant in the pressing of steel sheets for car bodies.

Bertrand Russell Branches Out

May 16th 2022 was Bertrand Russell's 150th birthday. Russell was among the foremost philosophers of the 20th century. His most famous work is the massive *Principia Mathematica*, written jointly Alfred North Whitehead in a valiant but unsuccessful attempt to provide a firm logical basis for mathematics. He was one of the founders of analytic philosophy and later wrote dozens of books on moral and political topics. Bertie himself is no longer around to celebrate birthdays (though he did live to be 97), but members of the Bertrand Russell Society carry on his legacy and discuss his writings through conferences and journals.They held a lively celebration, complete with birthday cake, in Rochester, NY – and this year a group of UK-based members met in London's Conway Hall to do the same. The latter gathering, organised by Tony Simpson and Alva White, was also the launch event for the new Bloomsbury Chapter of the Bertrand Russell Society.



Members of the newly-launched Bloomsbury Chapter of the Bertrand Russell Society, next to a bust of Russell outside Conway Hall, London.

Gernot Böhme

Gernot Böhme was one of Germany's best known public intellectuals. After studying mathematics, physics, and philosophy at Göttingen and Hamburg Universities, he worked as a research scientist at the Max-Planck-Institute with the physicist Carl Friedrich von Weizsäcker. From 1977, he taught philosophy at Darmstadt University. In 2012, he described his philosophical efforts over the last few decades as trying to "reclaim what is other to reason for human self understanding." By 'other to reason' he meant "nature, the body, the imagination, desires, emotions", aspects of our humanity which he believed to have been 'othered' and devalued. Böhme enjoyed collaborating on work with other thinkers in diverse areas. He died on 20 January 2022, at the age of 85.

Joseph Raz

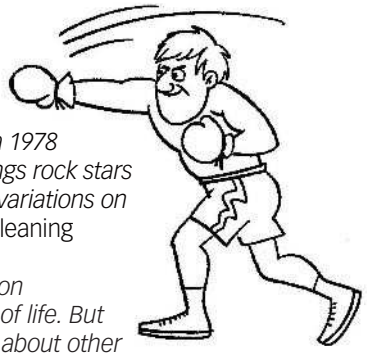
The legal and political philosopher Joseph Raz died in Charing Cross Hospital, London, on 2nd May. Born in 1939 in Haifa, Raz studied law at Hebrew University in Jerusalem. After meeting his future mentor H.L.A. Hart he transferred to Oxford University, where he took a DPhil in philosophy. He spent most of his life as a professor of philosophy of law at Oxford. Following Hart, Raz defended *legal positivism*, holding that there is no necessary connection between law and morality. Raz went a little further, claiming that the validity of a law never depends upon its morality. He also developed a conception of perfectionist liberalism, arguing that political institutions are justified to the degree that they support the ability of individuals to pursue their goals. Raz received many prizes for his writings, acknowledging the fact that he was one of the most influential theorists in his field.

Sir Alistair MacFarlane FRS

We recently heard the very sad news that a longtime *Philosophy Now* columnist died last November at the age of 90. Alistair MacFarlane started our Brief Lives column, each installment of which describes the life and ideas of a past thinker. It is still a regular feature today. Alistair was a Scottish engineer with wide-ranging intellectual interests who became a professor while teaching at UMIST. He had a glowing academic career, including being Principal and Vice Chancellor of Heriot-Watt University in Edinburgh, Rector of the University of the Highlands and Islands, and Vice-President of the Royal Society, Britain's national academy of science.

Philosophy Shorts

by **Matt Qvortrup**



'More songs about Buildings and Food' was the title of a 1978 album by the rock band Talking Heads*, about all the things rock stars normally* don't *sing about. Pop songs are usually about variations on the theme of love; a track like Van Morrison's 1976 hit* Cleaning Windows *is the odd one out.*

Philosophers, likewise, tend to have a narrow focus on epistemology, metaphysics and trifles like the meaning of life. But occasionally great minds stray from their turf and write about other matters, for example buildings (Martin Heidegger), food (Hobbes), tomato juice (Robert Nozick) and the weather (Lucretius and Aristotle) This series of Shorts *is about these unfamiliar themes; about the things philosophers also write about.*

Philosophers on Wine

"O my soul, to thy domain gave I all wisdom to drink, all new wines", wrote Friedrich Nietzsche in *Thus Spoke Zarathustra* (p.325). Philosophers are like the rest of us, and they too like the finer things in life. Wine is no exception. According to Immanuel Kant (1724-1804), "Sparkling wine from the Canaries is very agreeable" (*Critique of Judgement*, p.212). Perhaps too much so. According to his biographer, the Professor occasionally drank so much that he couldn't find his way home (*Kant: A Biography*, Manfred Kühn, 2001, p.129).

Many philosophers have written extensively on winebibbing. Plato (439-347 BCE) penned the dialogue *Symposium*, which translates as *Drinking Party*. He also mentioned booze several times in the *Republic* and was clear that we "are glad of any pretext of drinking… wine" (*Republic* 475b).

Søren Kierkegaard (1813-1855) devoted a whole treatise to the subject, in which he mused that "wine is a defence of the truth and the truth a defence of the wine" (*In Vino Veritas*, p.3). Maybe it was because of this insight that Kierkegaard Chardonnay, a white wine from California, was named after the otherwise austere Protestant philosopher. Other thinkers have had the same honour. Hegel is the name of a supposedly full-bodied and delicately fruity red wine bred in Weisberg in Germany. Unlike Kierkegaard, G.W.F. Hegel (1770-1831) did not write much about the subject, but he nevertheless liked a swig from time to time, and sent his wine merchant a request "for another bottle of Pontac, like the one you previously sent me" (Hegel to Ramann, 12 October 1802).

A lot has been written about the differences between British empiricists and their speculative colleagues on the European mainland. Yet, when the English philosopher John Locke (1632-1704) wrote his treatise *Observations Upon the Growth of Vines and Olives* (1679), he stayed at Château Haut-Brion – then known by the name of the proprietor, M. Pontac. Yes, the same man who produced Hegel's favourite drop. So, when it comes to the really important things, the differences were negligible,

Of course, there is a small problem with the drink of the gods: you might get sloshed. Aristotle (384-322 BCE) had an answer to this, proposing that 'Cabbage prevents drunkenness' (*Problemata* 873a-b). Getting hammered was not something that troubled St Thomas Aquinas (1225-1274): "Every sin has a corresponding contrary… thus timidity is opposed to daring… But no sin is opposite to drunkenness. Therefore, drunkenness is not a sin" (*Summa Theologica*, Q150). To this syllogism we can only respond with "Cheers!"

© PROF. MATT QVORTRUP 2022

Matt Qvortrup is Professor of Political Science at Coventry University.

Kant's Political Philosophy

Matt Qvortrup explains how the Enlightenment's leading philosopher went looking for a bit of peace.

The newspaper *Gothanische gelernte Zeitungen* was slightly sarcastic when it wrote about Immanuel Kant in 1784, "It is a favourite idea of Herr Professor Kant that the ultimate goal of the human race is the establishment of a perfect constitution." But in fairness, Kant did get rather carried away when he wrote about politics. "It is so sweet to dream up state constitutions that meet the demands of reason," he wrote almost wistfully (*Conflict of the Faculties*, 1794, p.159).

Immanuel Kant (1724-1804) was clearly obsessed with politics, especially in the later stage of his life. Yet for most students of philosophy he is not seen as a political philosopher. Hannah Arendt (1906-1975) was not alone in opining that, "Unlike so many other philosophers – Plato, Aristotle, Thomas [Aquinas], Spinoza, Hegel, and others – he never wrote a political philosophy" (*Lectures on Kant's Political Philosophy*, 1982, p.7). This assessment is not quite fair. In fact, Kant's books *The Metaphysics of Morals* (1797), *Towards Perpetual Peace* (1795), and the shorter essay *The Idea of Universal History* (1784) are all works of political theory. And elsewhere in his *Werke* there are references that are overtly political and some that certainly fall under the heading of social commentary. For starters, few philosophers have written more famous political lines than "It is the spirit of trade [*der Handelsgeist*], which cannot coexist with war, which will sooner or later take hold of every people" (*Towards Perpetual Peace*, p.65).

Even in his supposedly purely theoretical treatise the *Critique of Pure Reason* (1781) – a book on the limits of human knowledge – Kant made pronouncements on political philosophy. He also took a swipe at Plato (428-347 BC), whom he treated none too reverentially: "The Platonic Republic, as a supposedly striking example of dreamy perfection…can only have its seat in the brain of the idle thinker." He added polemically that "it was ridiculous that the philosopher claims that a prince would never rule well if he did not partake of ideas" (*Critique of Pure Reason*, B373).

Instead of Plato's totalitarian utopia, Kant proposed a liberal alternative, namely, "a constitution of the greatest human freedom according to laws which ensure that each freedom can coexist with the other" (374B). Yes, it was Kant not John Stuart Mill (1806-1873) who first formulated the concept of the purpose of laws being to maximise individual freedom, although the British philosopher was onto the same idea. As Mill wrote, "The only purpose for which power can be rightfully exercised over any member of a civilized community, against his will, is to prevent harm to others" (*On Liberty*, 1859, p.15).

Politicians and others in power have always been purveyors of 'fake news' and 'alternative facts'. For Kant, the aim of philosophy was to counter this. As he set out in the Preface to his *Critique of Pure Reason*, it is "the first and most important concern of philosophy, once and for all, to avoid any adverse influence by blocking the source of errors" (XXVII). Or writing on the Enlightenment – when people 'dared to follow reason' – he says that everything ought to be liable to a rational debate (*What is Enlightenment?*, 1784, p.17). The cultural situation changed when philosophy started to become critical after the Renaissance. When "religion and… legislation… seek to except themselves from [criticism]… they awaken suspicion and cannot claim the sincere respect which reason accords to that which has been able to sustain the test of free and open examination" (*CPR*, XXVII). As this shows, Kant's aim in his first *Critique* was not merely epistemological, or even philosophical, but aimed at "the arrogant pretensions of the schools" and against those "who claim to be the sole possessors of truth." (XXXII).

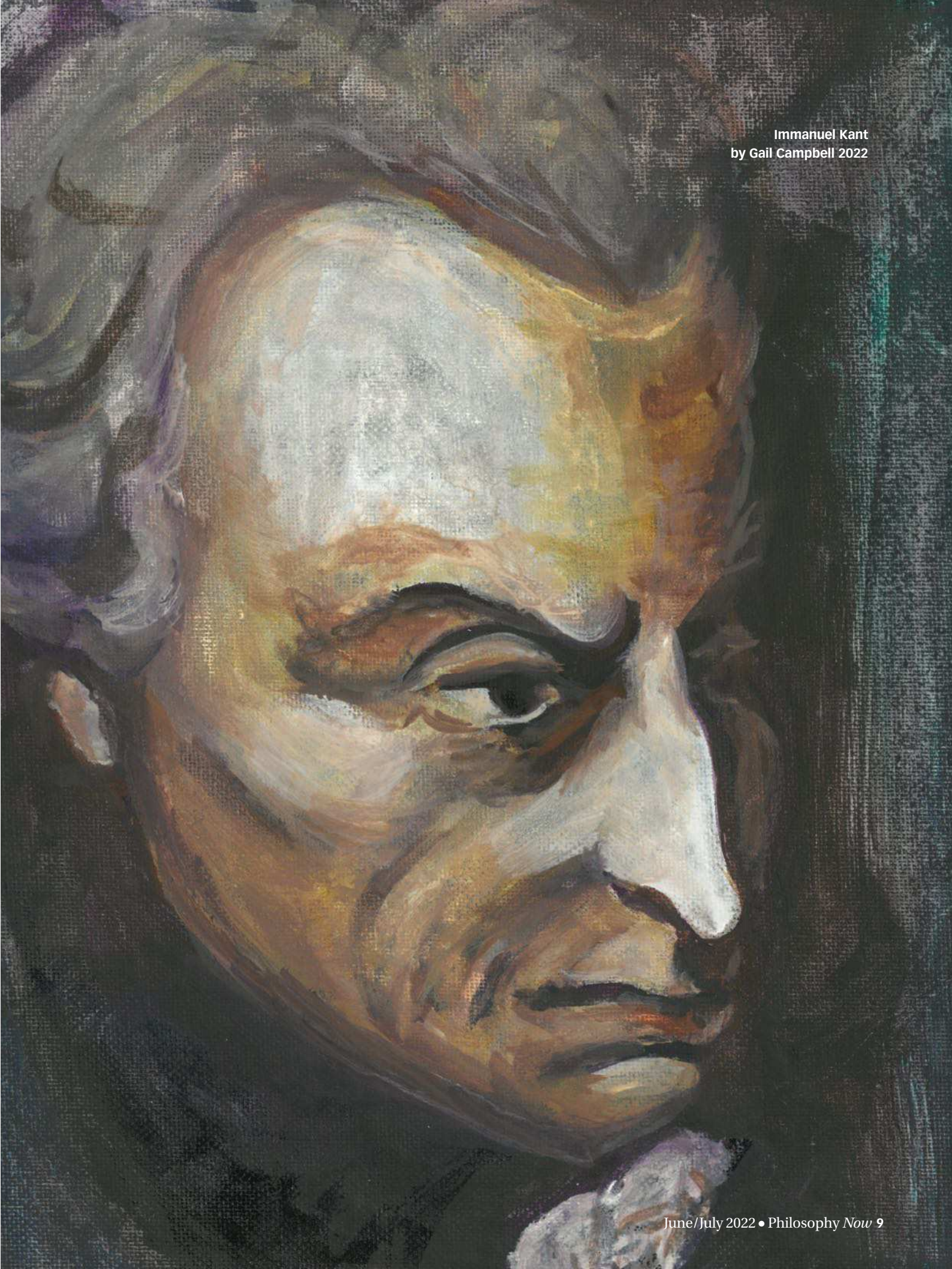
Practical Problems & Transcendental Truths

Certainly Kant was a theoretical philosopher, but his three fundamental questions posed towards the end of the *Critique of Pure Reason* (B833) – "What can I know? How ought I to act? And what may I hope for?" – were all practical problems.

In his three *Critiques – of Pure Reason* (1781), *of Practical Reason* (1786), and *of Judgement* (1790) – he set out so-called 'transcendental' conditions for answering these questions. By 'transcendental' Kant means an enquiry into the conditions necessary for any possibility of an answer.

He started with epistemology, the philosophy of what we can know, and concluded that, among many other things, we can only observe the world in terms of time and space (*CPR*, p.71). Unless we had mental categories of 'space' and 'time' we'd have no possibility of making sense of our environment at all. In the *Critique of Practical Reason* he used similar 'transcendental' thinking to ask when and under which conditions we can say that something is morally right. His conclusion was that we can only determine if something is morally desirable if we compare it with what we consider to be good. But being fundamental, 'the good' cannot itself be dependent upon something else. For instance, a purely ethical system must not promise rewards (*Belohnungen*): "it cannot set out as if to offer to bribe men to pursue a good course of life", as Kant wrote in a essay from 1794, *The End of All Things* (p.521). Such a system would be based on a 'hypothetical imperative', which is "a possible action as a means to achieving something" (*Metaphysics of Morals*, 1797, p.4). Whether this motivation is rewards in the ever-after or riches in this life, the motive is selfishness, not goodness itself, and so cannot be the basis of ethics.

This is important to point out, especially as some modern philosophers who claim to be Kantians are at odds with him on



Immanuel Kant
by Gail Campbell 2022

this. The American philosopher John Rawls (1921-2002) is often cited as a Kantian because in his famous book *A Theory of Justice* (1971) he asked that people compared their actions with a set of ethical principles. But the principles he came up with were not, like Kant's, based on purely moral ideals, but on self-interest. Rawls asked the reader which social ideals they would come up with if they were behind a 'veil of ignorance': What sort of society would you choose if you did not know whether within that society you're going to be rich or poor, black, or white, etc? Rawls argued that from this 'Original Position', individuals would agree that "those who are at the same level of talent and ability… should have the same prospects of success regardless of their initial place in the social system" (*A Theory of Justice*, p.63). However, these and other Rawlsian principles were explicitly based on what Kant called 'hypothetical' statements. You would choose based on a your realisation that you might be poor, for instance. For Kant, in contrast, ethical rules are 'categorical', not 'hypothetical'. This means, how I ought to act must "represent an action as objectively necessary by itself, without reference to another end" (*Groundwork of the Metaphysics of Morals*, 1785, p.52). He argues that the only principle which meets this requirement is his famous Categorical Imperative, which tells you to "act as if the maxim of your action were to become by your will a universal law of nature."

In the *Metaphysics of Morals* which he built upon this *Groundwork*, Kant set out to apply the Categorical Imperative both to moral decisions in the private sphere – for example, between parents and children – and to decisions made by society as a whole. As a philosopher who lived under a (supposedly Enlightened) monarch, Kant was brave enough to argue for checks and balances, and the then-novel view that 'the legislator cannot be the ruler'. He even went as far as arguing for the principle that "the people judge themselves through freely elected representatives" (*Metaphysics of Morals*, A171).

Laws & Peace

Yet Kant was not merely a philosopher who wrote about what the world ought to be. He was also interested in how we see the present world. In modern parlance, he was a political scientist as well as a political theorist. So not only did he pen dense treatises on theoretical subjects, he was also a public intellectual, who uttered his opinion in an absolutist Prussian state where it took courage to speak your mind.



The *Critique of Judgement* (*Kritik der Urteilskraft*) is often seen as Kant's contribution to the philosophy of art. With its perceptive analyses of both the sublime and the ridiculous (it even has a section on the philosophy of laughter) it is that, too. But Kant understood 'aesthetics' in the original Greek meaning of the word, as 'perception', and the book is more about how we perceive and then make judgements about the world than about beauty. And as he put it in an earlier *Critique*, "judgment is the ability to subsume under rules, i.e. to distinguish whether or not something is subject to a given rule" (*Critique of Pure Reason*, B172). The core tenet of the *Critique of Judgement* was that whenever we experience we are "compelled to ascend from the particular to the universal" (p.15). As Kant grew older, he added to his transcendental prerequisites to thought the idea that we have an inbuilt tendency to see the 'purposiveness of nature' (p.27). So we seek for causes and effects, and, rising, we try to see ultimate goals. But even here Kant could not contain himself, or conceal his near obsession with political institutions. Hence he concludes that "the final end of creation is such a constitution… as harmonizes with what we can only definitely specify according to laws, namely the practical reason" (p.282).

Kant was someone who made a habit of looking for laws of nature, including the laws of society. In some ways he was a bit of a positivist, in that he applied natural science methods even to non-physical domains: "the relevant statistics compiled annually in large countries demonstrate that the events that occur [in society] are just as much in accordance with constant laws as… the weather" (*The Idea of Universal History from a Cosmopolitan Perspective*, p.385, 1784).

One of the social 'laws' he discovered was that of 'the democratic peace'. This law is often shortened to the proposition that 'democracies do not wage war against one another'. But that is not exactly what he wrote. Rather his contention was more radical. His view was that,

> "If the consent of the citizens is required in order to decide that war should be declared (and in this [perfect democratic] constitution it cannot but be the case), nothing is more natural than that they would be very cautious in commencing such a poor game, decreeing for themselves all the calamities of war"
> (*Towards Perpetual Peace: A Philosophical Sketch*, p.75).

There are few examples of countries that have allowed its citizens to vote on war and peace (certainly not modern-day Russia). But the two referendums in Australia on conscription during the First World War proves him right. The voters twice said no to being cannon-fodder on the fields of Flanders.

Selfishness & Sociability

Although Kant was inspired by Jean-Jacques Rousseau (1712-1778), he disagreed with him on fundamental points. That Genevan *philosophe* idealized the 'noble savage' and lamented so-called *amour propre* – 'self-love', that is, selfishness. Kant, by contrast, made 'vanity' (as *amour propre* can also be translated) into



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the engine of human progress. History, he held, was driven by human beings' "insatiable appetite for property and even power." Our species shares elements both of Aristotle's *zoon politicon* ('political animal') and Adam Smith's *Homo oeconomicus* ('economic man'). For this reason, men and women seek to "establish a position for themselves among their fellows, whom they can neither endure nor do without" (*Universal History*, p.394).

The idea of self-love as a political driving force was one Kant held throughout his life. Thus, it was Kant, not Adam Smith, who first wrote that humans

> "have their best loved selves fixed before their eyes as their only point of reference for their exertions and seek to turn everything around self-interest… Nothing can be more advantageous than this, for these are the most diligent, orderly, and prudent; they give support and solidity to the whole while without intending to do so they serve the common good."
> (*Observations on the Feeling of the Beautiful and the Sublime*, p.46, 1764)

As he matured, these ideas were incorporated into his larger system. In *Universal History* (1784) he went on, "without these characteristics of unsociability which are indeed quite unattractive in themselves… human beings would live the arcadian life of shepherds, in full harmony, contentment, and mutual love" (p.394); for, "all the culture and art that decorates humankind, as well as its most pleasing order, are fruits of an unsociability that is forced by its own nature to discipline itself, and thereby fully develop the seeds of that nature." Kant – who declined an offer to become a professor of poetry – was poetical when he summed up this belief: "…just as trees in a forest, precisely by seeking to take air and light from all others around them and thus to grow up straight and beautiful while those that live apart from others and sprout their branches freely grow stunted, crooked, and bent" (p.396).

However, the competitive spirit must be kept in check, and not only by the more elaborate version of the Categorical Imperative – that you must always "Act in such a way that you treat humanity, whether in your own person or in the person of any other, never merely as a means to an end, but always at the same time as an end" (*Groundwork*, p.36). This is not enough to keep the 'unsocial sociability' in check. The system that would best allow human progress would be "realised in a society that possesses the greatest degree of freedom" – that is, "one in which its members continually struggle with each other and yet in which the limits of this freedom are specified and secured in the exact manner"; in other words, in "a just civil constitution" (*Universal History*, p.395). Such a legal framework could not, Kant bravely contented, be one with an absolutist monarch or a single ruler, "for such a person will always abuse his freedom if he has no one above him" (*Toward Perpetual Peace*, p.12). Rather, Kant fundamentally believed that a political constitution should be founded upon the will of the people. In language that was nothing short of revolutionary for a man who lived in an absolute monarchy, he declared that a "Republican constitution is… the only kind that follows from the idea of an original contract, upon which all laws legislated by a people must be based" (p.75). Based on these ideas he could formulate a good constitution, which would utilise "the mechanisms of nature on human beings in order to direct conflict between their hostile intentions… in such as way that they compel each other to submit themselves to coercive laws" (p.59). Yet as much as he believed that history was progressing, Kant was not a utopian. He freely admitted that it was impossible to create the perfect society. Or in perhaps his most famous phrase, "nothing straight can be fashioned out of the crooked timber of humanity" (*Universal History*, p.398).

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In Search of an Ethical Roadmap

Samantha Neave explores how to be a good person, with the help of Immanuel Kant and the Tooth Fairy.

Last night I dreamt I promised my niece a ride on a skipping giraffe. Sadly, when it came to the crunch, my car broke down half way round the safari due to some gorillas landing on the bonnet, breaking off both wing mirrors and generally getting in the way of Poppy opening the door and making a break for the giraffe enclosure. (Plus I had the child lock on.) So, upon our return, she demanded sweets as compensation for her ruined trip. I told her too many sweets would rot her teeth and they'd all fall out. When she started crying, I tried consoling her that that would mean a lot of money from the Tooth Fairy – but to no avail. Then one of her wobbly teeth actually dropped out while she was eating dinner, and she asked me if the Tooth Fairy deals in Bitcoins instead of leaving a measly pound coin? I told her the Tooth Fairy died suddenly and unexpectedly half an hour ago. She ran screaming to her mum. Shortly after, I was informed that I am 'a terrible person'.

When I awoke from my nightmare, those words echoed in my head and got me thinking... *why*? Was it one word, one action, or more that led to that judgement? Is being a terrible person a life sentence? And is telling a little girl that the Tooth Fairy needs a new tomb stone necessarily a heinous act? More to the point – what is a good person? Are good people composed of morally good intentions, or actions? If so, I would like to know. It might give me a kind of ethical roadmap to follow.

So let me take you on a thought experiment. Imagine that, despite my dream, the Tooth Fairy is alive and kicking. Every

night, she dives into peoples' houses, darting in through open windows and slickly avoiding burglar alarms, diving under pillows collecting teeth and replacing them with hard cash. One night, the Tooth Fairy encounters a Fairy Blaster set up in a child's bedroom. This Fairy Blaster was created by an evil child genius to blow any Tooth Fairy into smithereens. But when the Tooth Fairy triggers the device, instead of obliterating her, it malfunctions, and instead transforms her into four different fairies, who now inhabit parallel dimensions.

Our original Tooth Fairy is a good-natured soul, and when she visits her next client, she decides to fix his teeth as opposed to just taking one of them. She carefully prises open his mouth and sprinkles fairy dust. All his teeth instantly become strong and healthy. The once missing or broken teeth are as good as new.

Meanwhile, in the first parallel dimension, our Tooth Fairy's twin has the very same intention. She visits the same child, carefully prising open his mouth and taking the fairy dust in one hand to sprinkle over his teeth. Unfortunately, this Tooth Fairy develops a sudden reaction to her own fairy dust, and sneezes into the child's mouth instead, breaking every single one of his teeth. She makes a hasty exit, sneezing all the way.

In the second parallel dimension, the third Tooth Fairy has no inclination to fix the child's teeth. She is a mean-spirited fairy, bent on breaking his teeth for no reason other than it would give her pleasure. She prises open the child's mouth, but just as she is about to run riot in there, breaking every single tooth, she seizes up with cramp. In pain, she accidentally drops the fairy dust in, sprinkling his teeth and making them strong and healthy. The child wakes a few seconds later, roused by the Tooth Fairy's cries of pain, and she flees before he can see her.

The fourth Tooth Fairy, in the third parallel dimension, is also mean-spirited and wants to hurt the child. (I'm not sure where fairies Three and Four graduated from, but it wasn't the *official* School of Tooth Fairies.) She prises open his mouth, smashes around in there until his teeth are in bad shape, and cackles maniacally as she leaves. When the child wakes, he finds the fairy dust left on his bedside cabinet as a calling card, and his parents immediately summon the relevant authorities to report the crime.

Intention & Action

Now let me summarise the different scenarios in terms of moral intent and action:

Tooth Fairy One has good intentions and enacts a good deed.
Tooth Fairy Two has good intentions but enacts a bad deed.
Tooth Fairy Three has bad intentions but enacts a good deed.
Tooth Fairy Four has bad intentions and enacts a bad deed.

So, which of these Tooth Fairies is a *good* fairy? Does their goodness come down to their intentions, to their actions, or both?

It's fairly easy to distinguish between a morally good and morally bad Tooth Fairy if she intends to fix your teeth and does so, or intends to break your teeth and does so. Both intention and action are good in the first instance, and bad in the second, so the Tooth Fairy is clearly morally good in the first, and morally bad in the second. Since the Tooth Fairy is good or bad in both intention and action in these cases, there seems no need to differentiate between intention and action here – they both denote the same moral stance. However, where intention and action are on different sides of the moral coin, this requires us to decide which is key to moral character: intention or action? So we will concentrate on Fairies Two and Three to help us decide what makes a morally good person.

By intending to heal the child's mouth, Fairy Two displays good intentions; but these are all only within her own mind. Those good intentions don't translate into good actions – and the child won't even know that his teeth were meant to be fixed and not broken. If we asked the child to judge the Tooth Fairy by her actions, he'd probably say she's bad simply because all he can see is a bad result. By contrast, the third child might think that Fairy Three is good just because her actions had a good outcome. The fact that the fairy intended to break all his teeth might seem irrelevant to the child as long as the outcome was good. On the other hand, if the child could see into Fairy Three's rather shady heart, he would *know* that her intentions are bad. This telepathic child could see that Fairy Two's intentions are good in contrast, and so be able to compare the two fairies' intentions. But does that mean that a good person is someone with good intentions, regardless of whether they are fulfilled? Or is a good person instead someone who carries out good actions, regardless of their intention?

Kant's Moral Thoughts

A person's intentions are intrinsic to their thoughts, and their thoughts are the basis of their habits, which in turn form character, which leads to thoughts... This means that a person's intentions are inextricably linked to character. So, upon first examination, it seems as if a good person must be someone whose character is composed of habitual good intentions. Moreover, the nature of intentions contrasts with that of actions, which are a consequence of thoughts. A person's thoughts *lead* to actions, and the two are quite different, meaning that actions are a *result* of character, not part of it. It's true that our actions can also *influence* our thoughts, leading to different thoughts and intentions, and causing character development. But even with this being the case, intention is grounded in character, whereas action is a separate entity. So, intentions appear at first glance to be the key to grasping someone's moral character.

Immanuel Kant agreed about prioritising intentions over actions in ethics. Kant was a *deontologist*, meaning that he thought moral actions are those performed from duties. In this type of duty-based ethics, your motives for what you do count rather than the consequences of your actions. Kant makes clear at the beginning of his revolutionary work *Groundwork for the Metaphysics of Morals* (1785) that he thinks a 'good will' – the intention to do good – stands apart from other character traits in being *unconditionally* good. Other characteristics, such as courage and wit, can be used for bad purposes – such as stealing from old age pensioners or insulting them – whereas good will can by definition never be bad. Other character traits rely upon it for them to be turned to good. He also claims that a good will is of 'absolute worth', just because its value is not contingent upon the outcome.

So my thinking that good intention rather than the results of action is pivotal to moral worth seems to be in line with Kant's moral theory. However, Kant's ethics specifically hinges upon acting from duty, out of respect to the Moral Law, or 'the supreme

principle of morality', which he calls 'the Categorical Imperative'. An *imperative* is a command which tells you how to act, and it is *categorical* if this command is irrespective of your own desires, or indeed, anything else. The categorical imperative takes five forms in the *Groundwork for the Metaphysics of Morals*. One is the *universalizability principle*. Kant says, "I ought never to proceed except in such a way *that I could also will that my maxim become a universal law*." This means that we should act only in such a manner that would logically hold up if everyone behaved that way. Another is the *formula of humanity*: in Kant's words, "Act in such a way that you treat humanity, whether in your own person or anyone else's, never merely as a means, but also always as an end." In other words we should treat people as if they have intrinsic worth, as opposed to just using them for what they can give us.

Kant and I both think that intention is more important than action when it comes to ethics. However, I believe that intention is part of character, whereas Kant excludes qualities of character (courage, wit, etc) from being good in themselves; to be good, these characteristics rely upon being coupled with a good will. Kant dismisses inclinations and desires as a basis for moral worth since he believes our intentions should be *from duty*, regardless of our desires. So, the source of our ethics differs. Kant thinks that the requirement for moral worth is the good will intending 'the supreme principle of morality' in the form of the categorical imperative, whereas I think that moral worth can be derived from a person's good intentions, instead of them needing to dutifully abide by certain rules to qualify as morally worthy.

Intention & Effort

In any case, judging moral worth by a person's intentions alone could have its pitfalls. What if you intend to help somebody, but get distracted and forget? How much is your intention worth now, if you aren't following it up with action?

To illustrate this point, let's just suppose that the Tooth Fairy, pre- her Fairy Blaster encounter, is scouting a different neighbourhood for potential clients. As she's flying around investigating the area, a rival gang of fairies stops her in her tracks. Their leader brandishes his wand and informs her that she's on their turf. The Tooth Fairy ignores him and continues flying to the next house. She quickly buzzes through the cat flap and ascends the stairs. But the rival gang is incensed and they pursue her rapidly. By the time she's on the top floor landing they've caught up with her.

Suddenly, the bathroom door opens and a man walks out. He's startled to see the fairies, who look pretty much like wasps to him, and he almost swats the Tooth Fairy in fright until she shouts "Please help me!" into his ear as she flies to his side for protection. He recognises her as the legendary flying dental merchant, quickly assesses the situation, and picks up the nearest thing to hand, which is a bottle of air freshener. He wants to help the Tooth Fairy, and so points the air freshener towards the rival gang as they fly towards her. However, simultaneously, his wife calls out to him from their bedroom, notifying him that his tea is getting cold. In three more parallel universes, the man:

A) Wanders into the bedroom, meaning to come back when he's drunk his tea. Upon his return, he is too late to save the Tooth Fairy.

B) Tries to spray the rival gang of fairies, who sneakily hold their breath and keep on coming. The man swats and grasps them, but they bite him, so he instinctively lets go. The Tooth Fairy doesn't make it out of the house alive. And

C) Tries to spray the rival gang of fairies, but they keep coming as they hold their breath. So the man cups the Tooth Fairy in his hands and backs into the bathroom, turning on a nearby extractor fan, which sucks out the other fairies. Once they're gone, he switches it off and releases the Tooth Fairy, who sprinkles him with Fairy Dust in gratitude.

In which scenario(s) is the man a good person?

This thought experiment has a different focus from our first. Here, we're not just comparing intention and successful or unsuccessful action in deciding how to define moral worth. Now we're also highlighting a facet of action – the effort made. I think effort is key to answering the question of whether intention has worth if the ensuing action never comes. Without investing effort into backing up our good intentions, how substantial are these intentions? They may be good, but for how long; for an instant – until you get distracted and do something you consider more important? In which case, how much did you *really* care about your initial intended course of action?

In the first scenario, the man may initially mean well, but he's not committed to following through on his intentions. The fact he soon forgets indicates that (consciously or subconsciously) he believed his intention was not worth his attention; and a half-hearted good intention can hardly be enough to call him a good person. Going to drink his cup of tea was evidently more important to him than saving the Tooth Fairy's life, so his 'intention' here is more of a whim which is easily switched off.

In contrast, scenario B shows the man at least *trying* to save her. His intention is sincere enough for him to back it up with action. The fact that he's not successful does not alter the fact that he tried. So, he can be said to be a good person as his effort proves the earnestness of his good intentions.



"Hmm...Socrates said, Know Thyself - but I wanna know what I can then *do* about it."

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Immanuel Kant
by Gottlieb Doebler 1791

Bearing this in mind, does scenario C, where the man takes *successful* action – in contrast to the failed attempt in B – mean this man is a *better* person? I don't think so. He is instead a morally good person who is more effective in his efforts, as opposed to being a morally better person.

Let's suppose that he had no good intention at all – that he saw the rival fairies as pests and did not drive them off to help the Tooth Fairy, but just to get rid of them. Or suppose he shielded the Tooth Fairy merely because he knew he might get some extra money when his teeth fall out. Is the man still being a good person in these cases, even given that he saved the Tooth Fairy? I think not, because he is simply fulfilling his gratuitous desires.

So to be a good person you need both intention *and* effort, but not necessarily success. Moral worth comes from expending energy in order to help others, often at a cost to your own comfort. An intention based on a whim won't last, but following through with effort shows you care enough to invest yourself in your moral instincts by committing yourself to where your conscience directs you and trying to help others. Good intention without effort might as well just be a benign wish, and isn't a tool that character can be measured with. But effort without morally good intention is self-serving, and so is no indicator of moral worth any more than success is.

To be good, do you need any *more* than good intention followed up with effort? I don't think one or two good intentions and good attempts at good deeds make you *a good person*. That comes back to *character*, which is built from *habits*. To be a good person you need a consistent flow of good intentions backed up by attempted action to form the regular habit in you of ethical effort. But this is more in line with Aristotle's virtue ethics than with Kant's duty ethics.

Although we agree that intention is pivotal to a person's moral worth, Kant thinks the good will stands uniquely as unconditionally good, whereas I think intention also needs effort as its partner to complete moral worth. Effort is also proof of the earnestness of our intentions, and therefore, of our moral worth. However, Kant does seem to agree with this latter point, since he refers in passing to the good will as "the mustering of all means that are within our power".

My intention-and-effort based ethics is flexible: it can span both deontological and utilitarian (the greatest good for the greatest number) ethics, in contrast to Kant's purely deontological outlook. For example, on Kant's thinking, if an evil Fairy Dictator existed, other fairies would still be obliged to respect him as having intrinsic value and therefore not kill him, no matter how many fairies he himself hurt or killed. However, by seeing intention and effort as the source of moral value, it could be right to spare the despot, or to kill him, depending on the motives of the fairies involved. If a fairy were to put the evil dictator down with her wand in order to save millions of lives (a utilitarian motivation for action) because she thinks that is the best course of action to strive for, that makes her good. Or if she thinks it best *not* to murder the Fairy King because she considers him a being with intrinsic value (a deontological motivation for (in)action), and that is the best course of (in)action to her, then she is also good. The moral goodness or badness of an individual therefore purely depends upon their intention and effort, not their worldview.

Conclusions

Is everybody capable of following this ethical roadmap? What about people who do not have the mental or physical capacity to expend moral effort; for example, those who are severely mentally incapacitated, or paralysed, with no means of communicating, or those who are too young even to grasp what they're thinking, let alone wield their moral compass?

I would argue that in these cases people's lack of capability to flex their moral muscles means they should not be judged either morally good or bad, since lack of capability excuses them from any moral responsibility ('ought implies can' is the Kantian principle here). That is to say, those incapable of forming intentions they understand, such as severely mentally incapacitated people, would be *amoral*; whereas severely physically incapacitated people who understand morality but who cannot act or communicate would be *moral* or *immoral* depending upon their intentions. However, my discussion is focused on the majority of people, who are both able to understand their thoughts and attempt to act on them, and therefore have the potential to decide how they will set their intentions and effort within the moral spectrum.

Knowing what it takes to be a good person is just the start. What do we do with this information? Often, people are quick to judge others on what they achieve or fail to achieve, whereas they judge themselves favourably by what they intend, even if those intentions come to nothing. Can using moral effort as a moral barometer change this?

I believe it can. Instead of judging others purely based on what they achieve, perhaps we can learn to try to understand what they're sincerely trying to do. And instead of judging ourselves as good people based on the merits of our thoughts alone, perhaps we will be motivated to strive harder in our moral pursuits, so we create a better, more supportive world for all.

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Samantha Neave recently graduated from the Open University, and enjoys reading and writing poetry, philosophy, and fiction.

Kant's Theory of Human Dignity

Matt McManus explains why people have absolute worth.

> "What is related to general human inclinations and needs has a *market price*; that which, even without presupposing such a need, conforms with a certain taste has a *fancy price*; but that which constitutes the condition under which alone something can be an end in itself has not merely a relative value, that is, a price, but an inner value, that is, *dignity*… Morality, and humanity insofar as it is capable of morality, is that which alone has dignity."
>
> (*Groundwork to the Metaphysics of Morals*)

While there remains no consensus on what dignity is, by far the most important and famous conception of it remains the classical liberal account developed by Immanuel Kant. The fame is well deserved, even if Kant's articulation of his conception of dignity is occasionally quite confusing.

Part of the difficulty in giving an account of Kant's idea of dignity is that he gives different formulations of it. Moreover, it is not always clear what theoretical role dignity is intended to play in his wider system. At points, Kant seems to argue that dignity flows from and is thus conceptually subordinate to autonomy, which he takes to be the central feature giving humans moral value. At other points, Kant gives dignity a more central place. Indeed, on some interpretations of his work it would almost seem to warrant pride of place in his moral system.

After discussing his theory of dignity and how he derives it, I will discuss some of the challenges to it, then briefly mention how my own conception of dignity contrasts with Kant's.

Categorically Dignified Humanity

Kant's most famous formulation of dignity is cited at the beginning of this article: human dignity is a status which places the life of human beings above all price. As a rhetorical statement, this is about as good as Kant gets, and it remains a deeply moving formulation. However, by itself this formulation tells us little about Kant's thinking aside from the priceless worth he ascribes to human life. To understand *why* he ascribes us this value, we need to dig deeper into the *Groundwork to the Metaphysics of Morals* (1785).

In this seminal work Kant developed a complex argument to the effect that from the standpoint of practical reason all human beings possess free will, and are therefore able to will their own ends (that is, aims or goals). Other things, including non-human animals, do not possess this capacity. Unlike humans, who are capable of free will because we have reason, all other things are governed entirely by causality, and therefore operate entirely according to laws of physical cause and effect. Kant notes that on occasion human beings are prone to the bad faith belief that we are also simply material objects governed by causality (*cf* Sartre). But Kant thinks this is a metaphysical illusion which is refuted by our practical reason, which affirms our sense of ourselves as rational beings capable of willing our own ends. The belief that we are simply the product of our material environment is similarly to be rejected.

Indeed, Kant believes that the capacity to will our own ends is the central reason we're not just material objects in a value-free universe. Here Kant is making the radical and innovative argument that the autonomy of the individual is the enabling condition of moral philosophy. This might seem like a curious feature at first glance. If it's true that autonomy and freedom are the enabling conditions of morality, how can we claim that morality has any substantive objective content? If morality is derived from human freedom, wouldn't all individuals simply be free to will their own ends as they saw fit, and so morality becomes entirely subjective?

This position certainly becomes prominent in the writings of later thinkers, particularly in the existential tradition. But Kant is unwilling to take this step. Autonomy of the self and freedom of the will do not themselves leave us free to pursue any ends we prefer. Rather, recognizing our freedom to pursue chosen ends is simply the first step in recognizing the rational form, substance, and end of morality to which we're duty-bound to conform. Our capacity to will our own ends is central to Kant's broader argument that practical reason demands that we submit our will to a regulative law he calls the categorical imperative. This imperative tells us to direct our actions in conformity with universal moral law.

Kant gives a few formulations of the categorical imperative in the *Groundwork*. The first is that human beings must always act in such a way that we could accept the maxim by which we order our action as a universal law. Kant refers to this as the formula for 'a universal law of nature'. It means, an action is moral only if you think it would be right for everybody else to act on the same principle in similar circumstances.

As well as being probably the best-known formulation of the categorical imperative, this is also the most controversial. It's obvious that Kant considers it exceptionally important to his moral philosophy. However, it's not clear what relation this formulation of the categorical imperative has to Kant's account of dignity. The clearest link is that if this truly is a *universal* moral law, it demonstrates the human capacity to will ends that are *objectively* moral. This places us above other animals, who, being purely subject to deterministic causality, cannot be said to act on any universalizable moral imperatives.

The core insight is perhaps that dignity is related to autonomy and freedom from causality – an insight which is perhaps better captured by the second formulation. This says that individuals must always act in such a way that we treat ourselves, and other people, not just as a means, but always as an end in itself. It is our status as the only beings with the capacity to will towards moral ends we ourselves have rationally chosen that



"THERE NEVER WAS A GOOD WAR OR A BAD PEACE." (BENJAMIN FRANKLIN, 1706-1790)

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makes human beings, since we thereby embody or encapsulate something of intrinsic value (in other words, an 'end-in-itself'): the capacity to will or create goodness. Because we are capable of, in effect, bringing moral value into the world, we cannot be treated merely as means to an end, since it is in some respects the duty of man to value intrinsically valuable ends, and without us, there would be no value. This is what gives human beings a dignity that places human life above all price. Price can be measured and affiliated with an *object*, but the dignity of human beings cannot be measured in this manner. It is absolute. This is also centrally related to our autonomy and freedom to choose, because treating ourselves or other human beings merely as means to ends overrides our or their capacity to choose, and therefore the ability to will moral ends. It is, in effect, to treat a human being as a thing in the world rather than as an autonomous person who can will their own ends. For Kant this is a failure in our moral duty, and betrays both our dignity and the dignity of the one we diminish.

Man, Nature & Society

As I indicated earlier, for Kant, being moral reasoners (and so ends in ourselves) makes us different from and to some degree outside of and above the world around us. Other animals, for instance, act only from instinct. This point is nicely emphasized by J.B Schneewind, who draws our attention to the links Kant makes between our free will and our overall capacity to be moral:

> "The power of choice enables us to decide between the call of desire and that of morality... It would… [enable] us to choose even where the alternatives are indifferent; in other cases its choices would be determined by the relative strengths of desires and passions. The will itself is neither free nor unfree. As pure practical reason, it provides us permanently with the option of acting solely on the reason which its own legislative activity gives us [ie, morality]. The power of choice, which enables us to opt for morality or against it, is a free power. Because we can choose, we never have to accede to desires which, though certainly part of ourselves, are caused in us by our encounters with the world outside us."
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> (*The Invention of Autonomy, 1997*)

It's true that at points Kant seems to think our capacity to choose to will the moral law sets us above anything else in nature except other rational beings. There is no sense for Kant in which nature or any non-human animals enjoy anything approaching a dignity 'beyond price'. As he puts it in his *Lectures on Ethics* (1760-c.1794): "But so far as animals are concerned, we have no direct duties. Animals... are there merely as means to an end. That end is man." Here Kant could be justifiably attacked from, say, an environmentalist perspective, for elevating human beings at the expense of nature. However, here Kant is firmly in the classical liberal tradition in his approach to the natural world.

Although his later works, especially the *Critique of Judgement* (1790), develop a formidable approach to interpreting nature's beauty and purpose, Kant is committed to the idea that natural objects are appropriable for the ends determined for them by man and God. This is not simply some crude speciesism on Kant's part: he does not simply assert that we are different from the rest of nature because we alone are free to choose, and therefore to enjoy a dignity which sets us apart from the world. Rather, our moral value stems precisely from our capacity to set *moral ends* for ourselves. It is the ability to create moral value that's valuable, not the fact that we belong to a particular species.

As well as being in contrast to modern panspecies notions, Kant's account of dignity is also firmly in opposition to accounts of it given by John Locke, Adam Smith, and others, who associate dignity with institutional office and rank. He would also be opposed to attempts by modern thinkers, such as New Zealand professor of law and philosophy Jeremy Waldron, to conceive of dignity as a status ascribed by individuals or institutions as a social gesture. Kant wants us to treat each individual as having dignity as an end in themselves regardless of any such external conditions. Kant would probably say that Waldron's conception ascribes too much influence to the external world. It would also risk being affiliated with inegalitarian ideals if manipulated maliciously. For Kant, the only way to properly and securely understand dignity is as belonging to everyone, low and high, from birth to death as an *a priori* fact, that is, as an aspect of human existence intrinsic to humans regardless of their circumstances.

Our moral imperatives are to be organized around this fact. Perhaps most importantly for our purposes, states and social institutions are to be organized in a manner that respects our intrinsic dignity and its egalitarian connotations. The third formulation of the categorical imperative comes in handy here: "every rational being must so act as if he were through his maxim always a lawmaking member in the universal kingdom of ends." Kant believes that society should come to work around the idea of individuals as ends in themselves, in which free individuals will (that is, make) moral laws in tandem with one another. In later works it becomes clearer just how such a society would look very different from the autocratic Prussian state he lived in, and indeed, would look very different from our own.

Criticisms of Kant's Conception of Dignity

Kant's conception of dignity has been very influential, even impacting the decisions of major judiciaries, such as Germany's. It is also tremendously powerful, especially in its egalitarian dimensions. However, it is far from perfect. Here I will briefly develop some criticisms of the Kantian concept, and indicate some of my own ideas about how dignity should be conceived.

First, the Kantian conception of human dignity appears insensitive to socio-historical and other empirical contexts. I would argue that important features of his conception can be saved from this limitation, but only at the expense of dropping some of Kant's more esoteric philosophical commitments.

I highlighted that one of the (apparently) defining features of Kant's conception of dignity is his insistence that it is in no way dependent on external features of the world, but instead is an intrinsic characteristic of the human subject. This powerful idea finds expression in the frequent characterization of dignity in international legal documents as inalienable or intrinsic to all human beings. But the philosophical justification for this strong position on dignity is not as powerful as its rhetoric. Kant's justification is centrally related to the occasionally ambiguous links he draws between dignity, freedom, and the capacity to bring moral value into the world. For instance, there is a sense in which Kant cannot accept that external features of

the world, such as social contexts, can have an impact on the dignity of human beings because this would undermine his deep commitment to the idea that all human beings are absolutely free regardless of the contingent features of their life. Also, if social contexts affect human freedom, this would suggest that our dignity as lawgivers who will their own ends can be not just disrespected but actually limited or overridden, in a totalitarian regime, for instance. This is unacceptable for Kant, both because it limits the dignity of human beings as free law-givers, and because it might limit our capacity to hold each individual fully accountable for their actions.

There is a sense in which Kant is too radically transcendental about human freedom. He seems to simply assert that all individuals possess the capacity to will their own ends regardless of the details of their lives, and that is that. Such a monolithically transcendental view, while inspiring in some respects, simply seems unrealistic after a point. Some people are surely not free to will any meaningful ends for themselves at all, consider slaves for instance. Moreover, there is a paradoxical sense in which the radicalness of Kant's transcendental commitments might blunt the critical edge of his philosophy. If it is true that all individuals possess dignity simply as a brute fact, one might question why society and powerful institutions need to be rearranged to establish a freer society. If we simply are free and dignified agents, and that is that, there can be no sense in which change could either increase or diminish that freedom or dignity. But this would be a remarkable position to hold. It makes little sense to say that a slave toiling in the fields of eighteenth century Virginia (contemporary with Kant) could not be made more fundamentally free to lead a dignified life by the elimination of slavery. Even in the Europe of Kant's time it would seem deeply odd to claim that individuals would not be made freer by the elimination of aristocratic political and economic privileges. And the examples multiply.

Indeed, Kant does not seem to fully believe the extreme position himself. His later works in political and legal philosophy are replete with calls for reform, and for the transformation of both the state and society along lines that would better treat human beings as ends in themselves. As pointed out by Canadian professor Arthur Ripstein, Kant's legal and political philosophy has a radical edge to it that's occasionally underappreciated. For instance, Kant argues that for the state to claim sovereign authority over citizens it must maintain the rightful conditions for their exercise of their freedom as dignified ends in themselves. This implies a responsibility to maintain and deepen a host of liberal institutions that would have seemed radically progressive at the time, and engage in a cosmopolitan politics that seems idealistic even to this day. To the extent that states fail to establish these conditions, they cede the moral right to sovereign authority over their citizens.

To my mind, the more realistic and contextually sensitive dimension of Kant's thought demonstrates how one should go about reconceiving his conception of dignity. I agree with him that there is a fundamental link between human free choice and human dignity. However, I think we must also follow his (somewhat constricted) insight that freedom can be either inhibited or amplified by the socio-historical contexts people inhabit. This means that it is possible for the dignity of human beings to also be limited or amplified by their contexts. So we must try to make individuals more capable of agency, in order to amplify the dignity they enjoy as authors of their own lives. Indeed, taking human dignity seriously means organizing social and political contexts to amplify human agency to the greatest extent possible. In this respect we still have a very long way to go. Many states still engage in practices that directly or indirectly limit the dignity of individuals. Large changes are needed.

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Did Kant Solve Skepticism?

Thomas Morrison asks just what Kant learned from his *Critique of Pure Reason*.

Can we know how things *really are* regardless of how they *appear* to us? Throughout history, many philosophers – known as skeptics – have argued that we can not. Part of what Immanuel Kant is attempting in his *Critique of Pure Reason* (1781) is to show that arguments for skepticism are unsound since they rest on a misuse or misunderstanding of concepts such as 'experience', 'things', and 'knowledge'. I hope to show that in this specific sense Kant does solve skepticism, but that by changing the meaning of crucial terms he leaves us with a far more puzzling problem.

Knowing Skepticism

How did we get ourselves into the problem of skepticism to begin with?

There are two assumptions operating in the skeptic's question. The first is that there is a distinction between appearances and reality – between objects as they *appear to us* and objects as they are *in themselves*, independent of us. The second is that there is a distinction between *direct* and *indirect* knowledge – between our own immediate experiences and what we can come to know only indirectly, by inferring it from experience. These two assumptions together lead to what I will call the 'mind-world gap': the gap between the inner and outer worlds; that is, between appearances and reality; or between thought, and the world we think about.

To highlight this gap between appearance and reality, consider some common experiences: optical illusions and hallucinations; or that the taste and smell of familiar things seem to change when you're ill; or that the colors of objects look different in abnormal lighting, although there is no change in the objects themselves. Or, cross your eyes and what was previously one image is now two. Even the common perception of a three-dimensional object in space is only ever of one or a few sides – try to see all the sides of this magazine at once! That's impossible; yet you will not deny that the thing you're perceiving is three-dimensional and solid.

All these examples and more illustrate that the way things appear to us are not how they are in themselves, in objective reality, beyond experience (what would that even mean?). But we still want to know how far our appearances *correspond* to the things in themselves. To do this, we must be able to cross the gap. How do we get to knowledge of things as they are in themselves? Our senses can be mistaken and we can be fooled in a myriad of other ways too. Perhaps we simply have no way of knowing the difference between an erroneous experience and one that reveals (part of) the truth?

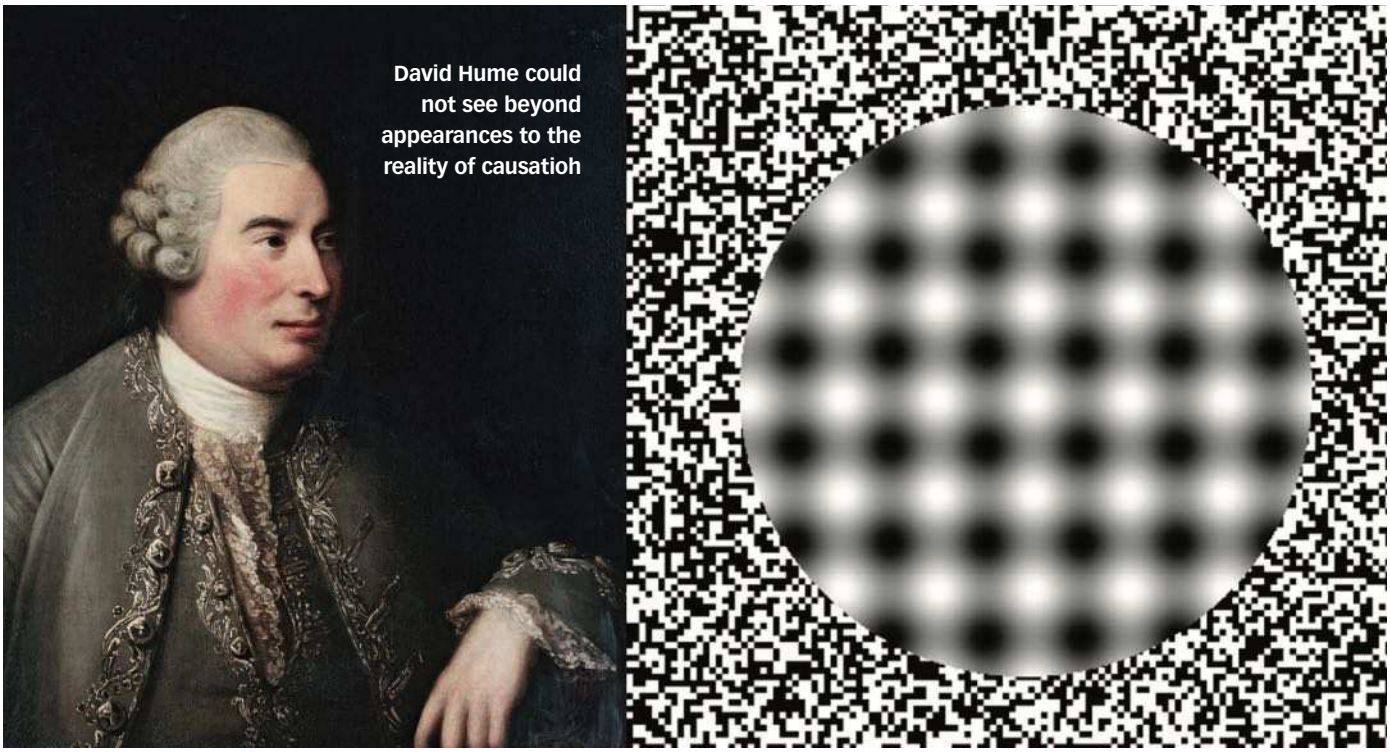
Finding a reliable method of avoiding error was the sweetheart project of René Descartes (1596-1650). He begins his *Meditations* (1641) by stating that he wants to "avoid believing things that are not entirely certain and indubitable." So for Descartes, one mark of knowledge is *certainty*, which is holding a belief without any doubt. However, the above cases show that our senses can mislead us, can give us false ideas. So we can doubt that things are as our senses report (and of course that is just what physicists are saying when they tell you that the table you're sitting at is a swarm of incredibly tiny force-carrying wave-particles, rather than the solid thing it appears to be).

Does this mean that we can never have knowledge about the outside world – about things in themselves? Even cursory readers of the *Meditations* can see that Descartes does not end up a skeptic. Rather, through his *cogito* ("I think, therefore I am"), and a sweeping rendition of Anselm's arguments for God filtered through Descartes' own pious fidelity, Descartes claims to show that we can have certainty, and hence knowledge, of the actual world. However, without the trustworthiness of God, Descartes' rationalist criteria of knowledge gain us nothing more than the *cogito* – one's own thinking and being – in other words, only knowledge of mental acts, or the inner world.

How else might we gain knowledge of things in themselves? David Hume (1711-1776) claims that such knowledge must be based on causal inference: inferring from effect to cause – from appearances to the thing itself (*Treatise* 1.4.2.46, 1738). He divides knowledge into *relations of ideas* and *matters of fact*. We may come to know something simply from considering ideas (or concepts) – such as knowledge that a bachelor is an unmarried adult male, or that 'any two things equal to a third thing are equal to each other'. Or we may come to know by turning to experience, to establish facts such as that New York is north of Miami or that all ravens are black. Simply thinking about the abstract concepts 'New York' and 'raven' won't give us these facts.

Hume goes on to argue that causal knowledge cannot be gained from the pure relation of ideas, because when we consider the cause we do not thereby intuit the effect. In other word, there is no apparent logical necessity between a cause and its effect. A three-sided square is intrinsically absurd, since it involves a contradiction between the ideas. But striking a match in normal conditions without the match igniting is, however unlikely, not absurd; it involves no contradiction. We can also think of a cause without having any thought about its effect. Consider someone wholly ignorant of computers. Would they be able to tell simply from looking at a keyboard that pushing the buttons will cause letters to appear on the screen? There is no purely conceptual link between causes and effects, then. We can't know what caused an event just by thinking about that event by itself. Rather, you test a causal link by having different experiences. So knowledge of causes must be a knowledge of matters of fact. We have to turn to experience to get it.

Well, Hume asks, exactly what do we experience? We experience one thing (the cause: my striking the match) precede another (the effect: the match enflamed). Unfortunately, to know that something caused something else, we have to know more



David Hume could not see beyond appearances to the reality of causatioh

than simply that it *preceded* the effect. One reason is that what precedes an event is much more than just the putative cause. A *complete* description of the moment that preceded the match lighting would include everything occurring a moment prior in the entire universe, from flies landing in Africa to satellite fly-bys. So why not say that a satellite passing above us at that moment caused the match to ignite?

We might 'test' this hypothesis by finding that not every time a match ignites it follows upon a satellite fly-by. So now we have this criterion: *a cause is what precedes an event in every heretofore experienced case*. But even this is not specific enough. Even with this new standard of preceding in every past experience, we are left with much more than the actual cause. A moment before the match ignites there are always air currents operating within the room, electromagnetic radiation, gravity pulling downwards, etc. These things *always* precede any match ignition you've ever experienced. But we misunderstand the concept of 'cause' if we say that gravitation caused the match to ignite, as opposed to me striking the match. Hume would himself say that we cannot know that my striking the match caused it to ignite, since we only experience distinct events following or preceding one another ('in constant conjunction', as he put it), and we do not experience the causal glue between them which is the putative cause itself (*Treatise* 1.3.2.11).

What more do we need for knowledge of causation? We need to establish that the effect doesn't merely follow the cause, but follows *from* it; not just that in the past I have constantly experienced Event 2 following Event 1, but that Event 1 caused Event 2 – that, all other things being equal, if Event 1 occurs then Event 2 will always follow. So the idea that something caused something else rests on a universal hypothetical statement ('for all x, if x then y') which asserts a *necessary connection* between the cause and effect. If causes were not necessary, we would have to say that a cause may or may not produce its effect, and yet there is nothing else – no 'hidden variable' – that determines whether it will or will not produce its effect. Likewise, given an effect, we cannot say it was *caused* unless effects of this type are *always* preceded by causes of similar general types. The problem Hume is pointing out is that experience cannot give us knowledge of any necessary connection. We only have experience of what has happened, and of what is happening, but a necessary connection involves a projection into the future – it makes a claim about what *will* happen any time a certain cause is present. As we have seen, experience gives us only knowledge of constant conjunction. Through habits of thought, we come to anticipate the 'effect' every time we experience the 'cause'; but properly speaking, we have no logical or experiential knowledge that this event caused this following one. For Hume this shows that we cannot have knowledge of how things are independent of how they appear to us, so we cannot have knowledge of *things in themselves*. Skepticism remains.

Kant Get No Thing-In-Itself

Responding to Hume's 'causal skepticism', Kant will say that we *do* have knowledge of causation, and of other things too. But he argues against skepticism in an entirely different way.

Kant's first move is to redefine the all-important term 'experience'. For Hume, experience is either sense impressions, feelings, or reflections (unfortunately, Hume says nothing about the origin and nature of perceptions). For Hume, visual experience is a series of colored sense data in a parade of mosaics simply presented to sight as objects in various relations to one another. For Kant, however, an experience is a combined set of perceptions *organized by the mind*, and constituted in large part by our minds. Kant asks, if experience were just a mosaic of colors, how do we have our everyday meaningful sort of experiences, of tables and chairs, bricks, houses, and rain showers? Since these meaningful *combinations* of the sense data cannot come through the senses themselves, they must be rooted in the nature of thought



Beyond Space & Time
Dror Rosenski 2022

and representation. Therefore, we can gain knowledge about the world we experience by considering the nature of these mental faculties and what belongs to any experience or thought whatsoever: for instance, the fact that they all exist within time.

To criticize skepticism about causes, Kant argues that we don't simply experience events following or preceding one another; at times, we experience *happenings*. That is, we experience an event in a specific relation to time: something that did not exist before but does now. Moreover, the event (effect) can only be experienced in one direction: we experience a match striking and then it igniting. Whereas with experiencing objects we can do this in any order or direction we like: I experience the house from the basement up to the roof or I can start looking at it from the roof and move downward (B230). We experience the necessary connection between the two events, cause and effect (the 'happening'), because the very possibility of experiencing something that happened implies the existence of a cause. Unfortunately, that's all it implies. We cannot know anything about the character of the cause by simply experiencing the event. That is why specific causal relations are still a matter of experience. It is knowledge of causation itself that is *a priori* (ie knowable prior to experience).

Kant argues we can get further knowledge of nature itself in the same sort of way – by thinking about the implications of our experience being the way it is. On this way of thinking, what is an object, for example? The eighteenth century philosophers, aware of Descartes, say that a physical object is an extended being, meaning that it has magnitude in space. However, Kant first asks, is space something we know *from experience*? Rather than experiencing space itself (whatever that might mean), every sensory experience we have is *always already in space*, or we could say, is always of something in space – it is over here, and not over there, it is next to this, behind that, etc. Neither is space something we can know about through *abstract reasoning* about the concept, since our abstract idea of space is of an infinite magnitude, and we can't conceive of infinite magnitude. Experiences themselves are things with instances, not infinite magnitudes. So whence our idea of space? It must be gained from the *a priori* features of experience, specifically, the nature of our 'outer intuition' – our experience of the external world. For Kant, space is a subjective feature of all our outer intuition: he calls it *the form of appearances* (B42). It is something that's necessary for us to have any experience of the world at all. Time works the same way, as a form presupposed by all sensory experience.

Now if space, as a pure form of outer intuition, is a function of *experience itself*, then so too must be *objects*, since a physical object is always and only perceived as being in space. In fact, all we know about objects is their appearances. As Kant writes, "Only through *representation* is it possible to *know* anything *as an object*" (B125). There is therefore no sense to saying anything about the nature of an object independent of our experience. Indeed, it seems that for Kant there is no such thing as a thought-independent individual object.

Can we avoid this line of thought simply by changing the discussion from the real nature of objects to being about how 'things in general' really are? Since the only idea of reality we have stems from our experience of the world, asking 'How are things in general?' in one sense is just asking about our experience. *The direct objects of knowledge of the world are appearances*. By showing how the only knowledge of objects is had through looking to our experiences of them, Kant 'solves' the problem of skepticism by *dissolving* it. What is the nature of Nature? Nature for Kant means the causally-connected world we experience. And as he says, Nature is just what we experience of it.

But can't we also ask about what lies behind or outside our experiences? For Kant, experience of the world involves sensation; so we might ask, from where do these sensations come? Kant argues that the idea that our sensations have a source beyond them is *a problematic concept* – a concept that does not involve a contradiction but which is impossible to either affirm or deny. Any possible source of sensations that you might suggest (our minds? physical objects in themselves? God?) is impossible to affirm or deny because our experience is of the sensations and nothing else, and logical speculations about the ultimate nature of reality end up in contradictions which we cannot resolve, such as that space is both infinite and non-infinite.

So Kant might 'solve' skepticism about experience to some extent by redefining what we mean by 'experience', 'object', and 'reality'. But doesn't he thereby create a whale of a new problem? Kant calls things in themselves the *noumena*, as opposed to the *phenomena* of sensory experience (B297). ('Phenomena' literally means 'things of the senses'. 'Noumena' means 'things of the intellect'.) So doesn't Kant's method just mean that we cannot have knowledge of things in themselves, the noumena?

This is where this whale of a metaphysical problem delights in the murkiness of its depths. We should remember that Nature – the world of objects – is a feature of outer intuition or appearances. So by this definition, noumena are not part of Nature. Also remember that for Kant an *object* is only ever an appearance or set of appearances, and whatever we can reliably infer from that. So noumena are not *objects*, either. Furthermore, space is the form of our outer intuition, or one prerequisite of our experience of phenomena; so for something to even be *in space* it must be an appearance. Noumena are therefore not in space. This also means they're not outside or beyond anything in a physical sense. Finally, we should not forget (although Kant sometimes seems to) that *causation* is likewise a concept required for experience by the nature of sensory representation. Causation is specifically, a relation between two appearances: the cause and the effect. So what could Kant possibly mean if he were to say that noumena *cause* the appearances of the world? Noumena cannot cause *anything* in Kant's sense of cause. So although Kant argues that there is sense to the idea of something existing independent of our thought – a world as it is in itself – the *noumena* is nevertheless a *problematic* concept, in that we cannot know anything about it.

The world as it is in itself isn't a part of *nature*, or the *cause* of anything, and we cannot know anything positive about it. So did Kant solve skepticism?

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A Philosophical Lunch

In seventeen hundred and seventy three –
The flow'ring of Britain's Philosophy –
George Berkeley'd been dead for nigh on twenty year
And his friends thought a jolly would give them some cheer.

'Twas Bentham who first of all mooted the plan
And soon he had listed some guests, and began
To write letters to all in his spidery hand;
For some lived abroad in a faraway land.

Immanuel Kant was invited to come
And Bentham wrote, "Pleasure? I think there'll be some.
The pain of the journey will soon be repaid
By meeting admirers of works that you made."

But Kant was regretful, his RSVP
Said imperative reasons meant he was not free:
"I've made it a rule, categoric'lly so,
To home never leave, or to travelling go."

So Bentham tried others – J. Priestley in Leeds,
Whose ideas he'd found out could chime well with his creeds:
An original thinker, a chemist as well
With plenty of after-lunch stories to tell.

But Priestley replied he was busy just now,
And went on to give his excuses, and how
He had nearly succeeded dephlogisting air
And to halt the experiment would not now be fair.

Next came Dr Johnson, and sidekick Boswell,
Whose diction'ry so many copies would sell.
He laughed as he struck a large rock with his toe
And quipped, "Will a lunch still exist if I go?"

Now Bentham was worried; he'd hired them a room.
The last letter went out to the Scot David Hume.
He'd known Berkeley's works and had followed his line;
Surely this fact alone would compel him to dine?

But Hume was now frail and replied that the fact
Of his debt to George Berkeley was no cause to act:
"A statement of is cannot lead on to ought,
And the journey to England would kill me, it's thought."

So Bentham was left to toast Berkeley alone
And to ponder upon some ideas of his own;
He'd done right to plan and to write to his friends –
Utility lies in the good of our ends.

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Sarah Rochelle is a social scientist, musician, practical philosopher, and writer of philosophical poems, which will be featured in a forthcoming book Eh-Up! Rhyme and Reason: An Alternative Guide to the History of Western Philosophy *and can be seen and heard at* notequalpress.com.

Transcending Kant

Joshua Mozersky argues that reality itself might be accessible to us.

Immanuel Kant is the grandfather of social constructivism – the theory that people construct reality out of a shared human experience. According to Kant, the world we experience of space, time, matter, and causation, is structured by the human mind. His point is not just that our *concepts* of the world are determined by our mental architecture. Rather, space, time, matter, and causation *themselves* are mentally structured kinds.

Kant assumes that the structure of rational thought is universal. Hence, we are not each trapped in an individual reality of our individual making, but instead share a common world of experience. Today, sociologists tend to emphasize the *variety* of human thought that arises from differences in culture, history, or social position. The result is a more fragmented view of human thought than Kant imagined. Where he saw everyone inhabiting a single mentally constructed reality, many today see us as occupying different realities, each dependent on contingent background features. But this does mean that Kant + contingent variability = social constructivism. Hence, he is the grandfather of social constructivism.

Kant deployed his own 'constructivism' to respond to Hume, who argued that the senses can only deliver imperfect information about the view just from your particular perspective and there is no way to push beyond personal experience to knowledge of the universal or general structure of the world. Kant points out that this only follows if we assume that gaining knowledge is a matter of the mind conforming itself to what lies outside of it, and so is separate from it. If, on the other hand, the mind is responsible for the general features of the empirical experience of the world, then we can uncover the large-scale properties of reality from sufficiently critical reflection on the workings of the mind, and in particular, from reason itself.

Consider, for example, geometry. One might construct a proof that the interior angles of a triangle are equivalent to two right angles. This proof is usually carried out *a priori*, or purely theoretically, by applying logical transformations to Euclid's geometrical axioms. There is, however, Hume points out, a great mystery as to how the result of such a *theoretical* process could apply to *real* space at all. There is an even greater mystery as to how it could accurately capture the structure of huge swaths of space that have never been, and never will be, observed, as we assume it does. How could a mathematical idea have such power and range? It can, Kant argues, if the mind is responsible for both the persuasiveness of geometric reasoning *and* the structure of space itself. Indeed, the central argument of his *Critique of Pure Reason* is that because the conceptual structure of the mind is both accessible to rational reflection and responsible for the fundamental organization of empirical reality, it is possible for us to know *synthetic* (that is, non-self-evident) things about the world through *a priori* (prior to experience) methods of thought, such as geometry, mathematics, or philosophical reflection.

Kantian Thinking & Beyond

In the *Critique of Pure Reason* Kant argues (as do more recent scholars, such as Barry Stroud in *Engagement and Metaphysical Dissatisfaction*, 2011), that fundamental categories of thought such as *causal necessitation* or *difference in number* are not just useful but essential for having any coherent idea of the external world. Furthermore, anything beyond a fleeting idea, disconnected from all other cognition, requires that we take some thoughts to be the *result* of others. There is no possibility of forming a coherent line of reasoning without recognizing such necessity: "Every contingently existing thing has a cause.' One could never get further than to prove that without this relation we could not comprehend the existence of the contingent at all" (*Critique of Pure Reason*, B289). In Kant's terms, this renders causation a *transcendent* mental category – that is, one presupposed by any mental act. And so it is with all that Kant generally terms 'categories'.

Proposing that certain categories are essential for the very possibility of rational thought can look much like the proposition that our knowledge of the world is mediated by such categories – that is, that they stand between us and the experienced world. Many Kant scholars interpret him this way. For an example from this very magazine:

> "When the mind looks at the world, it has no choice but to view it with ideas that are built into the mind… they come before any experience and they shape the experiences we subsequently have… And what follows from that is that we can have no direct knowledge of the world as it is before this mediation has happened."
>
> 'Kant and the Thing in Itself' by Ralph Blumenau, *Philosophy Now* Issue 31, 2001.

That Kant distinguishes the world as it is in itself – the *unconditioned* or *noumenal* world – from the world as structured and experienced by us – the *phenomenal* world – suggests that things in themselves are unknowable because knowing them would require that we gain access to the world independently of that which is essential for any possible access to it, namely the categories of thought. But there is something important here that we should not overlook. Even if Kant is right that rational thought presupposes or is in some other way impossible without fundamental categories such as causal necessity, it does not follow that the world in itself is inaccessible to the mind. For even when something does mediate between a knowing subject and their object of knowledge, it is possible that the mediator clarifies rather than distorts, informs rather than misleads.

Take, for example, eyeglasses. If I were to remove my glasses, my access to the outside world would be *diminished*; I would lose information that I am able to gather when my glasses are on my face. In this case, inserting a medium between myself



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and the trees across the street is a way for me to know them *better*. Or consider that without telescopes we would lack most of our current knowledge of distant stars and galaxies. We could use our astronomical theories to deduce some general conclusions about celestial bodies, but without visual instruments, the details would be nothing but guesswork. Nonetheless, the fact that we can see the distant heavens only through telescopes does not entail that we only see the telescopes. Of course, things such as glasses and telescopes are not essential or universal media of experience and thought, as categories such as causation are supposed to be. But let's extend the analogy, and consider eyes themselves. Without eyes, we would gain no visual information about our surroundings, whereas with eyes, that information is available. So even though our eyes are mediators between ourselves and the world, it does not follow that they fail to deliver information about the world. It is a *logical possibility* that glasses, telescopes, and even eyes cut us off from, or deeply distort, the world they reveal; but the mere fact that access to something involves a mediating structure does not *entail* that the object itself is inaccessible. It could be, for example, that the mind evolved to be receptive to the spatial form of the external world, and the eyes to deliver information of that very form.

Three Possibilities for Access to Reality

If we assume that our access to reality is mediated by categories of thought, as Kant argues, then there are in fact three possibilities concerning what this implies.

First, the mediators could be *transparent*: although perhaps limited in scope, when working properly they transmit *accurate information* about independently existing things. If this is so, then we can combine this idea with mathematical and logical principles to construct general theories which can then be tested against observation and experiment to build up knowledge of the mind-independent world. It may take some hard work to figure all of this out, and the results may always be tentative to some degree, but none of that entails that it's impossible to know reality itself.

Second, the mediators of thought could be *translucent*, that is, only partially transparent. If this is the case, then we may not know how much of our experience is a projection from the mind, and how much is the appearance of the things themselves. As a result, we should either remain sceptics about knowledge of the world, as Hume argues, or else search for evidence that we have sometimes somehow managed to separate out these two elements. For example, perhaps we can draw reasonable conclusions about what lies beyond the mind from our knowledge of its observed responses in different circumstances, much as we might draw conclusions about what lies outside of windowless walls based on how they shake at different times of day.

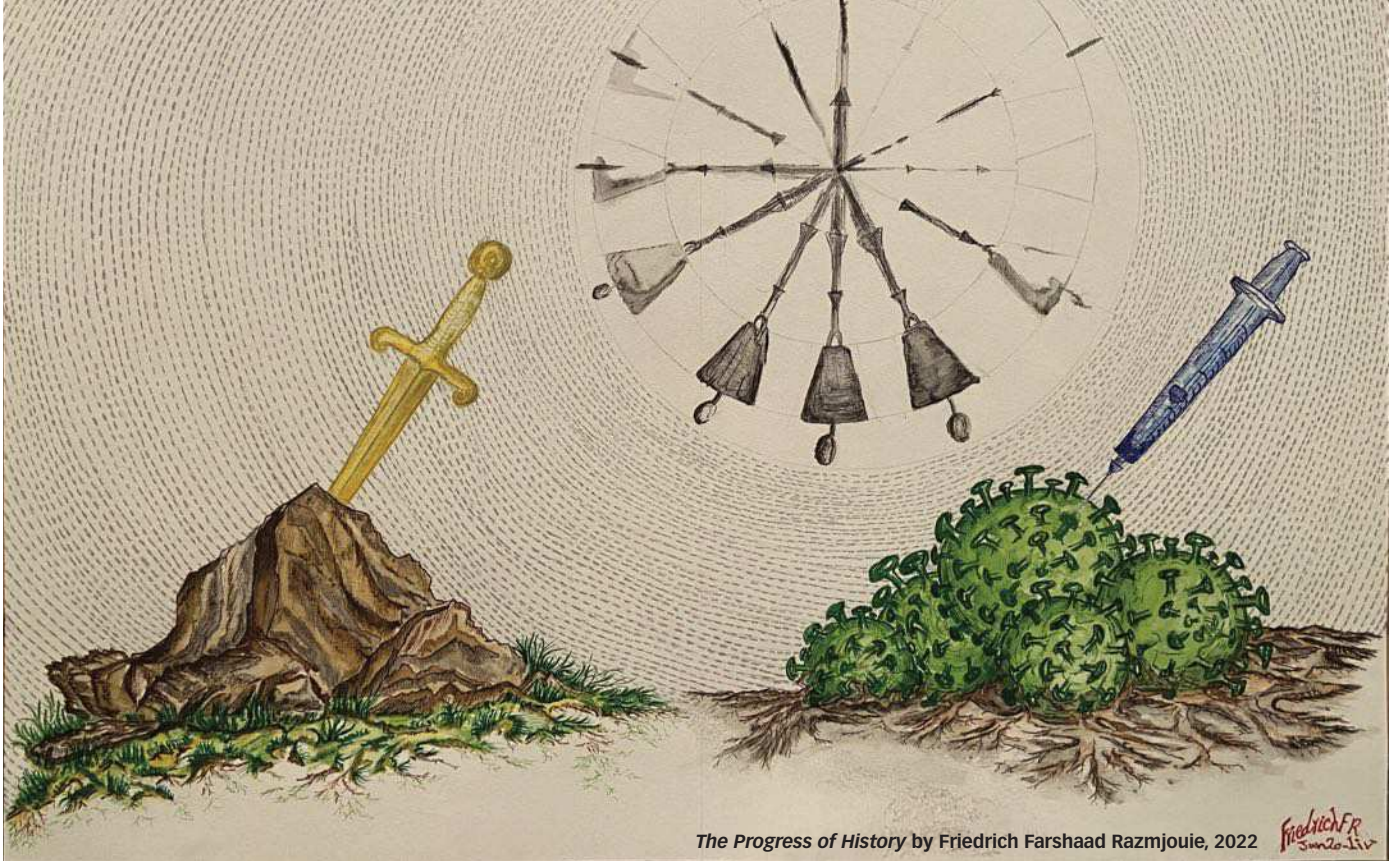
Third, the mediators of thought could be *opaque*. In this case, no information about the true nature of reality as it is in itself gets through, and the mediators and the experiences they generate are all that we can access. If this is the case, then we must assume either that there are no things themselves, or that they make no perceivable contribution to our thought and experience. Either way, they can be safely dropped from consideration.

It is important to note that all three possibilities are compatible with the mind-independent existence of space, time, matter, causation, and whatever else that Kant claims is mind-dependent. In the first two cases, such independent structures make at least some contribution to our experience, and so are potentially knowable. In the third, they make no such contribution. However it does not follow from this last case that these structures fail to exist independently of our minds, for it is possible that we exist in a world whose structure outstrips our capacity to know it. As an illustration, insects inhabit relativistic spacetime yet have no idea that this is the case. Perhaps we are in a similar boat, in some sense.

Kant argues that coherent thought and experience presuppose mental categories; but it does not follow that the mind-independent world is inaccessible, or that the empirical world of space, time, matter, and causation is entirely our free construct. The fact that access to something is mediated does not mean that how it is accessed is entirely a construct of the mediator. On the contrary, it is possible that our mental categories work with our senses to deliver accurate objective information about objects, at least some of the time. In short, Kant has not given us conclusive reason to suppose that our world is entirely of our own making.

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The Progress of History by Friedrich Farshaad Razmjouie, 2022

The Enticing Light of Progress

Helena Moradi asks if the promise of pure progress is problematic.

In November 1784, the *Berlinischer Monatsschrift* published an article titled 'An Answer to the Question: What is Enlightenment?' The article's author was Immanuel Kant. His famous answer was, "Enlightenment is man's emergence from self-inflicted immaturity (*Unmündigkeit*)." This long-standing question is a historical staple that continues to preoccupy the present. Two hundred years later, the French post-modern philosopher Michel Foucault still asks it in *What is Enlightenment?* (1984). In this essay, Foucault claims that modernity finds itself with a constant desire to know where we are right now. So where are we? Has humanity emerged from our immaturity, that is to say, really progressed?

American author J.B. Bury's *The Idea of Progress*, published in 1920, contains a difficult interpretation of 'progress'. According to his definition, the idea of progress is the belief that 'civilization has moved, is moving, and will move in a desirable direction'. But what is 'desirable' here? When the elderly Romantic philosopher Jean-Jacques Rousseau went for a walk in a pasture he admired for its beauty, he discovered a knitting factory in the middle of the idyll and was horrified and disgusted. Yet if his old adversary Denis Diderot had made the same discovery he would have become curious and happily interested, maybe even paid a study visit. For Diderot, but not for Rousseau, the factory in nature's womb was a sign of progress 'in a desirable direction'. So clearly, subjective perceptions cannot be used to define progress. Social movement is always in some direction and we'll never have universal agreement that any particular direction is good.

The solid foundation to the idea of progress is the idea that human beings, through deliberate action, can change the circumstances of their existence. Man has some control over his future. The advocate of progress further believes that such changes can realize their dreams and desires. The detractors of 'progress' do not deny the power of action to shift situations. Rather, they are convinced that massed 'progressive' behaviour merely destructively disrupts the natural order, or simply confirms man's attachment to an inherently hopeless existence.

A forward-thinking optimism about the long-term direction of society is often traced back to the seventeenth century. However, if some thinker is to be crowned as the idea's founding father or mother, it has to be the English philosopher and politician Francis Bacon (1561-1626). Sometimes also called 'the father of empiricism' and 'the man who died of a cold from trying to freeze a chicken', it was Bacon who first made a serious claim that people could improve their lot with the help of new knowledge, new technology, and new forms of cooperation.

For a long time, this ideal of progress had few followers. However, through the Enlightenment in the eighteenth century, the idea gained in popularity. Nonetheless, only a thin layer of educated people shared the perception of progress. When one of the first hot-air balloons – which Kant saw as the pinnacle of technological progress – crashed to the ground outside of Paris, it was attacked by peasants armed with pitchforks, under the impression that the moon had fallen from the firmament! In most places, a widespread shift toward a belief in progress did not occur until the end of the nineteenth century (if at all).

Optimism is never simple. It's surrounded by 'if' and 'but' qualifications. At first glance, the English nineteenth-century philosopher Herbert Spencer appears unshakable in his belief in positive

development, basing his theories on cosmic and biological evolutionary laws. The progress of man and society appears to him to be the result of the great universal law of evolution. But when the *laissez-faire* society he champions ran into unexpected challenges in the form not only of trade tariffs and other competition restrictions, but also measures that made the lives of the poor and oppressed more difficult, Spencer wrote *The Man Versus the State* (1884), stating that if the authorities did not recognize that the free struggle for survival was a blessing, progress would come to an abrupt halt. The human race's development was thus dependent on a conscious adherence to the laws of free natural selection.

Progress vs Decay

There are few visions of a better future for humanity without reservations. Progressive thinking is never limited to asserting or establishing a specific process for progress, it also identifies action that will allow for continued positive development and warns of dangers and disasters that can only be avoided by following a specific, probably difficult, path. Thus the concept of progress is never without a dark shadow of decay, degeneration, and threatening accidents. This is partly due to the fact that the concept of progress says: do this, and things will improve. In the same breath, however, it threatens: if you do not follow my advice, you will suffer misfortune.

Only dyed-in-the-wool pessimists such as Arthur Schopenhauer deny the possibility of truly progressive action. According to Schopenhauer, the pursuit of life is instead captive to the force of blind will, and the only freedom from the will is freedom from all desires and drives. The best way to achieve such peace is through contemplating art, ideally music.

One of Schopenhauer's intellectual successors, Eduard von Hartmann, combined optimism and pessimism in an unusual way. Humanity has truly advanced, he said. Knowledge has expanded. Everyone will one day gain a complete understanding of the essence of existence. Then they'll realize its emptiness and commit massive collective suicide.

From Bury onwards, many books have been written about the concept of progress, but they often suffer from not distinguishing the positive aspects of ideas of the future from the negative; the promises from the threats. The literature on the concepts of degeneration and decay is more limited, yet one powerful modern monograph on the subject, Arthur Herman's *The Idea of Decline in Western History* (1997) is well worth a read.

Herman is an excellent narrator who has amassed a vast amount of material. The flowing report of various ideas of decay is the book's best feature. On the other hand, to my mind, the analyses don't accurately examine what these ideas seek to understand. On yet another hand, Herman rightly emphasizes the close relationship between progress and the concept of intellectual and moral maturity. They're two sides of the same coin. He also observes that those who predict disaster usually point to a path that contrarily leads to a prosperous state. Herman also unequivocally associates what he sees as an Enlightenment doctrine of progress with individualism. He thinks that every non-individualistic ideology has been linked to a doomsday scenario (an idea I find absurd).

Herman produces a long list of villains for his epic of historical decline. Some are more obvious, such as Joseph Arthur de Gobineau, who with his aristocratic racism was a predecessor to Nazism; or Francis Galton, Darwin's cousin, who with the idea of 'social Darwinism' warned of humanity's impending decline unless decisive action was taken to prevent the 'worst specimens' in society from reproducing.

Optimism & Pessimism

Other writers are more refreshing to divulge. Henry Adams (1838-1918), belongs here. He's a historian and author known best for his autobiography, and the brilliant representative of a New England family that produced two U.S. presidents. Adams' ideals of progress were no doubt shaped by people he thought of as mentors, two greats among that list being Auguste Comte, the father of positivism, and Karl Marx. However, Adams drew pessimistic conclusions from both their theories. From Comte's writing he discerned the disintegration of the times, while Marx taught him that industrial society embodied insurmountable injustice. Adams saw his contemporary United States as a decaying society due to its large influx of immigrants and restless modernization. His inner circle, who shared that same belief, dreamed of an arcadian existence where the ideals of the Constitution were alive and well, while in reality the U.S. embraced materialism, which was bringing about moral decay.

Another American, William Edward Burghardt Du Bois (1868-1963), came from a less privileged background than Adams. Yet what Du Bois achieved was remarkable in that he was able to study at Harvard as a black man. Throughout his writing, he devoted himself to the future of black Americans and Africans. One of the bad habits of vulgar (social) Darwinism was to predict the eventual demise of the dark-skinned races. Du Bois flipped the script, stating that it was the whites who were doomed to decline. As it dissolved social ties and culture, industrialization was already bringing signs of such disintegration. But for blacks there was still hope.

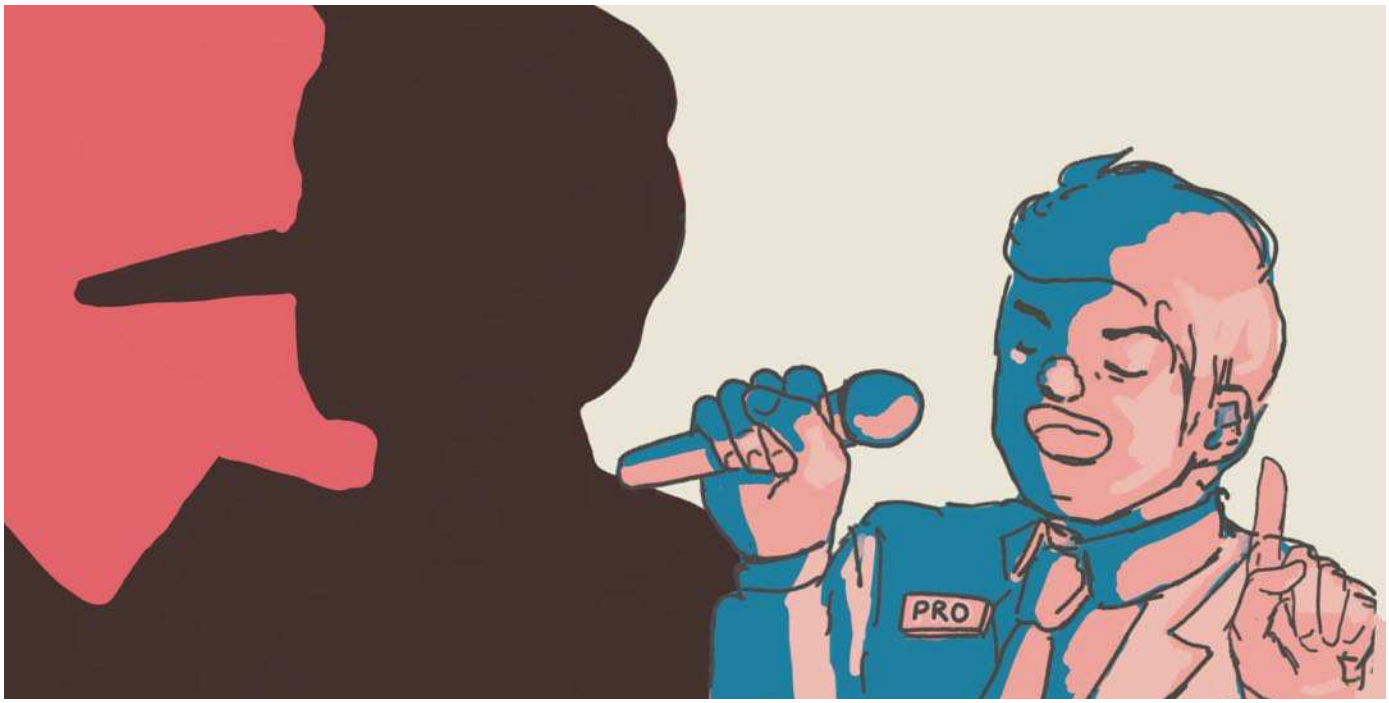
Adams' and Du Bois' discussions of decay are both limited. Both see industrialization as a symptom of decay, and seek salvation in a society where development takes different, non-industrial paths. Both are action-oriented, though: they talk about what needs to be done to avoid impending disasters.

To get both progress and degeneration theories right, the two sides must be combined. The story of human Enlightenment is not a simple heroic tale of light versus dark, but also a tale of power and control, of superstition, and of the desire to win. It's not the story of a unified thinking benignly spreading knowledge and empowering action, but of many different obstacles presenting themselves, in which scientific and technological progress can easily be combined with moral and political decline.

The modern age is frequently described as a period of 'Disenchantment', to translate Max Weber's term *Entzauberung*. Everything that was once sacred is being sacrificed to increased efficiency and scientific rationality. But we must also see modernity's Enchantment. Even our present time, with its own affirmation of progress and fascination with new technology and ways of social organization, demonstrates Enchantment. We can only begin to clearly see where we are when we can view the Enlightenment project through this dual gaze.

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Advertising is Immoral

Peter Gildenhuys says many adverts are saturated with sophistry.

The American burger chain Hardee's is frequently criticised for its ads featuring hyper-sexualized women. Using sex to sell burgers however is not the only way to go wrong when persuading people to buy things. All advertisers are persuaders, but it's possible to go about persuasion in either morally legitimate or morally illegitimate ways. Here I want to argue that nearly all advertisements are immoral.

Usually, when advertising is immoral, it is immoral in the way that lying is immoral. We say too simply that 'lying is wrong'. We mean that it is wrong by default. There are exceptions, but you've got to make the case for them. An individual act of lying may be morally permissible, even mandatory: one must lie to the Nazi officer about the Jews hiding in the attic. However, most advertising is immoral because most of it is sophistry, sophistry is generally wrong, and the circumstances of the production of this sophistry are unexceptional.

The Sophists, in ancient Greece, were wandering teachers who offered instruction on a wide variety of subjects, including philosophy and also rhetoric. According to Plato's dialogues, Socrates didn't really get on with them, partly because unlike him they charged money for their teachings. A common charge was that in teaching rhetoric they were teaching people how to make weaker arguments seem stronger and more persuasive – a very useful skill if you are in politics or pursuing a case in the Athenian law courts, but a positive menace if your main concern is the disinterested pursuit of truth. From this has come the modern sense of a sophist as someone who tries to slickly persuade people of something without caring about the truth or falsity of their claim or whether what they say should persuade. Lying and sophistry are deeply analogous. When we lie to people, we try to get them to believe what they should not believe, and when we act as sophists, we try to persuade them by what should not persuade them.

The practice of sophistry is immoral for the same reason that lying is immoral. Lies and sophistry both involve taking advantage of people, manipulating them, treating them as though they were mere objects and not people with intrinsic value and integrity. We must not for our personal benefit willfully disregard the fact that there are things that are right and good for people to think, do, and be. We do just this when we lie, and when we practice sophistry. In each case, we aim to make something the case which should not be the case.

The Messi Truth

The soccer star Lionel Messi is a sophist, whether he realises it or not. He appears in ads for Pepsi products. These ads use Messi's celebrity to persuade people to buy Pepsi. Surely Messi knows that a picture of him flexing his muscles next to a Pepsi logo doesn't constitute an argument for buying the product? But there he is, flexing away, just the same.

People may say I am being unfair to Messi: they may remind me that I don't know what's in his head. Perhaps Messi does believe that people ought to be persuaded to buy Pepsi products by the ads in which he appears. So perhaps I may not allege Messi to be a sophist without better knowledge of Messi's views on what should and should not be persuasive.

Taken to an extreme, this sort of objection risks making accusations of sophistry, as well as accusations of lying, impossible. But we *must* sometimes make measured allegations about what others think, like one does in a court of law.

Out of a desire to be scrupulously fair, I will withdraw my contention that Messi is a sophist, pending further investigation. Instead, let's suppose that he is a *Socratic Interlocutor* – some-

one willing to be convinced by good reasoning. I will do Messi the honor of treating him as someone who would be prevented neither by pride, nor anger, nor pecuniary incentives, from recognizing his own wrongdoing or ignorance. (In Plato's dialogues, Socrates' interlocutors do not generally meet this standard; but Socrates' treatment of them makes clear that this is the standard expected.)

Let's investigate, then. Consider first the question, should one be persuaded to buy Pepsi products just because Messi appears – sometimes shirtless – next to a Pepsi logo?

Clearly not. This is not because Messi's endorsement is worthless in a general sense. He is arguably the best soccer player in the world; one would be right to trust him about all sorts of matters related to soccer. But one ought not be persuaded to buy soft drinks because firstly, Messi is not an expert nutritionist, and moreover, such experts caution *against* soda consumption. Drinking soda will make you look *less* like shirtless Messi, not *more*. So the ad shouldn't persuade.

Whether Messi *knows* that people shouldn't be persuaded to buy Pepsi products because of his endorsement is a more difficult question. On the one hand, this hardly seems like a borderline case of sophistry. I have little difficulty determining that Messi's ads should not persuade. Can't Messi tell, too? But on the other hand, it may never have crossed Messi's mind to think of himself as being in the business of persuading people to buy products by means of techniques that should not work. He may have simply believed that endorsements are part of the package deal of athletic stardom, and thought no further about it. So, then, perhaps Messi is not a sophist – but only because it's never occurred to him to consider whether he was one or not! But that Messi's image ought not to persuade people to buy Pepsi products is something which any Socratic Interlocutor could easily be convinced by the sort of simple reasoning we've already put forward. If Messi-the-Socratic-Interlocutor is reading this now, he will doubtless withdraw his endorsement of Pepsi products forthwith.

It is easier to tag those creating the ads as sophists. Advertisers are concerned with the effectiveness of their ads, and, sadly, what *does* work to persuade and what *should* do so are not the same. Over and over again, advertisers use the same techniques – celebrity, sex, beauty, fear, shame, jingles, humor – to sell a wide variety of products. These techniques should not persuade people to buy many of these products, since they are not reflections of the product itself, and there's little reason to think the advertisers don't know this.

For another example of advertising sophistry, consider the car salesperson who ties balloons to a used car to sell it. Tying balloons to cars is a tried-and-tested technique for boosting car sales. Here we can be confident that the salesperson *knows* that *balloons* should not persuade someone to purchase a car. She works at a car dealership, is an expert of what makes cars more or less valuable, must constantly value them accurately to do her job well, and would never herself purchase a car just because it has any number of balloons tied to it. Indeed, here we see a good test for advertising sophistry: Would you allow yourself to be persuaded by the technique, given the choice? To shackle oneself to a persuasive technique is to take a risk to act without good reasons. But we must aspire to be the sort of people who surrender to argument, as good Socratic Interlocutors do.

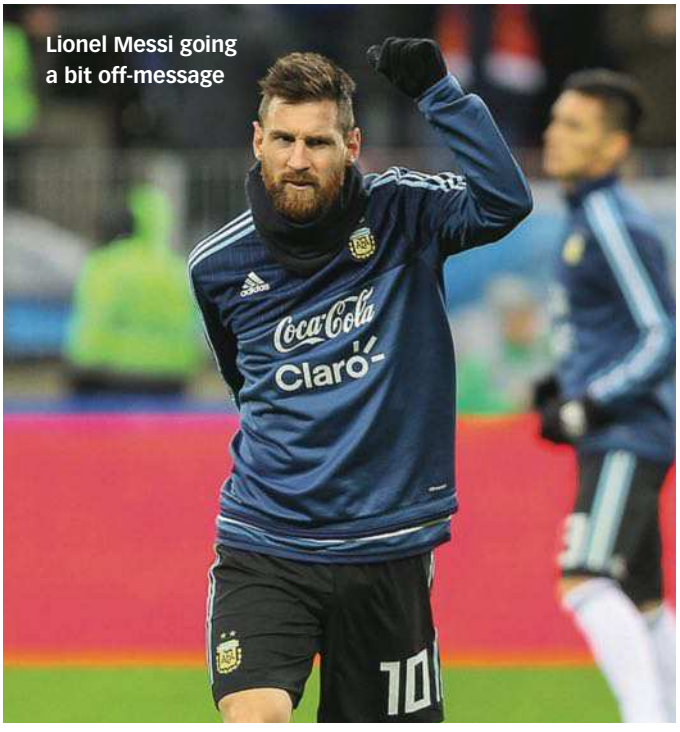
Advertising that is not sophistry is possible, but it would be almost unrecognizable. A video ad that was just a descriptive text, perhaps with some shots of the product for sale, would be permissible – depending, of course, on what the text says and the shots are like. But ads of this sort are vanishingly rare.

Cybersophistry

Many podcasters promote commercial products on their podcasts. Are they all sophists? Here, the situation is more nuanced.

Let us confront Jon Favreau, Jon Lovett, Dan Pfeiffer and Tommy Vietor about their promotion of a home security system on their podcast *Pod Save America*. The promotion is clearly meant to cause people to purchase the system, and the podcasters would no doubt concede that their promotion is meant to be persuasive. Can the rest of the case for sophistry be made here?

Let us first allow that the podcasters constrain themselves to tell only the truth about the product they promote. Still, *should* their audience be persuaded by the podcasters' assertion that a particular security system is "the right way to protect your home"? I submit the answer is no. The podcasters say exclusively positive things about the product, which is bound to give only a partial picture of its features. A biased and partial picture of a home security system should not persuade anyone that it is the right way to protect their home. Moreover, the podcasters have likely made no effort to evaluate the product themselves. Even if they had done so, they are hardly home security systems experts engaged in thorough assessments of their relative value. For an actually useful more reliable evaluation, the *Pod Save America* promotion can be helpfully contrasted with the review of the same system in *Wirecutter*, the *New York Times* product review website. Rachel Cericola, the author of the review, tested not only this one but also several other home security systems. She has over ten years of experience writing about home technology systems. She cites her sources. If nothing else, she is not paid by a home security company to say what



Lionel Messi going a bit off-message

Lionel_Messi © Дмитрий Садовников 2017 Creative Commons

she does about its product. Were she ever discovered to be taking money from the firms whose products she reviews, her credibility and authority would instantly be destroyed. The reason for this is simple: assessments paid for by a firm to evaluate its own products cannot be trusted.

May we condemn the *Pod Save America* podcasters as sophists, then? Let us be no less fair to them than we were to Messi. Socratic interlocutors could easily be persuaded that their promotion falls short of what should be ethically persuasive. I doubt, as I did with Messi, that the podcasters have much contemplated the ethics of their promotions, but they would surely come around to our view.

If, in order to be honest, podcasters and other broadcasters must live up to the standards of a professional product reviewer, then should we not condemn all who promote products on their shows without those standards?

Doing so risks going too far. The salesperson who hawks her wares by loudly declaring their characteristics and prices is no sophist; but neither is she offering an impartial, thorough review. Similarly, a podcaster paid to say nothing but true things about a product is little more than a salesperson's microphone. So if the salesperson is no sophist, then neither is the podcaster. The question of which broadcasters are sophists turns on what, exactly, they say. A broadcaster who non-deceptively announces only value-enhancing features of a product does no wrong, even if they mean to cause people to buy the product. They might defend themselves from the allegation of sophistry by saying, "I mean to supply people with premises for reasoning about the product I'm promoting by declaring true facts about it. I am neither obliged to say true things about the product that detract from its value, nor obliged to say all the true things about the product that are relevant to its value. That may not even be possible, since customers vary in what they value. I could not reasonably be expected to supply *all* the premises my listeners could use in reasoning about whether they should purchase the product. Instead, finding out from me that 'Safe House' [let's call it] is easy to use might prompt a listener who had been hesitant to buy a home security system to further research the product and then ultimately buy it. Someone who is being persuaded to buy the product in this sort of way is not being manipulated, but is instead being respected as a full-fledged rational person. I persuaded them by something that *should* be persuasive: premises in an argument." The broadcaster might also acknowledge that their promotion might cause naive individuals to purchase the product by a route not involving judicious reasoning. Still, they may insist that such a possibility does not undermine her entitlement to supply her listeners with premises for their reasoning about whether to purchase the product. It's the naive listener who is on the hook for allowing herself to be carried along in the way she has.



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So the *Pod Save America* podcasters do nothing wrong when they inform their audience that 'Safe House' is easy to use; but they start to stray when they proclaim that it is "the right way to protect your home." They mean to persuade their audience of this; but their audience should in no way find this proclamation persuasive just because they say it. Moreover, this endorsement taints the other merely descriptive claims they make. Indeed, the claim that 'Safe House' is *the right way* for anyone listening to *Pod Save America* to protect their home is nakedly false as a generalisation. *Pod Save America* has many listeners, and for some, the right way for them to protect their home is a dog.

Sophistry & Sophistication

It might be objected that my position must be flawed because it condemns such a wide swath of practices. Not only is nearly all visual or radio advertising sophistry, but many of my favorite podcasters are also sophists. Salespeople face strong incentives to engage in sophistry; and sophistry is arguably an institutional requirement for trial lawyers. How then could such a common practice be immoral?

Well, how could such an immoral practice be so common?

Part of the explanation of the pervasiveness of sophistry is normalisation: we have grown so accustomed to it that it fails to trigger moral alarm. But more needs to be said about how things got this way in the first place.

One immediate reason why *advertising* remains common despite its often immoral character, is that advertising is not *necessarily* sophistry. As we noted, one may broadcast information about a product intended to persuade consumers to purchase it without engaging in sophistry, at least in the case when one is supplying one's audience with (what ones thinks are) true premises for reasoning. The possibility of ethical advertising makes a blanket prohibition on all advertising problematic. It also provides cover for sophists.

Another reason why sophistry in advertising is pervasive is no doubt that it is difficult to police. Partly this is because sophistry is doubly relative. Sophistry is relative to the persuader's attitudes, just as lying is relative to a speaker's *attitudes*. It is also relative to the *content* the persuader means to persuade us of.

Considering the first type of relativity first: persuaders vary in attitude about what should be persuasive and how persuasive it ought to be, and only some of them enter into sophistry. They will also differ as to what actually is sophistry. The persuader-relativity of sophistry makes it harder to police due to there being no universal, shared standard that could be used to sort legitimate

from illegitimate persuasive techniques. Still, we Socratic Interlocutors may agree about some practices. On trial for his life, Socrates himself refused to placate or supplicate the jury. The Athenians are ungrateful, he said, and pleading for your life is humiliating. Being pled to is humiliating. And both are humiliating because pleading is sophistry, and sophistry is wrong, and everyone knows it, so begging at a trial ought never be convincing.

Defendants at trial may no longer supplicate, but other persuasion techniques are more difficult to police because whether they ought to be convincing depends on what they are meant to be convincing of. This is the second sort of relativity I mentioned: the relativity of sophistry to persuasive content. Rodney King's beating by Los Angeles police in 1991 was filmed from a nearby balcony by a bystander who then sent the footage to the local TV station. At the subsequent trial, the officers' defense attorneys kept replaying the footage of the beating in slow motion. After a while, it looks less severe that way, and its victim less compliant. Of course, viewing slow motion footage ought not convince you of such things, and the attorneys no doubt knew what they were doing. But showing slow motion footage is *not always* sophistry. It might be honestly used to persuade us of something that can only be recognized when the video is slowed down. Here we see how the relativity of sophistry to content makes a blanket prohibition on some persuasive techniques difficult – even techniques often used as sophistry.

A determination of whether any given instance of persuasion is immoral also exhibits a third sort of relativity: relativity to exceptional circumstances. Consider how O.J. Simpson's lawyer Barry Scheck might plead that his persuasion is permissible. Scheck knows how induction works: he knows that the plausibility of a case mounts and falls as evidence is discovered and discredited, bringing rational credence along with it. He also knows that when part of case against a defendant falls apart, much of the rest still stands. But you would not know he knew these things judging by the analogy he made between the prosecution's case and 'roach-infested spaghetti'. Perhaps Scheck might justly say: "Yes, I use the analogy for its effects; it disposes the jury to pronounce my client innocent. The emotion of disgust I trigger in my listeners helps induce them to repudiate the prosecution's whole case on the basis of my finding flaw with some aspects of it – something I recognize that one should not do with inductive arguments. But causing the jury to repudiate the prosecutor's case is my job. Indeed, I must behave as I do to exhibit fidelity to my client's interests. I must do all that is both legal and in my power to secure my client's acquittal. For these reasons, my circumstances are exceptional and my conduct is permissible."

We might indeed look upon the legal institutions that make sophists out of trial lawyers and agree that it is best to allow both prosecution and defense attorneys to persuade however they can, in the hope that their dirty tricks cancel each other out. Whether or not this is the best way to achieve a fair trial, it illustrates how *condemning* an action as sophistry requires us to do more than *identifying* it as sophistry: it requires consideration of whether the circumstances are exceptional. To take a clearer case of exceptional circumstances that make sophistry morally permissible, it would surely be appropriate to convince a Nazi officer not to search the attic for Jews by means of reasoning one knows to be false.

The Deep

Down here is a cageless world
murk, dark
and an underfog.
We slide

until our welds crack.
It was Kant who turned this bathysphere
inside out.
Those fish, he said, are inside
not out. So we pretend,
watch fish bones descend
through sea thick as molten glass
cushion onto silt without a sound.

Down to the still,
where, with slack cables
we test the thrill of weightlessness
lure, like anglerfish
distant candles
shivering on thin batteries.

We learn
but, on our return
find laughter.
The flotilla's having fun
windsurfing, water-skiing
gibing at us.

This is the risk
that we who sink
cannot find the surface
and all these coloured sails
cannot
reel us up.

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George Hopewell studied philosophy at Oxford University and has always enjoyed using it creatively and with humour, publishing poems, short stories, articles and novels, the latest of which explores the weirdness of mind.

We face, then, a trio of difficulties when seeking to denounce an act as sophistry: sophistry is relative to persuaders' attitudes; relative to persuasive content; and permissible in exceptional circumstances. But we must not make the mistake of thinking that the relativity of what counts as condemnable sophistry means that sophistry cannot be constrained. We similarly lack a shared understanding of what's true, but this does not keep us from frowning upon the practice of lying, nor from applying social sanctions to those who lie without special justification. We must be ready to challenge people to defend themselves when we find them employing sophistry, and that includes advertisers.

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Refracted Identity
Dror Rosenski 2022

Gender as Biological Fact vs Gender as Social Construction

Francisco Javier Camacho Jr asks, what difference does it make?

Conservative cultural commentator Ben Shapiro makes quick work of the "gender question:" "Science is certainly not divided on whether gender differences are rooted in biology or culture – the answer is both, but with a heavy emphasis on biology." ('The Left's Doomed Crusade To Erase Gender Differences', *National Review*, 2018) Meanwhile, the feminist philosopher Judith Butler has made a now classic statement of the other side of the argument:

> "Gender is the repeated stylization of the body, a set of repeated acts within a highly rigid regulatory frame that congeal over time to produce the appearance of a substance, of a natural sort of being. A political genealogy of gender ontologies, if it is successful, will deconstruct the substantive appearance of gender into its constitutive acts and locate and account for those acts within the compulsory frames set by the various forces that police the social appearance of gender…"
> (*Gender Trouble: Feminism and the Subversion of Identity*, p.33, 1990)

In other words, to Butler and others, gender is more of a social construction than it is a biological fact. The 'gender question', then, this aspect of the so-called culture wars, is a matter of opposing views about the relative responsibility of society and biology for gendered behavior. The first view says that biological sex largely defines gender, the other that society or culture largely defines it. I will call this opposing pair of views the twin views.

The twin views represent answers – but to what kind of question? Shapiro is explicit here: the gender question is really an empirical question, for it is a proclamation of science that biology is more responsible than society for gendered behavior. And Butler's 'political genealogy' is an analysis of observable gendered behavior: peel away the layers of performance, of convention, of force and coercion, and you will see that nothing is left. But what kind of 'deconstruction' could this be if not one based on observation and experiment? The twin views, then, are taken by their proponents to be empirical claims, vindicated by the scientific method.

This idea is important because it colors the rhetoric we've seen in the gender debate. If your opponent judges you to be unable or unwilling to 'see the truth', if you don't 'acknowledge facts', if you 'just don't get it', a familiar dynamic starts up. The

charge of 'being irrational' will not be far off and it will bring with it the license to dismiss or coerce you to some degree or to call your motivation into question. You will be accused of being guided not by a desire for an objective accounting of the situation, but by your adherence to ideology or doctrine, whether or not you realize it. You will be seen as a crusader of the liberal left, or a bulwark of the conservative right.

Another thing happens specifically in arguments about transgenderism. According to your position in the disagreement, your opponent will accuse you of one of two things. They will accuse you, on the one hand, of prioritizing your feelings over facts – of failing to recognize that 'facts don't care about your feelings'. This sentiment is expressed on t-shirts that say 'I'm fat but I identify as skinny. I'm totally trans-slender'. What it means to say that you are playing fast and loose with facts – that you are to an unacceptable degree guided by feeling – is that you willingly engage in thinking and behavior that does not conform with the facts, that is dishonest or marked by contrivance or performance, up the point of mimicry or stereotyping. This was the sentiment behind a controversial joke made by Dave Chappelle in his comedy special *The Closer* (2021), that TERFs (Trans-Exclusionary Radical Feminists, with whom he claims to sympathize) "look at trans women the way we blacks might look at blackface. It offends them, like *eww*, this ***** is doing an impression of me!"

In arguments about transgenderism your opponent may, on the other hand, accuse you of failing to empathize with people, of being unresponsive to their pain, or inconsiderate of them as human beings. You will then be accused of willingly engaging in aversion and animosity towards them, up to the point of sanctioning harm against them. This is the sentiment behind much of the response to Chapelle, including that by Imara Jones, creator of Translash Media, who says that his comments are "essentially hate speech disguised as jokes"; that they either constitute or license acts of harm, for they "argue that trans people aren't real … and at the heart of the violence against trans people … is the belief by the perpetrators that they weren't doing anything wrong, that is to say, that the person isn't human." (*PBS Newshour*, October 21, 2021)

What these charges, from opposite sides of the debate, have in common is that they are aimed at the opponent's state of feeling. One charge is that feeling is given too much weight, to the detriment of truth, the pursuit of which requires a degree of disinterest, of subjugation of feeling. The other is that a person is 'unfeeling' – that their positive social feeling is underdeveloped or suppressed. These charges are the well-worn armaments in which the proponents of the twin views are draped, and they are deployed at the point at which their opponents 'fail to see the truth', enshrined in the celebrated maxims that 'there are only two genders', or that 'gender isn't a binary, it's a spectrum.'

A Pragmatic Perspective

But does every expression of distaste at, or skepticism of, or confusion about a person purporting to transition their gender constitute the real annihilation of a human being? And does every instance of a bathroom being made gender neutral or a trans athlete being allowed to play on the team corresponding to the gender of their transition warrant the cries that the fundamental order of society is being eroded?

If we have reason to suspect that the answer in both cases is 'no', it is because an assumption built into the twin views is false. My contention is that neither of the twin views are assertions of 'fact' in the sense that they are established by observation and experiment. The twin views are not mutually exclusive empirical hypotheses, so the dispute between them is not a scientific dispute. They are not scientific claims, though they are bandied about as such. The central methodological principle in the tradition of American Pragmatism, the 'Pragmatic Maxim', can help us see why.

The maxim, originally defined by Charles Sanders Peirce and intended by him as a 'method of attaining to more perfect clearances of thought', was stated succinctly by the chemist Wilhelm Ostwald: "In what respects would the world be different if this alternative or that were true? If I can find nothing that would become different, then the alternative has no sense." (Quoted by William James in *Pragmatism*, 1907)

As Richard Rorty – another American Pragmatist – put it, "Questions which have a point are those which meet William James' requirement that any difference must make a difference" (*Philosophy and Social Hope*, 1999, p.58).

Let's apply the maxim to the case at hand. Imagine the world in which it is true that gender is more of a biological fact. Now imagine the world in which it is true that gender is more of a social construction. What, in terms of practical bearings on experience, is the difference? Is there a difference in what is open to observation and experiment, on the basis of which one of the twin views could be affirmed as true? There being such a difference is the basic requirement for a theory or assertion or hypothesis to even count as scientific. You can see, however, that there is no such difference, for across the two worlds in your imagining, both biological activity and social activity will play out in exactly the same ways. Suppose, for instance, that a young bachelor, possessed of an idea of chivalry, the wind of hormones at his back, holds a door open for a woman. Or suppose a little girl cannot abide the disorder of rough and tumble play, and chooses instead to play house, being drawn to its maternal aspect. These actions, like other gendered behavior, and like their underlying biological phenomena, obtain whether gender is more of a biological fact or more of a social construction. It is not as though the reality of the girl's playing, or of the bachelor's action, *depend* upon the truth of one or the other of the twin views, so that if one of the views is true, their actions happen, but if the other view is true, their actions turn out to be mere illusion. He holds the door and she plays house, whether biology or society is more responsible for *the happening*. The twin views are equally consistent with these happenings, as they are with the great body of gendered behavior.

This consistency is, of course, by design. The proponents of either view are trying to say something about gender in general, across all particular instances. And they could not do that if there were some state of affairs, let's call it 'gendered behavior X', that was inconsistent with their view. The observation of gendered behavior X would instead be grounds upon which to reject their view, just as much as an observation of the phases of Venus is

grounds upon which to reject the Ptolemaic model of the solar system, due to being inconsistent with that model. But if no such twin-view-refuting state of affairs exists, then we have an answer to the question of what practical import the twin views have: none whatsoever that could ground an empirical justification of one view over the other. So there can be no sense in maintaining that what we have is a debate between scientific hypotheses. The celebrated maxims are undercut, for we now see that the claim that either view is 'a plain and simple matter of scientific fact' is itself a pseudoscientific claim.

A Practical, Not Theoretical, Distinction

Yet it is not the case that there is *no difference whatsoever* in the practical import of the twin views. There is indeed a difference, and to see what it is, let us, again, apply the maxim. Imagine the world in which it is true that gender is more of a biological fact. Now imagine the world in which it is true that gender is more of a social construction. What, in terms of practical bearings upon experience, is the difference? We've seen that there is no difference *of the sort that could ground an empirical justification of one view over the other*. The difference that *does* obtain is the following. If gender is more of a biological fact, certain actions are appropriate or correct or decent or acceptable, and some, consequently, are not. If gender is more of a social construction, certain *other* actions are appropriate or correct or decent or acceptable, and some, consequently, are not. Which actions? Those at the heart of our ongoing controversies: the use of pronouns, of bathrooms, the classification of athletes, hormonal treatment for minors, etc. The practical difference between the twin views lies not in the type of evidence that backs them up, not in their being alternative descriptions of the constituents of persons, but in the courses of action that they sanction. The twin views are standards of etiquette, by means of which we proscribe and prescribe behavior. They are *norms*, for they represent standards for the correctness or incorrectness of behavior. And insofar as they are *abbreviated* standards, when they are unpacked and considered in light of their fuller role, as guides by which to live, they name ethics.

The confusion is, I think, an example of our tendency to turn matters of practice into matters of theory. Take the frustrated wife, for instance, who fails to see her husband as the process that he is. She fails to see his behavior as only an aspect of his fluctuating tendencies, his state of mind at successive points in time, and his changing beliefs and desires. Instead she reifies his present behavior, attributing substantial, static properties to his constitution, her speculative faculty creating the explanation for the difficulty of their partnership: "He's judgemental, selfish, and superficial." Meanwhile, the enamored, enthralled husband is no less confused. His theorems, of a different hue, to the effect that "She's brilliant, she's just what I've been looking for, she is the perfect woman," prime him for frustration of a different sort when he encounters the conflicting practical reality: her full self. These cases illustrate the *seduction* of theory. It is the invigorating, propelling character of aversion and antipathy that motivates her theorems, and it is the gripping, consuming character of desire that motivates his.

Likewise have the proponents of the twin views been seduced. For it is alluring to suppose that you could hold in your hands the great mass of gendered behavior and assess all of it at once, seeing the line that divides social activity from biological activity, and in seeing the thing for what it is, distinguish once and for all between appearance and reality in this important aspect of human life. And the attempt to resolve the 'gender issue', by means of articulating an ontology [*a theory of what things exist and don't exist. Ed.*] is made all the more alluring by the controversial, moral, and political nature of the issue – the very aspects that tend to activate the dynamic of desire and aversion and so the tendency, as we just observed, to engage in metaphysical theorizing. If insights bring power, then for people of goodwill – honest seekers after truth and justice – the power to realize one's vision in the world by means of espousing a theory is magnetically attractive. But to righteous and exalted courses of action the twin views, as metaphysical principles, can give no aid. The deflating reality is not unlike the philosopher Wilfrid Sellars' description of a phrase that "recommends itself as a useful metaphor... and, like other useful metaphors, has congealed into a technical term." ('Empiricism and the Philosophy of Mind', *Minnesota Studies in the Philosophy of Science*, vol. 1, 1956).

If, then, the twin views, while cloaked in the garb of metaphysical principle, are nonetheless really only standards of practice, then the 'transgender question', cannot be answered by articulating an ontology. It can only be answered by articulating a practice – a scheme for how we should treat each other; of what our society should do in the wake of what are called 'innovations' by some and 'corruptions' by others. For if the twin views only specify standards of etiquette, their proponents cannot appeal to any 'fact of the matter' about gender, any more than people arguing about when someone should send thank you cards or the proper way to make an omelet can appeal to some 'fact of the matter' about gratitude or eggs. But I am not making the relativist claim that any course of action with respect to the issue of transgenderism is just as good as any other. I am saying that there is *nothing beyond* the standards of practice to which we are already committed to which we can appeal, just as there is nothing beyond culinary and social convention to which to appeal in the case of omelets and thank you cards. There is no ontology of gender (or eggs or gratitude) waiting to save the day. From this point of view, we can see the claims that the proponents of the twin views would be entitled to make were they to acknowledge the twin views' underlying pragmatic structure – their reality as standards of practice: that there *should* only be two genders, or that gender *should* be a spectrum.

As far as the practical recommendations that *have* been made are concerned, it seems to me that the situation calls for a response that is much more substantive than either removing a comedy special from Netflix or defending it as a piece of free speech. For the most significant ethical issue here is the violence, physical and psychological, faced by transgender people. So ending that violence should be the principal goal towards which to commit our forces, including the capacity to theorize. The place of theory here should be as a handmaiden to practice, and its use should be a function of what is practically required to reach the goal. I am talking about seeing the violence against transgender people through the lens of public health, and ending



Gaze
Victoria Peng 2022

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that violence by means of the instruments and methods of the discipline of public health. The work has already begun. Cure Violence Global, founded by epidemiologist Gary Slutkin and based upon research showing that 'violence is a contagious disease', employs violence reduction techniques modelled on methods associated with disease control.

Yet in our popular discourse, we have hardly progressed beyond moralizing. Imara Jones employs the wisdom that 'the oak is in the acorn' – that what is latent in trans-skeptical remarks such as Chappelle's will grow into substantive harm. It's the 'broken windows' theory of urban policing applied to the phenomenon of violence against transgender people. But just as there is no straight line connecting relatively minor infractions of the civil code with wanton criminality in the streets, there is no straight line connecting trans-skeptical comments with the view that transgender people are not human beings, or with actions based upon that view. The difficulty for us is that there are probably many very curved lines connecting them.

It is the urgency of the fact that there are imperfectly understood connections between the social ill of anti-trans violence and what conditions it, that should orient planning and strategy towards a *technical* means of curing the ill, as opposed to the generation of metaphysical theories that do no more than enable increasingly technical moralizing. But even a surface understanding of transgenderism should put to bed Chappelle's implied claim that there is something like fakery or mimicry in the basic phenomenon of transgenderism. It's notably cynical to suppose that a person who is trying to be comfortable in their own skin, who is trying to actualize themselves, even on pain of ostracism, social alienation, and violence, is just 'performing' in a show of their own making. Rather, the important truth is that people are being harmed and killed for being themselves.

It is probably not controversial to suggest that violence against transgender people should be addressed through the instruments and methods of public health. But as a society we are a house divided against itself. And our failure to make our response adequate to the task has been due in part to our stopover in the garden of theory, where, floating free of the practical reality, we argue about the metaphysics of gender. We shall have to free ourselves from this last dominion over us – that of ideas and abstractions, the specters in our heads – in order to arrive at the further vistas we know are there.

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Zhuangzi, Language & Gender

Thorsten Botz-Bornstein asks what Daoist sages might have thought about PC.

Political Correctness attempts to discourage expressions or actions that might offend or marginalize certain groups of people. The aim of those who promote it is to spread justice and fairness by making the public sensitive towards vulnerable parts of the population. Coined in the 1980s as an ironic self-criticism of leftists, the term 'politically correct' was swiftly appropriated by other political groups. It would also generate much criticism. It means different things to different people and clearly covers a multitude of sins (or virtues?). Efforts to reform language, especially that concerning race, gender, and sexual orientation, are seen as quintessentially PC. The idea of 'inclusive language' has become an important part of Western culture.The belief is that altering language-use will change people's perception of social reality, and, finally, change social reality itself. Among its more recent manifestations are quite widely adopted changes in the use of personal pronouns and gender terms.

The list of discouraged 'non-PC' words is long and depends on the exact ideology of the person or group you ask, but I want to concentrate here on how this all relates to gender. I believe that a critical reading of PC gender language through Daoist philosophy can be most enlightening. Many transgender or gender-nonbinary people use pronouns different from the ones they were assigned at birth, including 'they' in the singular or 'zhe' and 'zher'. Entirely new gender terms have had to be created to match gender language with gender usage. In 2016, the State of New York issued a list of thirty-one 'protected genders', among which were the terms 'gender fluid' and 'gender gifted', and not only 'bi-gendered' and 'cross-dresser' but also 'pan-gender' and 'androgyne'. 'Gender fluid' means a gender that fluctuates (controlled or uncontrolled) between the other genders, while 'gender gifted' refers to a person who does not *actually* fluctuate but has the mental *capacity* to do so.

There is a spirit abroad in the modern world calling for certain old words to be avoided, and new words to be coined, in order to improve human behavior. The ultimate objective of this reform is to make language match an ideal reality. The sociologist Stuart Hall has called this approach 'extreme nominalism' because to him PC seems to assume that 'if things are called by a different name they will cease to exist' ('Some "Politically Incorrect" Pathways through PC', in *The War of the Words: The Political Correctness Debate*, ed. Sarah Dunant, 1994).

Culture Wars in Ancient China

For another perspective on all this, let's pay a visit to ancient China. Zhuangzi (also written Chuang Tzu), a philosopher who lived in the fourth century BC, was a pivotal figure in the development of Daoism and main author of one of its central texts. He was a language skeptic, which means that he didn't believe language could convey the ultimate truth of the world. In this he opposed Confucian thinkers such as Xunzi who had a vast 'correction of names' project, because Confucius himself had argued that "if names be not correct, language is not in accordance with the truth of things" (*Analects*, Book XIII, Ch 3), adding that "If language be not in accordance with the truth of things, affairs cannot be carried on to success." Early Confucian texts such as the *Analects* and the *Mencius* highlight the necessity of making social roles (that is, titles or names) correspond with their enactment. So in state affairs, the first thing to do is to 'correct terms' because otherwise 'speech will not follow' and 'affairs will not be accomplished'. However, for Zhuangzi, 'names are arbitrary'. For Zhuangzi specifically, human reason sets limits upon everything, and the mind attributes enduring essences to things so that our will can establish something solid around us. Through language, the mind *constructs* a reality, but this is not 'real' reality, but the mind's version of it. Zhuangzi did not believe that language could ever fully convey the world. Here Daoism is opposed to the orthodoxy not only of Confucius, but of the Mohists, Xunzi, as well as some other Chinese philosophers who require clear standards for the use of names.

The School of Names, or School of Logicians, are traditional labels for one group of thinkers who concentrated on the analysis of language. It became notorious for logic-chopping and the invention of paradoxes. Huizi (Hui Shi), the most prominent representative of this group was also, oddly enough, a great friend of Zhuangzi and many arguments between the two have become famous in the history of Chinese philosophy. Huizi saw logic as an investigation of the underlying structure of reality. His approach was in some ways related to that of the Mohists, a group with paramilitary leanings who advised local rulers on how to defend themselves against sieges by invaders. Although Mohism was more opposed to Confucianism than any other philosophical school, Mohists took the reform of language the furthest, and wanted to classify word uses to regularize the way that terms are used in everyday speech. In later Mohist writings, great effort was made to assign precise and unambiguous definitions to words, and technical vocabulary was devised to clarify grammatical and logical features of language. When ambiguity could not be eradicated from ordinary terms, new words were coined.

All these groups wanted clear standards for the use of names to avoid chaos. Against this, Zhuangzi comes across as a linguistic liberal. Chris Joachim said that Zhuangzi "stands out among thinkers, Chinese and Western, for his positive appreciation of chaos" (*Wandering at Ease in Zhuangzi*, edited by Roger Ames, 2016). This doesn't mean Zhuangzi thinks that chaos is best. He does indeed suggest a 'chaotification' of reality, but only of reality's linguistic aspect, which will lead to a better appreciation of the nature of reality beyond language.



Zhuangzi a.k.a. Chuang-Tzu

Daoism criticizes what it perceives as excessive scholasticism, and recommends "to educate the spontaneous energies rather than use [the mind] to think, name, categorize and conceive ends and principles of action"

(*Chuang-Tzu: The Inner Chapters*, trans. A.C. Graham, 2001).

Linguistic liberalism itself does not generate disorder.

Zhuangzi further holds that fixed language standards are, first, unattainable, and second, unnecessary or even bad for communication. Names are dynamic, as the existence of nicknames demonstrates. Daoism also criticizes what it perceives as excessive scholasticism, and recommends "to educate the spontaneous energies rather than use [the mind] to think, name, categorize and conceive ends and principles of action" (*Chuang-Tzu: The Inner Chapters*, trans. A.C. Graham, 2001).

In ancient Chinese philosophy everyone believes in the Dao, the flow of Nature. Confucians believe that within this flow certain essences can be marked off from others and from the rest of the world and given names. They created an elaborate system of moral values based on tradition and familial relationships. Against this, on a Daoist view existence is a process through which life manifests itself as it unfolds, and rules, systems, names, and pronouns cannot grasp this reality. This does not mean that everything is relative because nothing is fixed, and nothing can be spelled out. Daoism does not abandon all standards, but the Daoist sage simply finds that the real world is not a system of rules with permanent correct linguistic distinctions. Daoism criticizes those who believe, as the Logicians do, that the correct matching of names and things leads to knowledge, and that the relations of 'same' and 'different' determine what is real and right.

Does Zhuangzi's position on language reflect some of the criticisms of modern-day Political Correctness? Critics such as John Lea believe that the purpose of Political Correctness is "to induce correct opinion rather than to search for wisdom and liberate the mind" (*Political Correctness and Higher Education*, 2008). More radically, Doris Lessing wrote that, just like Communism, it "debase[s] language and, with language, thought" ('Political Correctness', *New York Times*, June 22, 1992). In recent decades Western philosophy has been obsessed with the power of language. The idea has been widespread that when language fails to represent the world adequately it should be reformed. Political Correctness follows this tendency by arguing that false essences perpetuate error and injustice, and need to be corrected by modifying language. One Daoist criticism of PC might be that it invents new terms not in order to *overcome* essentialist thinking, but rather to create *new* essences. PC does want to overturn our existing linguistic preconceptions about reality, and here it certainly resembles Daoism. However, by concentrating on language, PC merely creates a new reality. It still attempts to grasp this dynamic world by means of language. From a Daoist point of view, although the PC mind passes judgments that go beyond traditional distinctions, it cannot imagine that reality could be different from anything the linguistic mind can grasp.

PC activists don't necessarily say that the new terms they

introduce and advocate are reality. Still, they suppose their language to accurately *reflect* the reality that lies behind it. For Zhuangzi, however, language can never do this, for the simple reason that any reality beyond language is fluid and so not essentializable. There is no fixed thing there. However, reality is not chaos in the sense of incoherent nonsense. The real chaos is rather the petty knowledge acquired by the reasoning faculty, which counts, quantifies, and invents rules and names. Beyond language, there is an ever-shifting kaleidoscope of things, and the Daoist sage attempts to observe *this* reality and not merely the world as shaped by linguistic conventions. Knowledge must be knowledge of the dynamic multiplicity of things, and not of linguistic entities. This is why the *Dao De Jing* says, "Those who know do not speak; those who speak do not know" (Ch.56).

Language has its conventions, but it's only language. For the Daoist, behind the linguistic conventions, there is culture; and culture is 'chaotic', if only because it does not always follow conventions or rules. Culture is dynamic and constantly emerging. We can never say that 'this is always true' or 'this is always false' in a culture because culture is constantly changing. New components constantly emerge, some fuse, and others are rejected. Applied to genders, this would means that gender *emerges* from the culture, or that identities and genders are produced by our ways of behaving and our ways of seeing while we are living in cultures.

Radical Equality

The Daoist idea of the 'equalization of things', were it to be applied to gender, would bring about an equalization of gender on an existential or cultural level. An equalization of gender follows because Daoism wouldn't make statements about fixed gender essences or about the linguistic rules linked to these essences. Daoism would not attempt to equalize gender essences: it would rather talk about how genders exist in culture, also recognizing that the state in which all things are equal is in constant flow. Chapter 2 of the *Zhuangzi* (the eponymous book is the collected teachings of the master),which is called the 'Discourse on the Equalization of Things', suggests that the logicians are "talking about objects which have no definitely fixed contents." Now if objects have no definite content, then genders, as aspects of objects, must also be without fixed content.

Political correctness by contrast encourages us to equalize essences by using equitable language. This is an unlimited pursuit because, in order to be as precise as possible, all essences marked out by language terms (basically, nouns) need to be split up into sub-essences, and these sub-essences must be 'equalized' in turn. New genders, new norms, and new quotas constantly need to be created and updated. By creating a new linguistic reality – for example by inventing new genders – PC produces no less an essentialist view of culture. If we call Person A – who looks like society's traditional idea of a man – 'she', we may believe we have circumvented our personal, subjective preconceptions about what a woman looks like. We might believe we have attained a state of judgmental neutrality, since we are no longer slaves to the 'male looks = male essence' paradigm. However, Person A is still 'somehow' considered to look like a man and not like a woman. This shows one way in which their real life is therefore still different from the essence referred to by the new pronoun. Once again, the reality does not fit the box created for it by language. And inventing a new pronoun just for her doesn't solve the problem either, because her existence is cultural and always enacted in a multidimensional cultural context, and thus more complex than any essence conveyed by a pronoun. Her gender is in fact fluid, not in the sense that she identifies with the term 'gender fluid' (let's say she does not), but in the sense that the reality she presents is fluid – as is everything around her – and no pronoun can accurately retrieve this fluidity. We can agree on certain pronouns because they make sense within the cultural situation in which they are enacted. But we should not agree on them because we believe that they correspond to some essence. Strictly speaking, pronouns should not be *created*, but should always *emerge* though cultural play. Therefore, to recognize the existential state in which all things are equal is not a confirmation of prejudices, but rather a coming to terms with reality.

So what would 'equalization' of genders mean in a Daoist sense? It would mean acknowledging that fixed gender identity simply does not matter. Daoism 'equalizes' genders in the sense of *cultural gender equality*. The only thing that matters is the cultural interaction we have with the person. The interaction should be civilized, polite, respectful… but for the Daoist the use of pronouns can never be 'correct' in the sense that correctness means pointing to an essence.

PC implies the contrary approach because it essentializes gender relations, gender terms, and gender pronouns, then attaches ethical meanings to them. Yet by making gender terms static, it thereby makes them more prone to becoming sources of prejudices and preconceptions, even though the declared aim is precisely the opposite. When it comes to avoiding prejudices, the Daoist (and Zen Buddhist) policy of 'no-mind' is much more efficient, because what can be more egalitarian than saying that gender terms and pronouns do not matter?

From a Daoist point of view, then, instead of inventing new gender terms, one should simply be silent about gender. Culture or civilization will do the rest. Instead of searching for the correct labels for gender essences, Daoism takes the cultural existence of genders at face value. Bringing about such a shift requires a consistent process of 'chaotification'. PC does the contrary: by changing names, it creates new 'reality' through the establishment of new essences.

From a Daoist perspective, not being attached to a 'gendered self' does not mean that one has no gender. Nor does it necessarily mean that just anything goes, and that anybody can change gender at any moment, in a gender-fluid way. A Daoist sage would likely hold that an individual cannot be defined through gender, and that therefore, gender identity cannot be reduced to names or pronouns. Daoism 'chaotifies' the existing linguistic reality of genders, then, in order to grasp a chaotic unity that has no defined limits. For the Daoist, a biological male wanting to be addressed as a woman, and the question of

accepting their request or not, might be matters not of ethics but of aesthetics. And in aesthetics, things (identities, pronouns, etc) are fluid – as fluid as the culture surrounding the people involved. So this 'chaotic unity' might include someone X using a male pronoun when addressing a biologically male Y who wants to be recognized as a woman, except that when X uses 'he', he is aware that Y's maleness is not an essence, so leaving the presumed maleness or femaleness of the person in a chaotic state. He does not attempt to rectify the name, he simply refuses to create a new essence for Y.

Fluid Conclusions

So, what would Zhuangzi have said about gender? My guess is that he would have said, "Since names do not matter, you can call me whatever you want. Call me he, she, or zhe. The meaning of the pronoun emerges each time anew from the cultural context." Daoism believes that all essences, including names, are merely products of the mind. Consequently, genders have no essence: they are only what we believe them to be. And in that case, any language reform becomes redundant.

Zhuangzi would refer to the cultural chaos that constitutes reality as 'nothingness' or 'namelessness'. Laozi has a marked preference for this idea, too. Ordinary people experience the world with genders, values, and races as part of a multiplicity of things. However, this is only the worldly perspective. From the point of view of the Dao, valuations, boundaries, and their accompanying flaws are not real. What is real is the nothingness of genders, values, and races. The true Daoist sees only nothingness, which means that he sees neither color, nor race, nor gender. Ecstatic intuition obtained through sitting in oblivion has made the sage blind to color, race, and gender. And if there is no gender, there can be no 'true' and 'false' genders either.

There is a human tendency to look at the world in terms of good and bad, black and white, male and female, and many more. However, aren't these distinctions always blurred to some extent in cultural contexts? As Hans-Georg Moeller writes, "good and bad prove to be extremely shaky categories. One changes into the other, they are subject to continuous change and reversal" (*The Moral Fool*, 2009). This also applies to genders. Ethicists, logicians, language reformers, and gender theorists want to sharpen the focus on the blurred reality so that male, female, and other qualities become more distinct, more differentiated, and more visible. The Daoist suggests instead that we keep reality blurred and chaotified, and accept the meanings that flow out of the cultural play we usually call 'reality'.

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Dear Teacher

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Wittgenstein Plays Snooker

Peter Mullen reproduces part of Wittgenstein's lost work, *Bemerkungen Uber Die Grundsätzlichkeit Des Snooker.*

(Editor's note: In 1948, Ludwig Wittgenstein, aged 59, paid a brief visit to Sheffield, Yorkshire, in order to study Gemeinschaft *[community] there. One Saturday afternoon when there was nothing particularly interesting on at the pictures, he went into the snooker hall known as The Crucible, where he became instantly fascinated by the play. Following this visit he went again to Norway, where, putting aside his already well-advanced work on the final version of* Philosophical Investigations, *he began a lengthy treatise on the art of snooker. This previously unpublished fragment was discovered down the back of a sofa in the tap room of The King's Arms, Cable Street, Attercliffe, in the summer of 2017.)*

35. I am teaching a friend the game of snooker and he accidentally plays the green ball before the yellow. I remind him of the sequence which must be followed, explaining that this sequence is the syntax or depth grammar of the game. (Remark on the concept of following a rule.)

36. Then he plays a red ball, and the cue ball rolls into a pocket. I exclaim – my exclamation is accompanied by a gesture – "Ah, so you've gone in-off!" (In-Entfernt). My friend expresses astonishment at this locution and replies, "But I thought in English 'In' is contrasted with 'Out'?" I explain that in snooker the language game (Lebensform) 'In-Off' is what is known as an exception to the usual rule-following procedure. I give him a list of such exceptions and add four points to my score. (What does it mean to make a list here?)

37. I say, "The brown is on the blue spot". His face wears a look of unbelief (Unglaubigkeit) and he lifts the brown ball from the table. I explain that lifting the brown is not part of the language game. (But the idea of lifting the brown was meant deliberately as a joke – Ein Witz oder Ein Scherz.)

37.1 He says, "But this spot is not-blue! (Unblaulichkeit). It is only a little black mark on the table!" I explain that here 'a little black mark' means 'the blue spot'. I laugh out loud and he looks offended.

37.2 (Whether my laughter and his being offended are also part of the game?)

37.3 The mistake is always to look for a definition of being offended where we should look for a criterion. Taking offence cannot be defined: it can only be shown. We might make a list of what is shown when one takes offence:

* Frowning

* Leaving the table and sullenly taking a sip of one's beer.

* Ripping the cloth with one's cue – with a grimace. (But the grimace too is also part of the criterion.)

37.4 Imagine this language-game: I say, "That's not just a little black mark, you idiot! It's the blue spot." My friend comes over to where I am philosophising and sticks his cue up my nose. So we say, "Yes, sticking a snooker cue up Ludwig Wittgenstein's nose is also a criterion for an instance of offence-taking."

38. "Ouch!" too is designated part of the language-game here.

39. "But the blue spot is also a little black mark." (Remark concerning the open-textured nature of ontology.)

40. It is a mistake to think of it as being a little black spot or the blue spot (Ein Klein schwartz Punkt oder Der blau Punkt). We should rather look for its use.

41. Is the blue spot still a blue spot in the dark? Questions such as this produce a feeling of giddiness (Schwindelgefuhl). This is a particular sort of giddiness which might be called philosophical (Philosophische Schwindelgefuhl).

42. Compare the various occasions of giddiness which we might experience and note the family resemblance among them:

* Standing on the sloping roof of a house built by Wittgenstein

* Playing snooker with Wittgenstein

* Sitting on the blue spot in the dark, etc

What all these have in common is not a particular sensation. Rather they are governed by the use of the word Schwindelgefuhl.

43. I see a man at the table and he is bending over his cue, taking careful aim, following through, potting (as it might be) a red ball, etc, and I exclaim, "Ah, so he is playing snooker!" Then I see his opponent, who is sitting on the seat drinking his beer, and I say, "He also is playing snooker!"

44. Then someone says, "I saw a man sitting on a bench outside a café yesterday and he was drinking beer. Does that imply that he also was playing snooker?" (What does 'playing snooker' mean here? The inadmissibility of beer-drinking as a criterion for snooker-playing.)

44.1 'Waiting one's turn' is also part of what we mean by the game.

45. Is it possible that you see a brown ball where I see a blue one? We must guard against the bewitchment of our intelligence by our tendency to slip into (ausrutschen, ausgleiten) the ontological mode. Questions of this sort are only solved by asking, "What rule is being followed here?"

45.1 We see that he pots a ball and scores himself four points. "Ah!" we conclude, "So it was the brown ball after all."

45.2 But we object, "Is it possible that I see him score four points where you see him score five?" (Remark on the notion of the infinite regress, unendlich sich ruckwarts bewegen.)

45.3 Cases in which we may be mistaken about whether the ball is blue or brown:

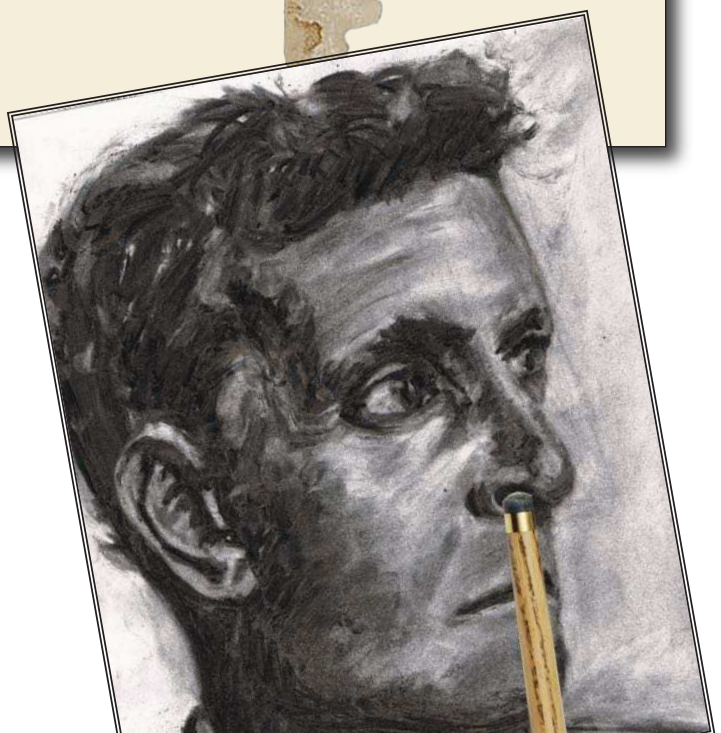
* When my opponent scores himself five points, perhaps only four were due to him? (The concept of cheating, Betrugen.)

* His arithmetic may be very poor.

* The lights went out. (But could we see that the lights had gone out?)

46. But the fact that my opponent is a cheat is not the cause of the ball's being brown (or blue). It is only a proto-phenomenon where we ought to say, "This language-game is being played."

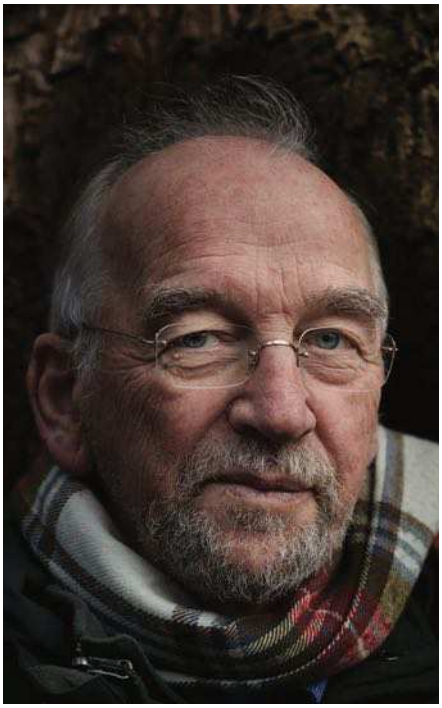
47. The rest is silence.



Original portrait of Wittgenstein
by Athamos Stradis

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Peter Mullen is a philosopher and Anglican priest. His last cure of souls before he retired was Rector of St Michael's, Cornhill, in the City of London.



Henk Manschot

is Professor Emeritus at the University of Humanistics in the Netherlands.

Amirali Maleki interviews him about Nietzsche's approach to philosophy and life

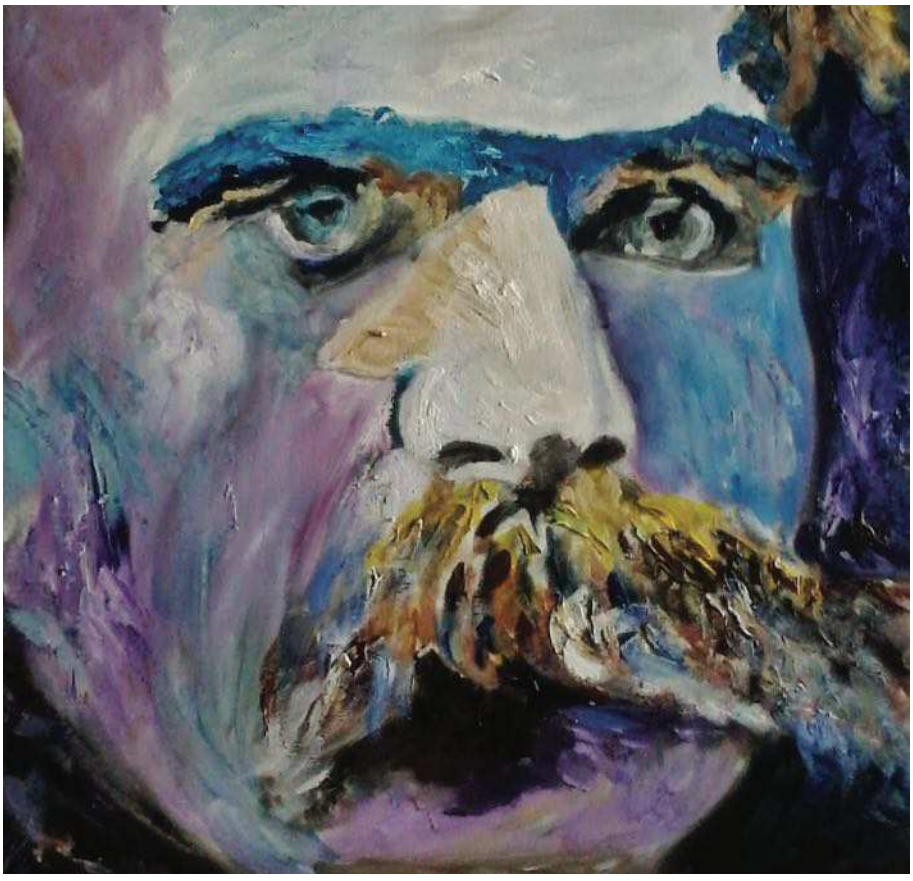
Is Nietzsche's philosophy – or not only Nietzsche's but all philosophers' philosophy – a reflection of their daily lives?
A very interesting question. I think that philosophers, like every human being, are embedded in their daily environment and their perceptions of it. But what makes a philosopher great is that he or she reflects on the images, ideas and emotions he receives from his education, culture, and religion, and comes up with new ways of perceiving and feeling the world around them. This is in particular true for Friedrich Nietzsche (1844-1900). In place of philosophy as an academic study, Nietzsche advocates a personal engagement in which living and thinking are continually connected. As I explained in my book, *Nietzsche and the Earth* (2020), Nietzsche left the academic life and the decadent culture of the city of Basel in Switzerland, and started a completely new way of living for himself, striving for a radical new connectivity with 'the living earth'. I wrote in my introduction that if we want to walk in Nietzsche's footsteps, "a new philosophy of the earth demands of modern humans that they reconnect with the natural world around them in their daily lives." We soon realize, however, how difficult this can be. What does restoring contact with nature mean for our lives? And what new kinds of thought and reflection emerge from it? In an attempt to answer these questions, I followed Nietzsche's life and showed how his way of thinking changed, step by step. Instead of the academic philosopher he once was, he became a walker, writing aphorisms about what inspired him, and defining life as one great experiment.

What does it mean to reject the disconnection of humanity from the planet on which we live? Doesn't everyone interpret life in their own way because the planet, or, as I would put it generally, everyday life, always appears to them in a way that's connected to their society and history?
The question how far and how radically people can disconnect from the ways of thinking and feeling they've inherited by education and socialization is a big one. But philosophy starts when a human being becomes aware of his or her historical embeddedness and takes a position towards it. A *phenomenological* way of doing this, for instance, is to temporarily 'put into brackets' all your settled ideas and try to open yourself as much as possible to what then appears in your perceptions and emotions. In my book I styled Nietzsche's approach to nature as 'phenomenology *avant la lettre*': he was studying his own experience and his response to the world before the study of experience [phenomenology] became an academic discipline. But Nietzsche was well aware that, fundamentally, it is impossible to disconnect yourself in-depth from the ways your life and mind are framed – for instance by your mother tongue. In his words, there is always a text written over the *grundtext* of *Homo natura*.

Don't you propose an approach influenced both by Nietzsche and Spinoza? That is, a unity which considers man to be equal to nature and, so, to Spinoza's God?
Nietzsche admired Spinoza in the first phase of his thinking, before 1881. He wrote about him, "I have a precursor, and a great one." But his enthusiasm didn't stay hot for long. Spinoza became for him a too-rationalistic philosopher, and he considered Spinoza's 'asceticism' as somewhat suspect, and his 'mysticism' incomprehensible. Nietzsche himself never adopted Spinoza's mantra *Deus sive natura* ['God, or Nature'] as far as I know. But in the history of philosophy other people have made the connection between the two thinkers. There are certainly links.

Doesn't Nietzsche try to refute Descartes' abstract rationalism and instead promote the importance of culture and life? Isn't this his response to the industrialization of the world that Nietzsche hated?
Nietzsche radically criticized the Cartesian framework in many ways. He rejected René Descartes' division between body and mind (or soul); thinking in terms of subject/object divisions; and the distinction in value between humans and all the other living beings, including the idea that the human being is 'the master and owner the world'. All these ideas had become incarnated in what to him was 'modern culture'. But Nietzsche's scepticism regarding the dominant culture was accompanied by an intense desire to look at culture in a completely different way, and to create a





Nietzsche painting © Clinton Inman 2022 Facebook at Clinton.inman

life that in his view was worthy of the name. In *Thus Spoke Zarathustra* (1883), he has Zarathustra address all this, raising fundamental questions about morality, religion, and art. Nietzsche tells us that if modern humans want to get back into contact with the earth, we must dare to make the meaning and significance of a 'grounded' human life our central concern. Nietzsche therefore examines modernity's hostility to nature and the core values upon which this hostility is based. His aim is a culture that will once again make the universe, and especially the earth, a guide to humanity. He is not focused on cognitive or rationalist 'truth-finding', he is looking for a more aesthetic, pluralistic, and diverse idea of culture. Art, music, theatre, creativity in general, has to play a fundamental role in the construction of a new culture of 'great health'.

In Nietzsche and the Earth *you consider the 'art of living' in relation to environmental issues. Does living require 'art'? Doesn't the art of living show every person the way he or she is supposed to go? And should everyone follow the same principles?*

Philosophy conceived as primarily an 'art of living' rather than as a discipline of constructing theories and argumentations or as analysis of language and discourses, has been promoted in the last twenty years by philosophers such as the Frenchman Pierre Hadot and others. Even Michel Foucault is related to this tradition in his idea of 'care for the self'.

Nietzsche is one of the inspirers of defining and practicing philosophy as questioning old and promoting new ways of life. A main *motif* in his philosophical practice is to be a provocateur who challenges not only people's ideas but also their gut feelings. Freeing oneself from old ideas and ways of living opens a new space – in his metaphorical language, an 'open sea' – where the person has to find or create his own new direction and image of what 'a good life' could mean.

The strength of Nietzsche's approach derives from the fact that he tries to combine two positions which are at first glance contradictory. On the one hand he is as radical as anyone in standing by the guiding principles that, freed from our past, we must become who we are, live our own lives, and be led by whatever truly does us good and makes us happy. But on the other hand, he leads us to the recognition that this highly personal orientation can reach its goal only if people start to behave as links in the larger process of life, which has not by any means been explored in all its most hidden, sometimes mysterious, potentials.

What affects me personally most is that in his striving for freedom and for a principled lifestyle, Nietzsche takes as his starting point the restoration of his bond with nature. He makes of this a personal experiment, from which comes his commitment to a different future from that to which modernism would lead us. He becomes increasingly sensitive to the happiness of animals, to the circular rhythms of nature, to the beauty of the earth and the insight that humans are interwoven with life on earth as a whole, in countless ways. Making himself a participant in life in the largest sense was therefore not an abstract theme for Nietzsche, but a guiding principle of daily application. There arose in him an intense desire for the 'man of the future' – the type of person whose coming "makes the will free again, which gives earth its purpose and man his hope again" (*Genealogy of Morals*, §24, 1887). Can we keep that hope alive and nourish it without lapsing into naive optimism or passive quietism? The best way to do so, Nietzsche seems to suggest, is not to be led by fear and pessimism, even if sometimes we can see no way forward and are close to being overwhelmed by dire predictions about the future. We need to have faith that coming generations will discover opportunities and set out along roads that today's generations – myself included – cannot see. "At this point just one thing is proper," Nietzsche writes. "Silence: otherwise, I shall be misappropriating something that belongs to another, younger man, one 'with more future', one stronger than me" (*GM*, §25).

This way of thinking illustrates, I hope, what philosophy defined as 'an introduction to a new art of living' could mean. PN

• *Amirali Maleki is a law student living in Karaj, Iran. He has written for many famous Iranian journals, such as* Siyasnameh, *and specialises in the philosophy of politics and law.*



Letters

When inspiration strikes, don't bottle it up.
Email me at **rick.lewis@philosophynow.org**
Keep them short and keep them coming!

Life is a Political Act

DEAR EDITOR: With regard to the article 'The Goodness of Existence' in Issue 149, are the presence of pleasure and the absence of pain the only criteria upon which the goodness or badness of human existence is to be judged? What if you experienced a life full of pleasure but your way of living directly (or indirectly) contributed to the pain of others? And what about the continuation or extinction of humanity itself? Any honest listing of the damages that an individual can inflict upon the environment would need to place procreation at or near the top. So procreation is not intrinsically good as the article concludes. Rather, limiting the number of humans is good when viewed from the perspective of not exceeding critical planetary boundaries. It's even better to limit the lives in question when they create unsustainable carbon footprints while depleting finite resources and contributing to ecological overshoot, resulting in climate catastrophe.

When industrial civilization collapses, the article's conclusion that 'existence is always a benefit rather than a harm' will surely seem dated. Our question should be, what moral obligation do we have at present to coming generations? This is especially the case when the harm they suffer is increased due to our own shortsightedness in bringing them into existence on an untenably overpopulated and thoroughly ravaged planet.

WARD STAHMER
SYLVANIA, OHIO

DEAR EDITOR: Tim Moxham (Issue 149 Reviews) believes that Rutger Bregman's book *Humankind: A Hopeful History* contains an important message: we need to break free from what Steven Pinker calls 'the Tragic Vision' – Thomas Hobbes' dogmatically pessimistic view of our nature. Bregman contrasts it with 'the Utopian Vision', Rousseau's dogmatically optimistic view of our nature and bases his claim that most people are good on this belief of Rousseau's, but transforms it into a hard fact. So I agree with Mr Moxham that Bregman's book makes us think about his own position.

Bregman amazes his readers with the much more optimistic real story that inspired William Golding to write *The Lord of the Flies*. Yet Golding presents the Tragic Vision in his book. Moxham however is impressed by the true story Bregman uncovered, and which portrays the Utopian Vision. Sure, Bregman's research is good; but it's not proof that Golding was completely wrong. There are plenty of examples of shipwrecks whose survivors' cannibalism support the Tragic Vision; but Bregman doesn't name one. Instead, Bregman fills his entire book with all kinds of entertaining examples meant as 'scientific proof' that the Utopian Vision is correct. But all the white swans presented by Bregman are no proof that all swans are white. From time immemorial, according to Bregman, people have been misled by an elite that had an interest in promoting the Tragic Vision: writers (!), philosophers, scientists, and today especially, the media. They tell us we are mostly bad and we can't trust each other, and therefore need an authority with whom we can enter into a contract, to give up some freedom and get (some) security in return. This elite manipulates the essentially good masses. This is the goal of a totalitarian state, as Hannah Arendt described; it distinguished the Third Reich from an 'ordinary dictatorship'. Apparently Bregman's readers are so happy to be told that they are good that they don't notice this conspiracy! Incidentally, to govern ourselves according to Rousseau's ideas is more difficult to explain and implement than according to Hobbes's – as Rousseau might admit.

I find the way Bregman tries to salvage his claim of the progress of humanity after the Holocaust dangerous. Bregman describes Eichmann, its organiser, as a misguided, thoughtless victim of the totalitarian state. He did terrible things "because he thought it was the right thing to do." How crooked and dangerous can you reason? Eichmann belonged to the Nazi elite, was a rabid anti-Semite, and needed only weeks to clear his conscience about his work. He was not 'misled and thoughtless'. But even if he had been, he remains *responsible* for his actions. As do Bregman's readers, whom he leaves with such a good feeling.

BERT ERWICH
THE NETHERLANDS

Life is a frustration, what else could it be?
Some lack purpose and others just don't see.
Some pray to God to alleviate the pain.
But like some animal we just stand in the rain.
That we lack purpose seems very plain:
Our intelligence is wasted on the money game.
We're higher beings with reason and knowledge
Look around you and notice how people live.
You in your comfort, ask what you can do
To lift someone up and help them live like you!
We need a culture which won't end in our demise.
As a species, we should want to stay alive.
My fellow humans, stop and think.
We are part of a world on destruction's brink!
Temperatures rising and the world's full of hate.
Pollution's out of control while politicians debate.
Stand up today and be counted:
Tomorrow might be too late!

CLARENCE UNDERWOOD
ESPARTO, CALIFORNIA

DEAR EDITOR: I found your cover image for 149, adapting 'The Plum Pudding In Danger', a curious choice given the worries about the Ukrainian war preoccupying your opening editorial. We were all surprised by Russia invading Ukraine – but not because the plum pudding is being carved up between competing philosophies. It has already been greedily swallowed whole, by Karl Marx. It doesn't matter where we sit on Marx's scale, we have all tacitly accepted the assumptions of Marx's philosophical model – that mankind is essentially materialistic and that every interaction we make is to

gain or retain economic advantage. As Bill Clinton pithily summed it up, "It's the economy, stupid."

But who's stupid now? Putin wasn't 'supposed' to invade Ukraine: it makes no economic sense. Nor, for that matter, does Brexit. Until we stop looking solely through the foggy lens of economic interactions, we will continue to be blindsided by actual events in the world. There's an irony that, as much as Marxists deplore wealth, they are continually wrong-footed by people who value things other than money.

Robert Frazer
Salford

More Wisdom of Lovers

Dear Editor: I was surprised that none of the authors of the pieces in the 'Love Issue' (PN 148) discussed 'trust' as a factor relevant to love in all its varieties. Humans are social beings: others define us. Most of us are in a range of communities with which we engage most days. Living in these communities requires trust for cohesion. Indeed, it is so pervasive that we are unaware of it most of the time, but the great majority of our interactions are predicated on trust. It is only the news media, which focus mainly on *breaches* of trust, that gives the misanthropic impression that we are a pretty nasty species. Perhaps news journalists should look in a mirror more often. Also, much of our literature and art deals with breaches of trust, and most of us at some time have probably been guilty of this to varying degrees, especially, but not exclusively, when we are growing up (Sorry, Mother!).

When others trust us, they're respecting us, assuming that we will do the right thing in the circumstances – the thing they expect us to do. This respect from others, I would argue, engenders self-respect, and enables us to have, in the Scots phrases, 'a guid conceit o oorsels' and 'pride o worth'. A 'guid conceit' is not self-centred boasting, it's about recognising in ourselves that what we have done was the right thing to do: we can take a quiet pride that we have proved ourselves worthy of the trust of others.

Self-respect in this sense is love for oneself – not the kind of self-love which made Malvolio in *Twelfth Night* sick, but a sense of worthiness: a confidence that 'I am a good person!'. Many studies in psychology have shown that people who are regularly untrustworthy in their relationships have low self-respect. So, I think that to love others sincerely, we have to learn to love ourselves. And we prove this by trusting others and being trusted and fulfilling that trust in return.

When I became a parent, I remember realising that my infant daughter trusted me unquestioningly. Of course, when I had been her age I trusted my parents in such a way, too, and they gave little reason for me to doubt that they would act with my interests at heart. However, there was a moment when, as I held my child in my arms, I realised what trust really meant.

Alasdair Macdonald
Glasgow

Alfons Grieder

Dear Editor: Sadly I have to tell you that a longtime friend of the *Philosophy Now* team, Dr Alfons Grieder, died last year in his home in London.

Originally from Switzerland, he became a philosophy lecturer at City University, London. There he was for years a close colleague of Prof. Peter Rickman, who some readers of this magazine will remember as a frequent contributor. Grieder was an exceptionally good teacher, never boring, with a sharp analytic mind. His strengths lay in his attention to detail and relentless questioning. He was good in almost all philosophical disciplines, but in particular philosophy of science, logic, and philosophy of mind.

A kind man with a mischievous smile, he always enjoyed his cup of tea with a piece of cake at various branches of Café Valerie while discussing some philosophical issues and raising interesting questions. He will be missed very much.

Filiz Peach
London

Still Questing

Dear Editor: In 'The Philosopher with a Thousand Faces' in Issue 147, Alex Gooch argues that the philosophical search for meaning is doomed to failure. He says "the philosopher's life feels meaningful because he or she is on a quest for a final, definitive Meaning that is reliably resistant to all change or refutation," but this quest can never be realized, and, in the end, the sense of meaning conferred by the quest evaporates like a mist in bright sunlight, leaving the philosopher in existential despair.

Having just finished the final edit of a new book, *The Garden Path*, describing the life path of a seeker of truth first in 108 illustrated limericks and then in an essay on the medieval Persian polymath Omar Khayyam, my immediate reaction was "Well, he gets part way, but he misses so much." To quote from the book: "A variety of conflicting feelings follow recognition of the impossibility of any ultimate intellectual understanding of infinite reality, not because a lifetime is too short but because the tools of the intellect are inadequate. At this stage, the would-be seeker of truth is buffeted by emotional winds blowing this way and that, teetering on the brink between dogma and doubt, in danger of falling into blind belief or blind disbelief… Any rationalistic system must fail in attempting to capture the unlimited in its net of concepts and language. For a seeker who sticks to rationalism alone, the inevitable end can only be dogmatism or relativism… Honest seekers of truth eventually reach the limits of rational thought and face a choice." But this is not a binary choice. Rather, it is the point where the Apollonian injunction 'Know Thyself' hits home. Out of the seeking for self-knowledge comes philosophy, science, the arts, and all of human culture. From this perspective, Omar Khayyam exemplifies the only state in which true faith is possible – a state in which the reasoning mind, accepting that it does not and cannot know ultimate truth, still remains open, seeking to drain one last drop from the cup, transmuting knowledge and experience into wisdom and gratitude. The idol of ultimate rational Meaning is transformed into real human meaning.

For those who say we live in vain,
Life's only suffering and pain.
They don't see the joy
Of a boy with a toy,
Or lovers in a summer rain.

A dead man walking passed my way,
I asked him, sir, what can you say?
He gave a quick grin
And said, It's no sin,
To laugh and to dance and to play.

Burton Voorhees
Victoria, BC

Paradoxically Yours – Or Not

Dear Editor: I'm afraid I don't agree with the argument expressed in 'Paradox Lost' by Paul Tissier in Issue 149. Bev and Ali argue that Russell's Paradox isn't

really a paradox. They agree together that there is no answer to the question of whether 'the set of all sets which are not self-membered' is itself self-membered. They refer to that set as N. From considering N, Russell's well-known paradox logically follows: Is N a member of itself, or not? If it is, then it isn't; and if it isn't, then it is! Yet, at what seems to be a crucial point in their discussion, Bev and Ali agree that because any statement about N being self-membered or non-self-membered would not be about anything that *exists*, it follows that there is no real paradox; rather, there is just the appearance of one, which arises "from following through a form of words which purport to describe an actuality." However, I don't think they have found a real flaw in Russell's argument. It appears to me that his argument is one which cannot be logically opposed.

As I mentioned, the claim by Bev and Ali is that any statement about N would not be about anything that exists. However, given that N is apparently (self-) contradictory anyway, Russell surely wasn't asserting that it actually described a truth, or something that exists. Instead, he was pointing out that any attempt at articulating N cannot avoid contradiction.

On the other hand, Tissier's characters do support a statement according to which N is 'neither self-membered nor non-self-membered'. This statement would mean that N is both not-self-membered and also not not-self-membered. That is *clearly* contradictory.

In summary, if there is a way out of Russell's Paradox, I do not think that Tissier has found it.

Peter Spurrier
Halstead, Essex

Self-Censorship vs Insensitivity

Dear Editor: The essay by Mark Couch in *Philosophy Now* 148 on Kant and cancel culture was a lesson on how cringy philosophy can be when subjected to the self censorship of political correctness. Purged of potential trigger words and phrases, is a discussion still philosophical? Cancelling Kant because he proposed something others find offensive, is more offensive than the racism he is accused of. Statements can be offensive; but propositions require consideration. Propositions also require that definitions be provided, and definitions can evoke negative emotion – but the emotion does not nullify the proposition. The white men who originated the movement to abolish slavery did not worry about offending anyone. The 1960s civil rights movement would have been cancelled, had it originated in the 21st century.

Writing that does not challenge conventional attitudes, beliefs and assumptions is less philosophy than sociology. Cancelling ideas and moving them out of the sphere of public discourse is not what philosophy does. And what crime is greater than philosophical cowardice? Kant's place in history, his *philosophical* superiority, if you like, is not seriously in doubt. His philosophical primacy cannot be cancelled because a dubious historical idea is part of his legacy. If a discussion is discussed philosophically, it has philosophical merit by virtue of the way it is discussed. The topics are irrelevant so far as philosophical relevance is concerned. It is also not important what sort of man Kant was. What matters is the sort of philosophy he did. One does not need to be politically correct to be a good philosopher. Civilization is not advanced by people who think non-offensive thoughts. Instead it ought to offend humanity when persons of dubious intellectual pedigree attempt to cancel their intellectual superiors. The audacity of judging Kant! Judge his philosophy so we can compare your intellectual acumen with his! Will the writers of ditties on washroom walls judge Shakespeare?

What is more offensive than a person who fears a debate? If philosophy only promotes a viewpoint, it's advertising.

Robert Burk
Muskoka, Ontario

Dear Editor: In reference to Mark Couch's 'Should Kant Be Cancelled?' (Issue 148), I think cancel culture is one situation which might benefit from something Jesus said: "He who is without sin, let them cast the first stone." It's especially disappointing coming out of an academic environment, given that such an environment is, by the rules of rationality, beholden to evolution, both biological and cultural. It should recognize that, in the process of thought, mistakes are made. That's how natural selection works: by correcting those mistakes.

I come from the 1970s. As far as I'm concerned, Richard Linklater's movie (and love letter to the 70s) *Dazed and Confused* was mostly accurate in its romanticism. I experienced it myself in the 70s Midwest. What's often left out is that you always had a very clear sense of what group you belonged to. It was a time when the N-word dropped out of our mouths like it was nothing (we didn't know any better), and we told stories of guys coming out of the closet as gay like dark tales told around a campfire. But some of us evolved, thanks to the efforts of others who did know better. It just seems to me that the process of getting others to evolve with us should be a little less destructive of lives and/or legacies. Rather, someone makes a movie (say) that contains something offensive to a given group; another points it out; and someone else comes along that makes another movie that corrects the mistake, and we're all better as a society. This is a simple type of cultural evolution that doesn't require any kind of cancellation.

What's both interesting and ironic in 'woke' enlightened minds considering Kant for cancellation, is that they are basically embracing the deontological absolutist ethical standard that Kant himself promoted! By acting as if their own standards of behavior are above our evolution as a culture, they are engaging in the same implicit authoritarianism as Kant did in assuming whites to be superior. They're just posing one form of authoritarianism against another.

D.E. Tarkington
Nebraska

Shooting Sartre Full of Holes

Dear Editor: I very much enjoyed the Raymond Tallis column 'The Philosopher in the Cafe' in Issue 148. In it Tallis takes shots at Sartre's concept of Bad Faith, which I think is a concept worth shooting full of holes. Relating to Tallis's response to Sartre that a person is not in Bad Faith when, in the course of employment they do not consistently express their true selves, there's a great scene in the movie *The Big Kahuna* that makes the point very well. In it the Kevin Spacey character lectures a naive kid that his personal self isn't relevant to the business they're conducting. I only wished I had seen the movie when I was about twenty. I was never a fundamentalist Christian like the kid in the movie, but it doesn't matter. I was just like him in other ways. Predictable that this got me fired from some jobs, and I paid other prices.

David Wright

Buddhist Phenomenology

DEAR EDITOR: I was pleased to see Brian Morris's article on Buddhist metaphysics featured in Issue 146. Our earnest exploration of non-Western thought, theory, and practice is a testament to our dedication to the human experience *in toto*. However, while the article did some justice to so broad and nuanced a topic, parts of it merit fundamental revision.

First, Morris's off-handed dismissal of the potential of hallucinogenic drugs reflects an unbefitting prejudice all-too-endemic in modern academia. While this staid attitude is rather typical, it ignores millennia of shamanic tradition and a burgeoning corpus of academic data. But that's a practical, clinical matter. Philosophically, his categorizing the six Buddhist realms as being fundamentally 'theistic' also requires reconsideration. These realms are not best envisaged as spaces literally inhabited by spectral forms. A more viable inroad may be to view them phenomenologically. In *The Myth of Freedom* (1976), Trungpa suggests that we think of the six 'realms' (quote marks in original) as rough characterizations of experiential edifices arising directly from our own mindsets and core beliefs, erected and clung to with increasing force and fervor as the patterns in and of our lives become increasingly entrenched.

I am quite certain that a deeper exploration of the Buddhist realms will prove to be highly fruitful to any earnest lover of wisdom. Approaching an understanding of them is more akin to having gained empirical knowledge than to have engaged in theistic postulating. They are an attempt to account for the human experience as it actually is. I find it impossible to see anything else occupied by humans, anywhere I look closely enough. Especially when I look in the mirror.

ERIC FAIRCHILD
TAIZHONG, TAIWAN

Freed Speech

DEAR EDITOR: I was deeply dismayed by 'Liberal Individualism and Cultural Decay' by Dr Raymond Boisvert in Issue 146. He uses three examples to explain what he describes as a decay in our culture – sexual promiscuity, unfair business practices, and gluttony – and he pins these on Ayn Rand's Objectivist philosophy.

I'd like to tackle head-on his assertion that Ayn Rand is somehow the cause of any of these phenomena. She was a staunch supporter of equal rights, no matter sex, race, background, or sexual orientation. She supported a woman's right to make medical decisions about her own body, and she viewed sex as one's most important way of expressing yourself to another. But she was very much against sex for the sake of pure pleasure. One must first respect and love one's self and also the sexual partner. She was not about winning at all costs, either. In fact, 'winning' is not part of the Objectivist vernacular. Rand's core principle of 'rational self-interest', which many wrongly equate with 'selfishness', actually means that you behave in a way that is best for you in the context of understanding and respecting other's right to do the same. Violence, cheating, or underhandedness is never acceptable. And gluttony is the antithesis of Objectivism. Collect all you want, build all you want, but it is always earned through creativity and hard work. Even a cursory reading of her work defines these values.

Evidently, Prof Boisvert is only interested in the morals and ethics that speak to his point of view. In his article he failed to show direct cause and effect concerning any of the behaviors he criticises. He also failed to define what he means by 'cultural decline', except for implying that as a society we are pulling further and further away from Christian mores. His lack of objectivity is a distress signal of the actual decay in our education system and society, more than anything else. Hopefully his students can think for themselves and see through his ruse of proselytizing under the guise of education.

DR JEFF THURSTON
COLUMBUS, OHIO



Since his lifelong habit of sitting and thinking coincided with the practices of philosophers, Marvin concluded that philosophy would be an excellent career choice.

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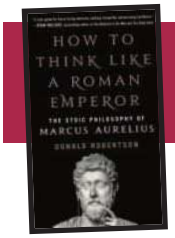
Are Philosophers Stoned?

We know that philosophy is consequential
in seeking answers to human potential
And to see if our presence in the universe
is in fact a blessing or a bane and curse
There were philosophers who were brought to the brink
of insanity, as they were compelled to question, and to think
So, philosophers belong to the kind
that risk stability of mind
That's why they get paid to ask questions daring
And to sit around, drink, smoke, and do a lot of staring.
Yet not only do philosophers sit and stare
They also reflect, contemplate, and think
But sometimes little is produced in that chair
So they must reach for that bottle and drink!

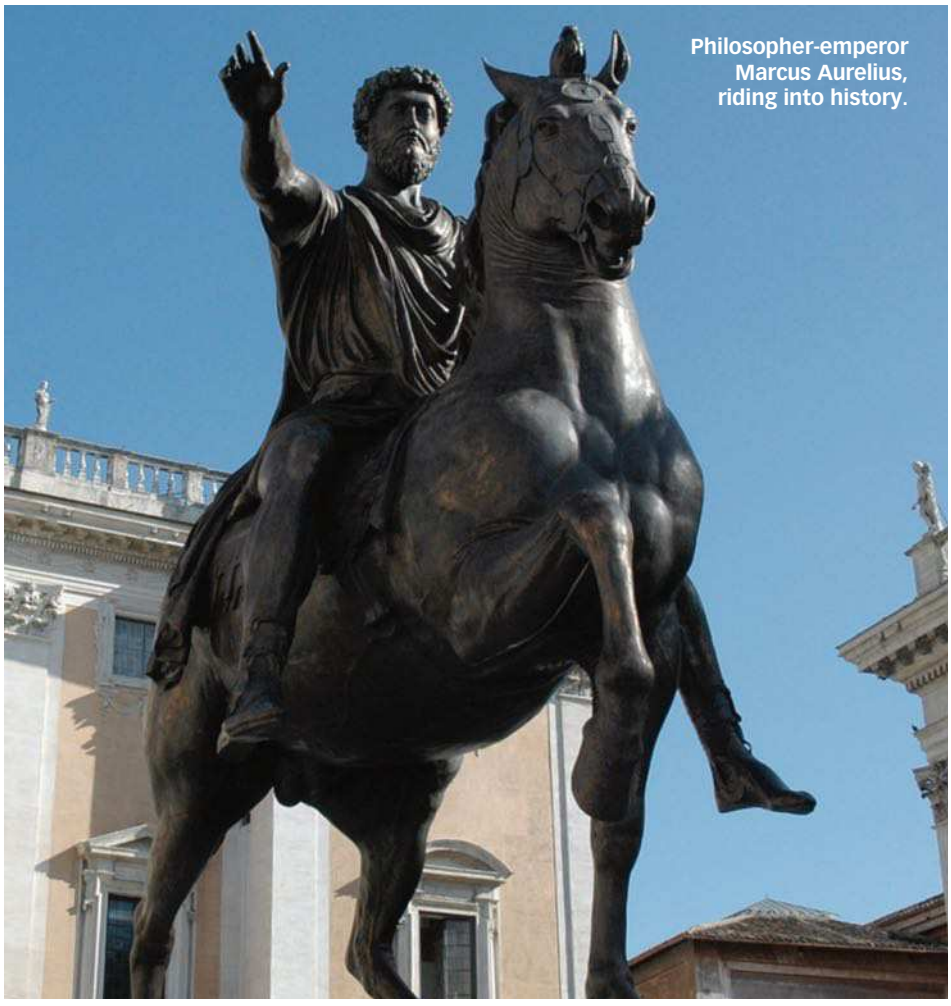
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USA

Books

Vincent Di Norcia thinks about Roman Emperors, **Peter Stone** gives good reasons why inequality is bad, and **Alan Shepherd** scrutinises a new vision of society.



How to Think Like a Roman Emperor by Donald Robertson



Philosopher-emperor Marcus Aurelius, riding into history.

Marcus Aurelius (121-180 AD) was a Roman emperor and a Stoic philosopher. He is perhaps best known for his *Meditations*, which are mostly reflections about his thoughts and feelings. Happiness, Aurelius wrote, depends on controlling how one thinks and feels: "You have power over your mind, not outside events beyond your control. Our life is what our thoughts make it."

In such matters, claims Donald Robertson, the author of *How to Think Like a Roman Emperor: the Stoic Philosophy of Marcus Aurelius*, Aurelius followed the teachings of Epictetus, a Stoic thinker whose teachings focused on self-examination, controlling desires and feelings, considering the consequences of one's actions, dealing with adversity, and accepting one's finitude. Stoics sought to be emotionally imperturbable, and to respond wisely to events they cannot control. Indeed Aurelius, Robertson reports, proposed ways of viewing pain and illness with composure and indifference. His Stoicism was not merely a *theory*, it was an *ethic*, a way of life. To rule an empire, one certainly needed to control one's feelings, especially when facing adversity and violence, as Rome's rulers often did. Feelings, Robertson notes, usually decline in intensity after a few minutes, making them more controllable. Robertson also proposes a framework for evaluating and changing one's behaviour, feelings and emotions, which he calls 'emotional habituation' (p.200).

Epictetus's Stoicism, Robertson comments, is in some ways similar to Cognitive Behaviour Therapy. He notes CBT techniques such as cognitive distancing, self-control, values clarification, decatastrophizing crises, mindfulness, detachment, and reality testing. To accept and deal with one's emotions, he proposes exposure therapy and emotional habituation. Stoics, Robertson notes, accepted Socrates' opinion that no one willingly or knowingly does wrong (p.235). What matters, he says, is how we respond to our feelings, for instance, how we manage our anger. But CBT also leads him to propose a cognitive theory of emotions based on the problematic claim that our emotions are mainly due to our beliefs (p.9). I question Robertson's view that our feelings are mainly the result of our beliefs; rather, our feelings often affect what we believe. Nor are feelings such as fear, disgust, surprise, and anger necessarily irrational, or immoral. On the contrary, anxiety about disease; disgust at something rotten; or surprise at an unexpected threat, all are warnings of challenges we need to face. Listening to our feelings helps us survive – something I'm sure that Marcus Aurelius himself realized. Other Roman philosophers also wrote about these matters. Seneca, who tutored Nero, had a lot to say about anger, kindness, peace of mind, constancy, providence, and death. But Nero ignored Seneca's teachings, and ultimately falsely charged him with plotting against his rule, and ordered him to kill himself, which he did.

Epictetus held the view that a good Stoic has no country, home, wife, or child. On this point Epictetus's Stoicism is fundamentally incompatible with the primary duty of a ruler like Aurelius; namely, to care for the wellbeing of the state and the people. That mandate was implied in Rome's motto – 'The Senate and People of Rome', abbreviated in Latin as 'SPQR' (letters you can still see on Rome's buildings today). Even Niccolo Machiavelli said in *The Prince* (1532) that the solid foundations of a ruler's power are the support of the people, along with courage and an ability to command. The tension between *virtu* and *fortuna* (virtue and fortune) lay at the heart of Machiavelli's analysis of princely rule. *Virtu*, he noted, could help one control *fortuna* at best half the time.

This is an important point for Marcus Aurelius, for Rome was frequently subject to both civil violence and external attacks. In fact, early in his reign, Avidus Cassius, provincial

governor of Roman Egypt, and a notoriously brutal leader, declared himself emperor (Ch.7). This was in effect a declaration of civil war, which could split the empire apart. Aurelius immediately assembled his legions and put down Cassius's rebellion. Although his Stoic meditations may have helped Aurelius personally, the major factors in aiding his reign were his abilities to lead his legions in battle as a general and to govern Rome and its large territories as emperor. Aurelius's bonds with his troops and his capability as a general were key factors in his victory over Cassius, for example; far more important than his private thoughts and feelings. That he was a Stoic philosopher-king may have contributed to the quality of his rule, but Robertson does not make a convincing case that Aurelius's reflections were major factors in his rule of Rome. Indeed, Stoic indifference could inhibit a ruler from responding appropriately to social problems, such as civil violence and foreign threats, problems which Rome's rulers repeatedly faced.

Cicero, in his *Practical Code*, claimed that the Stoics resolved the tension between duty and personal advantage by arguing that what was right was also advantageous (*On Duties*, Part III). Cicero tested this view of the utility of duty by analysing cases in politics and business. He argued for example that practices like undermining the common good, abusing public funds, and crimes such as tyranny and murder, are not only immoral but also disadvantageous, both to the state and to one's rule – as are dishonest business practices. In sum, Cicero's analysis of duty's links to utility was directly relevant to how emperors should rule (and is far more credible than Kant's moral metaphysics of duty). It also suggests that being a good emperor is more than a matter of philosophical nous. In fact, there were good emperors not given to philosophical self-reflection at all. Julius Caesar, for example, was famous for the speed and mobility of his army, for it enabled him to surprise his enemies. Caesar also took good care of the Roman people, making many social reforms. So did Octavian, his nephew, who, renamed as Augustus Caesar, gave Rome four decades of peace. He was indeed one of Rome's greatest emperors.

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Vincent di Norcia is a retired Laurentian University philosophy prof living in Barrie, Ontario. He is currently working on a book of essays on the brain, the self, and hi-tech society. He can be reached at vdn@sympatico.ca.

• How to Think Like a Roman Emperor: the Stoic Philosophy of Marcus Aurelius, by *Donald Robertson, Griffin, 2020, £10.99 pb, 304pp, ISBN:1250621437*



Why Does Inequality Matter? by T.M. Scanlon

EQUALITY MATTERS – BUT only sometimes. Failure to recognize this qualification can generate some bizarre conclusions. Consider, for example, the fact that men in the United States currently enjoy double the life-expectancy of men in Malawi. Surely an inequality of this magnitude cries out to be remedied? But is the *inequality* itself the problem? If that were the case, then the situation could be at least partially improved by decreasing male life expectancy in the US. This illustrates the so-called *leveling down objection* to egalitarian ideals, which dogs the efforts of many political philosophers to construct a theory of equality.

In *Why Does Inequality Matter?* (2018), retired Harvard philosopher Thomas Scanlon examines cases like the unequal life expectancies and seeks to show that the leveling down objection can often be overcome. According to Scanlon, sometimes equality does matter, at least in the sense that some inequalities are objectionable. Indeed, Scanlon describes his task in the book "as investigating the objections to inequality rather than the case for equality" (pp.3-4).

He believes there are multiple objections to inequality. Sometimes, they stem from the inequality itself (Scanlon calls these *narrow* reasons), and sometimes they stem from considerations relating to the inequality – for example, its consequences (what Scanlon calls *broad* reasons). The same inequality may be objectionable for multiple reasons. Scanlon's approach to inequality is thus pluralistic, but there is a unity underlying this plurality. He argues that reasonable objections to inequality "all presuppose some form of relationship or interaction between the unequal parties" (p.9). Is it wrong for one person to have twice as much of something – money, political power, life expectancy – than another? It depends upon what relationship those people have with each other. If both live in the United States, doing similar jobs, then the inequality may pose problems. If one lives on Earth and the other on Vulcan, then probably not. Scanlon could therefore be described as a *relational egalitarian*.

Scanlon's position has close affinities with that of John Rawls – perhaps not surprisingly given that Rawls was Scanlon's colleague at Harvard for many years. In his classic work *A Theory of Justice* (1971), Rawls argued that justice is the most important property of the political, social, and economic institutions and practices governing society – and that a society is just only to the extent to which it treats all of its members in a way that acknowledges them as free and equal participants in a common scheme of social cooperation.

In Why Does Inequality Matter? Scanlon focuses on equality, not justice, but he evokes Rawls frequently. Like Rawls, he wishes to see society constituted in a way that treats its participants as of equal value and freedom. And like Rawls, Scanlon uses the idea of a *social contract* to establish what this requires: a society must not be governed according to terms that any of its members could reasonably reject. Scanlon developed his contractualist position most fully in *What We Owe to Each Other* (1998) a book so influential that it was even mentioned in episodes of the comedy *The Good Place*. *Why Does Inequality Matter?* applies the earlier analysis to the specific problem of identifying objectionable inequalities.

This book raises six potential objections to inequality (he does not claim that his list is exhaustive). In chapter two he considers the objection from *equal concern*. A society must ensure that each of its members enjoys certain necessary benefits, such as housing. Other benefits, such as swimming pools, can be provided at the society's discretion. But a just society cannot provide benefits in a way that does not recognize the equal interests its members have in those benefits. If black people, for example, disproportionately suffer from homelessness, then the system has failed them twice: it has failed to respond to a basic interest in having a home, and it has responded to their interests differently because of their race. The latter is a failure of equality, but not the former. If a community provided public swimming pools, but for whites only, it would fail in equality of concern.

Chapter three takes up *status inequality*. As noted, a society should respond to the comparable interests of its members comparably. It fails to do so when it treats one group of people (women, ethnic minorities, etc) as inferior in status. This denies a group benefits "on the basis of the widely held view that certain facts about them, such as their race, gender, or religion, make them less entitled to those goods than others are" (p.26). Status inequality both directly attacks the self-respect of the 'inferior' group, and falsely inflates the self-regard of the 'superior' group.

Chapters four and five take up the problem of *equality of opportunity*. Most people object to inequality of opportunity, but they often differ as to what remedying this inequality requires. For Scanlon, equality of opportunity requires two conditions, which he calls *procedural fairness* and *substantive opportunity*. When violated,

each generates a distinctive form of objectionable inequality. *Procedural fairness* is violated when some people cheat to obtain goods, such as jobs or university places. A billionaire making a well-timed donation to get his daughter into a top university violates procedural fairness in just such a way. *Substantive opportunity* is violated when people don't have a realistic chance for equality of opportunity – for example, whenever "children from poor families do not have access to schools that would enable them to compete with children of the rich for good jobs, or for admission to universities" (p.93).

Chapter six takes up the fourth of Scanlon's objections to inequality, one grounded in considerations of *political fairness*. Political fairness works similarly to equality of opportunity. It imposes a *substantive* condition; people ought not be denied a chance to have their voice heard simply because they cannot access the means of doing so (due to poverty, for example). It also imposes a procedural condition; people cannot use illegitimate means (such as large campaign donations) to ensure their political interests are favored. The substantive position does not depend upon the specific demands people make on the political system. If rich people monopolized political power for themselves, but did so in ways that were invariably benevolent and never self-serving, they would be violating the substantive condition but not the procedural (p.93).

Scanlon devotes less attention to his fifth objection than the others, so it's a bit harder to make out the contours of the argument, but it seems to involve power. "Inequalities," he writes, "can also be objectionable because they give some people an unacceptable degree of control over the lives of others" (p.5). For Scanlon, coercion – one person being subject to the will of another – is not always objectionable: tax systems are a necessary part of any society (let alone an egalitarian one) and any such system requires enforcement. Coercion can be more or less objectionable depending upon three factors: 1) "one's relation with that person;" 2) "the amount of discretion that this person has in deciding what to tell you to do;" and 3) "the aspect of one's life that is subject to control" (pp.98-99). Enormous inequalities of wealth can lead to some people controlling others in ways that are objectionable according to all three criteria. This is what Jean-Jacques Rousseau had in mind when he wrote that in a free society, "no citizen shall ever be wealthy enough to buy another, and none poor enough to be forced to sell himself" (*Social Contract* II.11, 1762).

Scanlon's sixth and final objection to inequality, taken up in chapter nine, is the most general. He frames it in terms of *unequal incomes*, but it could be applied to any form of inequality. Following Rawls, Scanlon holds that "an institution is unfair if it produces significant differences in income and wealth for which no sufficient reason can be given" (p.139). To justify an inequality, the reason for the difference must be such that no member of society could reasonably object to it. Scanlon believes there are two reasons that could pass muster here. It could be that "these inequalities could not be eliminated without infringing important personal liberties" – such as the freedom to choose your own occupation. Alternatively, it could be that those inequalities "are required in order for the economic system to function in a way that benefits all" – for example, by providing incentives that raise productivity (p.141). Here, as elsewhere, the problem with inequality of income is not with the size of the inequalities, but "with the lack of justification for the factors that give rise to these disparate income levels" (p.150).

In *Why Does Inequality Matter?* Scanlon provides both an interesting philosophical analysis of inequality, and a compelling brief for relational egalitarianism. It is well worth a read by anyone interested in grappling with the massive inequalities in the world today.

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Peter Stone is an associate professor of political science at Trinity College Dublin.

• Why Does Inequality Matter?, *T.M. Scanlon, 2018, OUP, 170 pages, ISBN: 978-0198812692*



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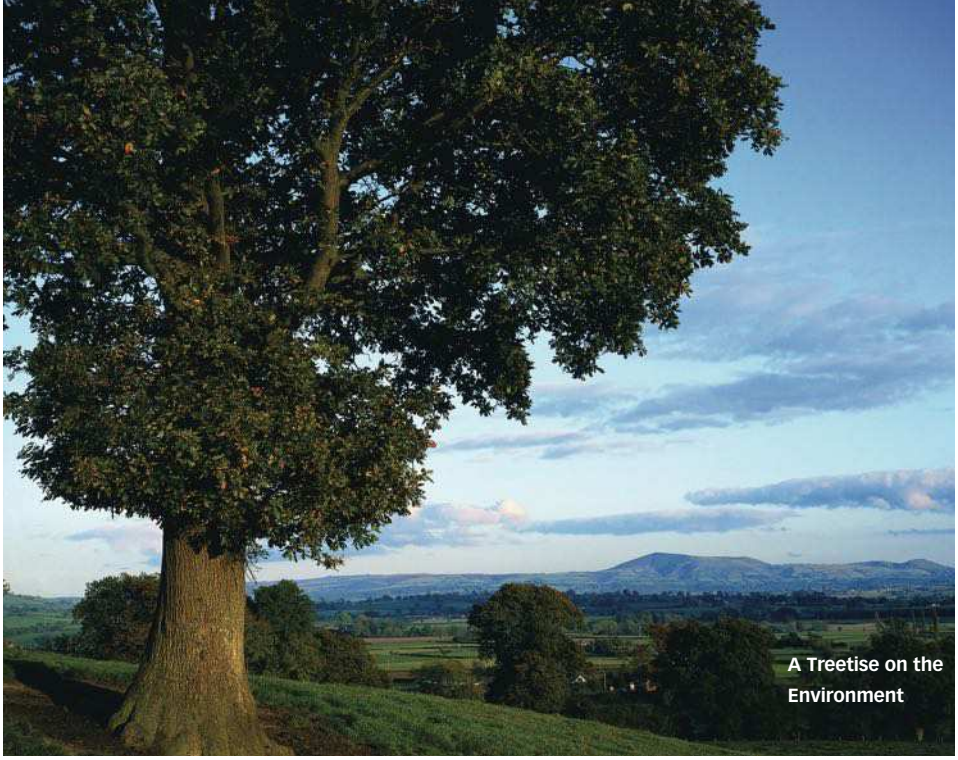


Organicity: Entropy or Evolution by David Dobereiner

Organicity: Entropy or Evolution (2019) is a searching diagnosis of how we became mired in environmental crisis, and a passionate demand for change which takes heed of the mistakes of the past. Anarchist, architect, philosopher, and environmentalist David Dobereiner weaves together his commitments in a book that resists classification. In dialogue, interview, manifesto, letters, and philosophical analysis, it is by turns political, psychological, historical, economical, autobiographical. The reader will find Gilles Deleuze, Jane Goodall, and Vandana Shiva together on one page.

Dobereiner's concept of 'organicity' is the central thread of the book. It emerged from his ecological urban design work as an architect. He sees the world as at a critical stage in a conflict between economic and ecologic thinking, each seeing the other as external to it, with the former inflicting massive damage on the latter. These negative consequences were unintended, and, he argues, followed from the dualistic thinking of René Descartes. Descartes' description of everything outside of the mind – everything physical, including animals – as a mechanism, fuels our tendency to separate us from nature, dominate it, and use it for our own ends. We "mistook the world for something apart from ourselves, instead of understanding ourselves as a part of the natural order."

Over the course of time, mind and God have generally been pushed out of the picture. Mechanistic thinking became dominant. Scientific laws were assumed to be capable of fully explaining the universe. And with the


A Treetise on the Environment

Industrial Revolution, machines came more and more to dominate life, as well as heralding the fateful turn to fossil fuel usage. Dobereiner coins the term 'machinic' to capture this thinking and practice. It is instrumental thinking, solely in the interests of our own species, and, of course, it is hugely successful in the material benefits it brings. But it is blinkered in its outlook, treating everything machinically, unable to comprehend life and living systems as they are. "Machinic is not the same as the modern. It is that part of technology that is life-negating in its effect." Yet the "march of mechanised progress seemed to be leading us to a utopia and now we are told, on the contrary, we are headed for a cliff." Although for Dobereiner the Industrial Revolution was in a sense a step backward, because we moved away from arguably more natural sources of energy, he isn't a Luddite, and does not advocate a return to some bucolic past.

The other principal source of our present problems is to be found in our understanding of human nature as primarily competitive and selfish. This is a warped interpretation of Darwin. But this false understanding of nature and human nature was 'tragically misapplied' to the economy and society. The free market and individualism work together in promoting competition, creating waste, and weakening the bonds of society. Dobereiner, following Kropotkin, instead stresses the importance of mutual aid and collaboration in evolution.

From Descartes and Darwin, then, our institutions and economic system, our attitude to other living things, our way of life, has become overly machinic and 'disruptive of the organic'. We have strayed from nature. How do we address these problems?

The answer for Dobereiner, put simply, is to restore the balance between dominance and mutual aid, between competition and cooperation: "Organicity is a harmonising of the Organic and the Machinic." For the author, a return to nature brings moral benefits in redressing the dominance of man over nature, and involves a revaluation of other animals that will enable us to treat them as ends in themselves. Such ideas have recently been popularised in 'green new deals', for example, with which the book chimes well. But more than this, Dobereiner envisions an entirely alternative way of life. His social, political and economic solutions are fused together in his grand vision of the ideal city – the *Organicity*, or *Matripolis*.

In short, the Matripolis is a reinvention of terraced housing in a pedestrian enclave: it envisions literal terraces, stepped back up a slope, on which rows of houses are arrayed with walkways connecting all residents to common spaces. The terraces are curved around a central plaza, and the house façades inflect towards each other, encouraging interaction. There would be one such structure per five hundred people or so, and they would be networked together. Motor traffic would be streamed outside these structures. But the Matripolis is as much a *social* structure as a physical one. Dobereiner is talking about not only urban planning, but a restructuring of society, politics, and economy.

Politically, each community would be entirely self-regulated and self-governed, as this is our natural condition once freed from "entanglement in Machinic institutions". The communities would operate by direct democracy and assembly to bring about social change for the benefit of all. Developing John Stuart Mill's libertarianism, Dobereiner advocates an anarcho-syndicalism or anarcho-communism. Anarchists trust people to behave in socially responsible ways given the chance: they are "communists who won't wait for the state." He crucially adds to anarcho-communism, "consideration, love and compassion for other lives and living systems we share the planet with."

Economically, we would mostly work within own community. At large, we would "institute cultures of sharing and mutual aid which will largely replace the market economy of waste and addiction." Kropotkin argued that human institutions based on cooperative principles had always been associated historically with the most creative periods, such as the Greek *polis* and mediaeval guild system. And like Mill, Dobereiner advocates a stationary or steady state economy where capital and wealth don't grow. Instead of economic growth being our ideal, our goal should be cultural, moral, and spiritual growth. In this context he quotes the historian Arnold Toynbee: "Nature is going to compel posterity to revert to a stable state on the material plane and to turn to the realm of the spirit for satisfying man's hunger for infinity" (*The Observer*, 1972).

Socially, we would be brought back into a more natural association with our fellows: "In the long run (if there is a long run), people will come together where they live, to share and enjoy each other's company in the presence of other nature in all its neglected variety and complexity. Only then will the economic system be fully transformed in the direction of sustainability." We would moreover be happier in the company of others, and it would provide "an escape from loneliness and alienation so widespread in our consumerist culture." We know we have gone wrong, but our current ways of life hamper us from changing. As Dobereiner writes, what we must do, in short, is to "phase out fossil fuels then restructure society, its institutions and urban containers for long term steady state."

This is a fascinating picture of a way of life which seeks to enable the changes required to establish a sustainable economy where we social animals can cooperate in a spirit of mutual aid in a suitable social space.

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• Organicity: Entropy or Evolution, *David Dobereiner, 2019, Black Rose, £15.65 pb, 180 pages, ISBN: 9781551647289*

Film

GOOD WILL HUNTING

Michael J. Ferreira takes apart a controversial claim about self-education.

In the 1997 movie *Good Will Hunting*, Matt Damon plays the title role of Will Hunting, an undiscovered mathematical genius working as a janitor at MIT. In the movie, Hunting famously drops this hard-hitting zinger on a pompous Harvard graduate student in a bar:

> "See, the sad thing about a guy like you is in fifty years you're gonna start doin' some thinkin' on your own and you're gonna come up with the fact that… you dropped a hundred and fifty grand on a ?#@! education you coulda' got for a dollar fifty in late charges at the public library."

For many folks it was a gratifying cinematic moment. But there's something that makes me uncomfortable in Will's cavalier suggestion that formal education is not worth its weight in cash. It's difficult to put a finger on the worry, but here's a first pass: I'm suspicious of the suggestion that anyone can learn as much on their own as they can in a university environment.



Will's original bar argument

Good Will Hunting images © Miramax Films 1997

Assuming that Will isn't just picking a fight with the grad student, but actually means what he says, we can attempt to draw out what is wrong with his cutting quip. In fact, it provides a good access point for thinking about a constellation of interesting issues around teaching and learning in the information age.

The Good Will Hunting Fallacy

Let's call the disquieting idea that I'm stalking here the 'Good Will Hunting Fallacy':

> Given sufficient time, sufficient access to information, and a sufficiently well-developed capacity to read, the average learner can independently achieve an education equivalent in content and quality to a formal university education.

A fallacy is an error in logic. It's a mistake in reasoning. So where's the mistake here?

To tease it out, I think it's fair to understand Will as claiming that a formal university education is equivalent to an informal self-guided education when measured in content and quality or in knowledge gained. It's not that Will necessarily assumes informal and formal education to be equivalent on all fronts. He might allow that the economic benefits of degree possession may outpace those begotten by uncertified self-learning. So the *Good Will Hunting* Fallacy is specifically about the nature of learning and the quality of knowledge acquired informally versus formally, not about the economic contingencies experienced by degree-possessors as compared to the degreeless. In purely qualitative terms, might an informal, self-guided education measure up to a formal university education?

Will's assertion that it certainly would essentially revolves around an implicit thought experiment. He asks us to imagine a learner who has sufficient time and access to information through the public library, and thereby gains all the knowledge his or her formally educated counterpart does. The strength of Will's case thus depends on how natural or intuitive this imaginary informal learner seems. Unfortunately, despite some superficial plausibility, Will's solo scholar makes for a dubious model, for:

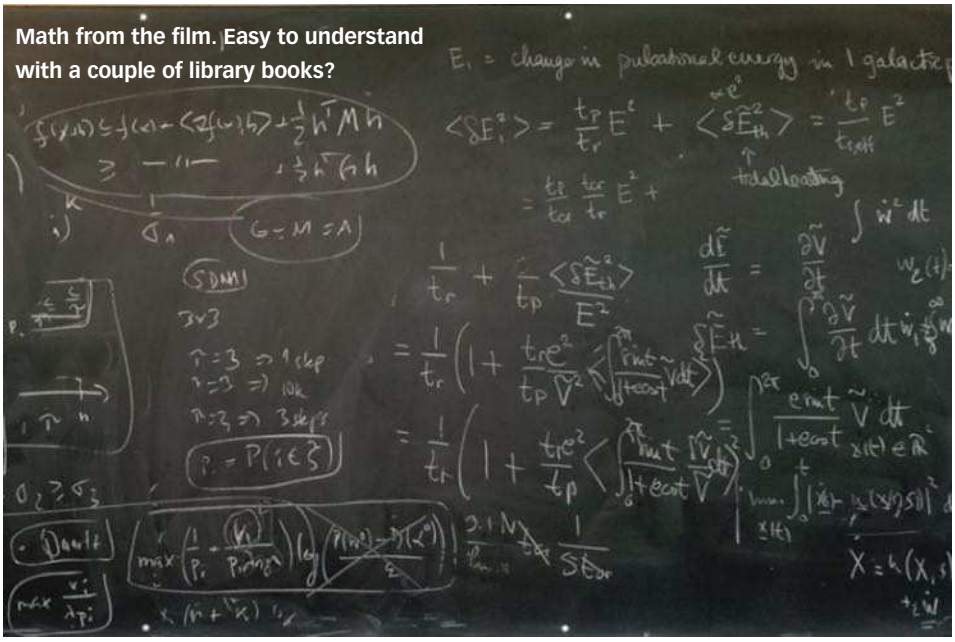
(1) Will's case apparently relies on an *ideal* learner, who may very well be modeled after Will himself. But Will is a genius.
(2) Will's case stipulates a problematic definition of 'education' which arbitrarily prioritizes propositional knowledge over procedural knowledge.
(3) Will's case ignores the social dynamics underwriting education and learning.

Let's take a closer look at how these points subvert Will's argument.

The Ideal Learner

At various points in *Good Will Hunting*, we learn that Will whiles away his free time reading Immanuel Kant and John Locke, drinking coffee and beer, and thinking about seemingly unsolvable problems in mathematics – one of which he goes on to solve later in the movie, to his life-transforming acclaim. To be sure, Will is a fascinating character, and fits the mold of an ideal learner very well. Maybe too well. Probably any teacher will tell you that both Will and the idealized learner in his thought experiment are *extraordinary* idealizations.

Arguing from experience can be perilous, but here goes. In fifteen-odd years of teaching, I've never had a student anywhere near Will in scholarly capabilities. This is not so surprising in itself, but it does underscore the fact that nearly all learners are *average learners*. I've had loads of opportunities to subject average learners to the mind-scorching prose of Kant. Abilities surely vary; but no one usually picks up Kant and smoothly consumes his paragraph-long sentences, breezily absorbing a tight and thorough



Math from the film. Easy to understand with a couple of library books?



Film

grasp of Kantian imperatives or Kantian conceptual categories along the way.

This is not to say that Will Hunting is an *impossible* character. Perhaps there are actual geniuses in the non-fictional world who can independently tackle Kant, cover-to-cover, and understand him after relatively light readings. None of that would help Will's case, though. For Will's claim of formal/informal education equivalence to be right, it would have to be true that *average* learners could assimilate dense, complex, and highly specialized academic content independently, under reasonable time constraints. But it would surely be unreasonable, even naïve, to expect the average learner to grapple with and conquer the arts and sciences on their own.

One apparently crucial missing element for the average non-genius is access to dialogue with a subject matter expert. In a university, this access typically comes with a broad network of academic and intellectual support, including tutoring, professional library support, peer support, academic counseling, and so on. These kinds of support structures are the ubiquitous elements of traditional formal degree programs. They are not *restricted* to formal degree programs, but they are not common or easily accessible outside of academia. Indeed, in the movie Will himself eventually receives the invaluable support of Robin Williams, playing therapist Dr Sean Maguire, as part of his journey of intellectual and emotional development.

Will must not mean us to assume that his imaginary learner has access to all this. If he did, it would no longer be clear at all that he's envisioning the kind of self-guided informal education he seems to be talking about. So we apparently have a dilemma for Will. On one hand, if he is expecting us to assume that the learner in his thought experiment is like *him* – a polymathic genius with an innate ability to comprehend any subject matter – then next to no one is like Will. But on the other hand, if Will is expecting us to assume that his imaginary learner is *average*, it's unreasonable to assume that this learner could independently achieve a grasp of many of the conceptual complexities one grapples with in formal higher learning by reading in a library.

Knowing-That vs Knowing-How

It is uncontroversial, if underappreciated, that a comparatively large part of formal schooling involves learning *how* to engage in intellectual activities rather than simply learning information. Curricula are never confined to simply conveying facts (and facts about fictions) to students. Students do learn that Austin is the capital of Texas, that the Thirteen Colonies declared independence from Great Britain in 1776, that (spoiler alert) Juliet tragically commits suicide, and so on. But rather than just learning that this or that is the case, students also engage daily in *process learning*. We do not just learn the sad narrative of *Romeo and Juliet*, we learn to read, including learning strategies for effective reading and language consumption. Neither do we just memorize the rules of grammar, we learn to write. We learn how best to communicate in writing for a variety of purposes. Beyond learning facts about the world and facts about fictions, we learn how to analyze information and how to synthesize it. We learn how to ask and sharpen questions. We learn how to use imagination to evaluate possibilities. We learn how to reason analogically. The summation of all these capabilities, roughly put, amounts to *learning how to learn*.

Crucially, we learn all this great diversity of *procedural* knowledge – as contrasted with *propositional* knowledge – by emulating teachers and peers. We gain intellectual know-how by assimilating the practices we are introduced to by instructors and other learners, and then by pushing past the limits of our own capacities at any given time. At least this is how things seem generally to proceed for the average learner. However, none of this story of procedural knowledge is any part of Will's story about knowledge accrual.

Taking him at his word, Will seems to think that a capacity to read and remember is in principle sufficient for the accumulation of all the knowledge one could otherwise gain from a university education. By implication, he either excludes the crucial procedural learning component we just looked at, or he thinks his library-learning model somehow incorporates it. But he can't really have either of those without running headlong into another fallacy: It's implausible that the necessary know-how could be gained entirely independently by the average learner. Rather, intellectual know-how in all forms, from speaking to reading to writing to reasoning, is unlocked by sustained and repeated interactions with other minds. The average learner, unlike the Will Huntings of the world, requires active coaching and relentless interactive practice to get there.

Will might reply that in primary and secondary school we get all the scaffolding we need in order to learn: it's the college stuff that we may as well get on our own. But now he'll have to quell the worry raised earlier: most learners are nowhere near the ideal level his argument relies on, even after graduating from high school. Anyway, it seems straightforwardly false to claim that learning how to do complex cognitive tasks with complex sets of information ends with secondary schooling. Intellectual skills continue to grow and sharpen through university, and on into the more arcane halls of graduate and faculty-level academia.


Will with his mentor

So, unfortunately for Will, it now looks like he's simply assuming what he set out to establish: that an informal, self-guided program of education could be equivalent in content and quality to a formal university education. If he can't account for the large swaths of our learning that result in intellectual know-how, then his argument apparently devolves into circular reasoning.

The Dialectical Nature of Learning

I've pointed out the substantive role other people play in our learning. The kernel of truth in the stereotype of the diligent student squirrelled away in the library achieving understanding by the light of their own mind is just the kind of partial truth that make stereotypes sometimes useful and sometimes harmful. They capture part, but not the whole. Family members, teachers, friends and peers at all levels of education are facilitators of both propositional knowledge and procedural knowledge.

In particular, we give short shrift to the teachers and professors of the world when we portray them as walking encyclopedias, as if they were mere repositories of facts. School teachers and professors don't exist just to convey propositional knowledge to us. If that were the case, Will would be right, and we wouldn't need them. A university-age individual certainly doesn't need an expert to tell them that Andromeda is the nearest large galaxy to our own, or that *Wuthering Heights* was written by Emily Brontë. Those facts could be easily learned by a trip to Will's library, or these days, via any smartphone. But the same individual probably does need someone to help them learn how to read a map, how to identify a theme in a literary work, and how to test a hypothesis. Upon reaching university, they will similarly require some help grasping Kant's conceptual categories, or Darwin's theory of natural selection, or the complex historical factors explaining the build up to the American Civil War. Building the conceptual bridges necessary to grasp these kinds of sweeping concepts and theories is an intellectual skill *par excellence*. Good teachers and university professors are expert facilitators of just this kind of mind expansion. Put another way, teachers and professors are arbiters of intellectual know-how. They have the subject matter expertise, and they repeatedly get to experiment with methods for training students in the intellectual skills needed for their discipline. They draw on their accumulated expertise, teaching experience, and concrete tools custom-developed for the classroom to bring their students to the point where they can have an enlightened relationship with the discipline under study.

It's certainly true that undergraduates, graduate students, and professors, spend hours working alone, independently wrestling with and pushing against the current boundaries of knowledge. But that is merely half the story, at most. The other half finds both learner and teacher among other learners and teachers within the seminar room, giving talks to and fielding questions from groups, interacting with a dissertation advisor and/or committee, and so on. The seminar room, in particular, is a place for floating ideas and subjecting them to the unfiltered criticism of peers and intellectual superiors. All of these socially-implemented mechanisms serve as important checks and balances to the individual learner.

While the *Good Will Hunting* Fallacy targets higher-education specifically, it bears emphasizing that the intellectual training that takes place in the seminar room doesn't seem qualitatively different from the learning that happens much earlier in life. In the pre-school room, young learners watch the behavior, assertions, and conjectures of their peers being checked and balanced by the teacher and each other. Even before pre-school it starts at home, where emerging minds create and test simple hypotheses about relationships and roles, and about the physical space they're finding themselves in. No part of this seems to be a robustly solitary or independent process.

My point is not to try to somehow rule out independent learning. Of course self-teaching occurs. But it's easy to ignore or downplay the role competent instruction plays in our learning. Good teachers, at all levels, bring with them methods, tools, scaffolding, and aids that trigger, enable, and support much of whatever conceptual bootstrapping we manage to accomplish ourselves.

It bears emphasising, too, that the learning model imagined by Will is vastly different from most mainstream models of formal education currently being implemented. A crucial difference is evident in the dearth of expertise in procedural knowledge on Will's model. Taking both the lack of expertise and the lack of sustained and challenging dialogue into account, the chances that self-guided, independent learning could converge in results with the formal resource-rich learning in college seem vanishingly small.

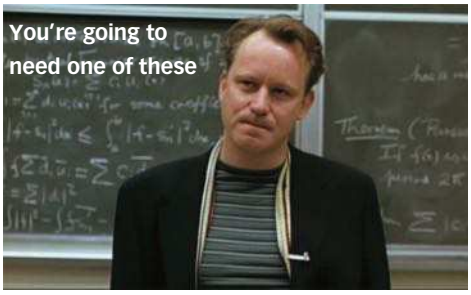
These considerations weigh in favor of rejecting Will's idea that independent, informal learning is essentially equivalent to dialectical (dialogueing), formal learning. On balance, our own limitations and the social realities of learning combine naturally in ways that simply don't justify Will's disdainful repudiation of formal higher education.

Any Further Lessons?

At least one other serious concern merits contemplation:

(4) Will's case ignores the vetting and sourcing of information.

Will seems to assume that the average learner is more or less capable of discriminating legitimate information from misinformation and disinformation among the public library's offerings. There's no real



need, on Will's view, for the intervention of experts, protocols, mechanisms and infrastructure to support the learner through the process of information evaluation. There's no need, that is, for an interwoven system of means to ensure fidelity in the production, transmission, and storage of information.

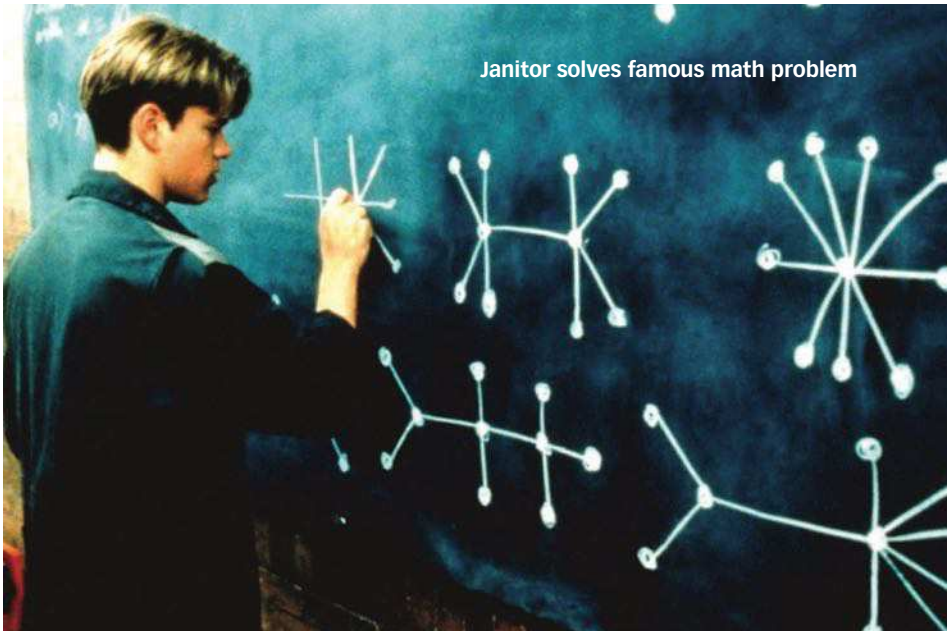
To promote self-guided learning over formal, guided education, is to reject the role that experts play in shepherding information. But surely this role is as important for teachers as facilitating learning. So the *Good Will Hunting* Fallacy invites us to disregard higher education's staff as facilitators of skills and propositional knowledge and then also reject them in their role as stewards of hard-earned, vetted information.

Admittedly, the lack of safeguards around the independent learner may appear slightly more palatable in Will's pre-internet vision of the average learner absorbing knowledge under the trustworthy lights of the public library. The library, after all, seems like a pretty safe place to get one's information. And libraries have librarians to help you sort through the chaff, if necessary. But Will's public library has now been exchanged for a transcendent, intangible, never-ending repository of content that is not sorted into legitimate and illegitimate content. Here I think we see Will's fallacy exposed as a bold-faced declaration of intellectual hubris. The Fallacy articulates the self-confidence, mostly unwarranted in the average learner, which might lead someone to shun and undermine experts, while at once arbitrarily elevating themselves (and their colleagues) to levels of authority. But it would surely be irresponsible to expect average learners to become adept, all on their own, at discriminating among the gigabytes of information thrown at them every day.

So, albeit unexpectedly, Will's fallacy raises some of the pressing concerns around information that have been exploding in the media in recent years. What for example should we expect from real-world embracers of the *Good Will Hunting* Fallacy? Those in the grip of the Fallacy believe, like Will, that they are capable of individually steering themselves through the internet's labyrinths of conspiracies, disinformation, misinformation, alternative facts, and half-truths. We should probably expect that sometimes they would unwittingly cherry-pick facts, leading them to construct and promote world-views that are out of alignment with reality.

This is in fact what we do see. The hubris that leads people to believe that they are capable and reliable individual arbiters of truth surely aided, for example, the Russian election interference efforts in 2016, a large part of which involved discrediting political candidates by propagating misinformation through social media channels. Other usual suspects come to mind too: People who fervently embrace anti-vaccine misinformation, climate change deniers, flat-earthers, and on and on. Just as if the science in these areas has not already been decided by the experts, the fallacy-embracer finds illegitimate sources and arbitrarily makes them authoritative.

Disinformation, and the branches that sprout from it, pose real dangers. Confirmation bias and wishful thinking are not just traits of those in the grip of the *Good Will Hunting* Fallacy. Nevertheless, Fallacy-embracers strike me as more vulnerable, for, with Will's genius out of the picture, an unwarranted self-confidence in one's own ability to vet information and sources surely cripples one's capacity to evaluate those sources and content.



Conclusion

Will Hunting's suggestion that the content and quality of a formal university education can be equivalent to the content and quality of an informal self-guided education, has some emotional appeal. The seductiveness of the idea stems from its simplicity, its blind optimism, and its rebelliousness. But I've argued that the idea amounts to a fallacy of idealization which I've called the *Good Will Hunting* Fallacy.

I have to admit that there is a historically contingent aspect to my argument. Who knows, after all, what independent learning will look like ten, twenty, or fifty years from now? The landscape of teaching and learning is changing rapidly, and it's impossible to predict all of the coming opportunities for improved forms of solo learning. Nevertheless, however learning may evolve, I doubt the average learner will ever be able to independently avail herself of dialogue with subject matter experts, at least to the extent needed to maximize her intellectual skill set.

I also admit that it's possible that Will didn't *really* intend to insinuate that a self-guided library education was equivalent to a formal university education. After all, he must have realized that the exquisite, esoteric mathematical proofs that he completed as a janitor-on-probation were predicated upon the work of prior experts and geniuses, all of whom had their work checked, balanced, and chiseled by academic colleagues, friends, enemies, and students. Will must have understood on some level that there are upward limits on the kind of education you might give yourself at the library.

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Kindly with Kant

Seán Moran imagines Immanuel as an inn-keeper.

Yes, it is real. Kant's hotel is located near the Taj Mahal in Agra, India. Immanuel Kant himself never lived anywhere apart from his home-town of Königsberg, Prussia (now called Kaliningrad, in Russia), so this Indian hotel has nothing to do with him. But when I took the photograph, it started me thinking about what a hotel run on Kantian principles would be like.

If he were involved, we'd expect everything to run punctually, in stereotypically Prussian style. Indeed, Kant's routine was so predictable that the locals could tell the time by when he passed by on his daily walk (they reportedly called him 'the Königsberg clock'). And as guests in his hotel, we would also be looked after very nicely. One of Kant's core ethical rules was that we should never treat other human beings just as means to our own ends. So the hotel staff would be required to treat residents as autonomous individuals whose dignity ought to be respected at all times, not merely as anonymous income streams. People staying in the hotel would be honoured guests to be welcomed and cosseted rather than faceless nobodies to be barely tolerated in the interests of profit. In fact, it seems that any good hotel would treat us in this Kantian way.

But what if it doesn't live up to our expectations? When things go wrong, how can we encourage good customer service from a hotel while still keeping our own actions in line with Kant's ethical imperatives?

The direct approach would be to summon the manager, explain our dissatisfaction, and state bluntly what actions we expect them to take. This line of attack has the merit of simplicity, but it marks us out as a 'Karen' or a 'Kevin' – an entitled first-world folk-villain, increasingly the subject of internet scorn (apologies to *Philosophy Now* readers called Karen or Kevin). And although our assertive actions may well lead to surface compliance by staff, they could also breed resentment, even sabotage, given half a chance. Can you guarantee that no waiter has ever spat in the soup of an obnoxious customer? Or that no receptionist has ever allocated the worst room in the hotel to an impolite guest?

If we are to be consistently Kantian in our own behaviour, and not just demanding of Kantian behaviour towards us, the solution is straightforward: we ought to treat the hotel staff as fellow human beings. For instance, we shouldn't demand service in a brisk (or brusque) way, but should instead cultivate warm, authentic human interactions with staff. If we don't want to be treated as faceless customers, we must in turn pay attention to the faces of the service workers – and to their name-badges. We look them in the eye, address them by name in a friendly manner, and establish an equal connection between human beings rather than a hierarchical relationship between a haughty customer and a subservient worker. This is pragmatically a good idea, for it increases our chances of decent service; but more significantly, it recognises the fundamental humanity of the hotel staff. On a Kantian analysis, it is this humane element that has the moral clout, for to be warm to staff only for strategic reasons is again to treat them merely as means to an end.

Let me give an example. I once stayed in a down-market hotel near the *Périphérique* in Paris. It was out of season, so I knew that my street performances on the flute wouldn't bring in much money – hence my need to economise. Having paid for 'room only', I wasn't even entitled to breakfast.

Cheap as it was, I definitely won't be returning to that hotel. I hadn't noticed the bed-bugs when I settled down to sleep, but I certainly felt their presence when I woke up in the night, itching, and covered in red marks.

My problem was how to bring this incident to the hotel's notice, and ideally receive some sort of fair recompense, without turning into a Kevin. So in the morning I emptied out the clear polythene bag that had carried my toiletries on the flight to Paris and captured a few choice specimens of *Cimex lectularius*. This wasn't hard to do, since they were bloated after a decent meal, having feasted on me through the night. I took them down to Reception and waited until there were no other guests about. "*Bonjour, Monsieur*," I said. I passed my groggy specimens to the receptionist and announced: "The bed-bugs have had their free breakfast, so…" After a moment's thought, he figured out the unspoken implication, and smilingly offered me breakfast by way of apology, "*avec les compliments de la maison*."

I could have been nasty about the incident, and demanded more, perhaps even insisting on a full refund, but I saw the funny side of things, and the solution worked for me on a human level. Bed bugs are not dangerous, after all, just an itchy nuisance. And it allowed me to give a new punchline to the old philosopher's joke (which needs to be said outloud):

> Philosopher: Have you read Marx?
> Street Philosopher: Yes, it's the bed-bugs.

Sublime Phenomena

Although he would have missed Königsberg, Kant would surely have enjoyed seeing the Taj Mahal. Except that he wouldn't be seeing the real Taj Mahal, only its *appearance*. Kant argued that behind the visible world – behind 'things-as-they-seem-to-be' – lies a realm of 'things-in-themselves' (*Dinge-an-sich* in the German). Our senses only allow us to access the 'phenomenal' world – the world of appearances, or 'phenomena' in Greek – and not the real, 'noumenal' world that actually underlies it. So, the noumenal Taj Mahal (the *Taj-an-Sich*, as we might say) is forever out of reach. Even so, the Taj Mahal as it appears is worth seeing. We might say it's phenomenal!

The back-story only adds to its appeal. The Moghul emperor Shah Jahan had it built around 1648 as a mausoleum for his favourite wife, Mumtaz Mahal – it's a monument to his undying love for her. And as well as the official romantic story, there's the national symbol story, and the wealth-generation, job-creation stories, although the ordinary resident of Agra doesn't seem to have benefited from the gate receipts at the Taj – unless those folks washing clothes on a rock in the Jamuna river are waiting for their state-of-the-art washing machines to be repaired. There will also be your own personal story the next time you visit it.

The mere appearance of this marvellous building, together with our knowledge of what it represents, is enough to awaken both sublime and beautiful feelings in the sensitive soul. Kant himself classifies agreeable aesthetic experiences in exactly this way in his paper 'Observations on the Feeling of the Beautiful and Sublime' (1764). He further subdivides 'the sublime' into three categories: "I will call the first the terrifying sublime, the second the noble, and the third the magnificent." On this



PHOTO © SEÁN MORAN 2022

classification, the Taj Mahal surely belongs under the heading 'magnificent'.

Robert Hicks helpfully links the Taj Mahal with Kant's classification:

> "To appreciate what Kant may have been struggling with in his attempt to explain our experience of great art, we need only contemplate the blend of sublime and beautiful feelings aroused by works of artistic genius such as… the Taj Mahal: we respect such works, we find our imaginations staggered by them, and yet we love them with a beautifully familiar affection."
> (*The Journal of Aesthetics and Art Criticism*, 1995)

I know what he means.

We should not be too precious about such elevated feelings, though. If you visit it, you will only be able to stand and stare and drink in the magnificence of the Taj for a few minutes before an enterprising local, in the hope of a tip, will start advising you about good locations to take photos, or invite you to sit on the 'Lady Di Bench'.

The Taj Mahal is such a familiar icon that I felt hungry just by looking at it. This is a clear case of Pavlovian conditioning, since back home in Ireland I've often dined in Indian restaurants with a picture of the Taj Mahal on the wall. This psychological association between the Taj and the imminent arrival of spicy food is triggered even more strongly by being in the presence of the actual (though still only phenomenal) masterpiece than by kitschy images in restaurants. However, perhaps these interpretations of the Taj Mahal enable us to triangulate towards the real building – the *Taj-an-Sich*.

What of Kant's own writings as works of art? On his own criteria they fall flat: even his biggest fans would not typically describe the *Critique of Pure Reason* as 'beautiful' or 'sublime'. (When I was doing my Master's in philosophy at Queen's, my tutor tried to put me off studying the *Critique*: "There's no such word as Kant", he said in his Belfast accent. I'm glad that I politely ignored that particular piece of advice.) There is however a work of great power and beauty hiding behind Kant's turgid prose and difficult, abstract ideas. It's a pity that Kant didn't allow his warm personality to shine through in his writing. He could be a sociable man, and "his lecturing style, which differed markedly from that of his books, was humorous and vivid, enlivened by many examples" (*Britannica*). Vividness, examples of what he's writing about, and humour, are all missing from his *Critique*. This is why it is such hard-going.

And what of the Hotel Kant, Agra? Alas, I stayed in a different hotel, so I cannot judge it either as the phenomenon or as the thing-in-itself. As long as the 'Information for Guests' is free of Kantian prose, and, more importantly, the beds are free of *Cimex lectularius*, it might be worth a stay. Tell them that Kant sent you, and you were hoping to experience 'the moral law within' their staff, and the 'starry heavens above' the Taj Mahal.

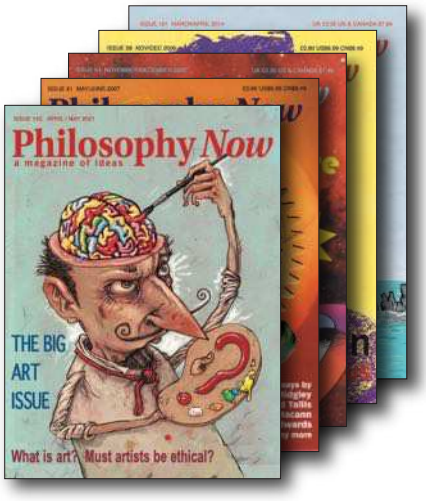
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Seán Moran teaches grad students at a new Irish university called the SETU. He is also professor of philosophy at one of the oldest universities in the Punjab.

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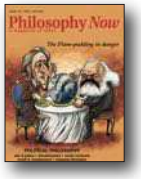
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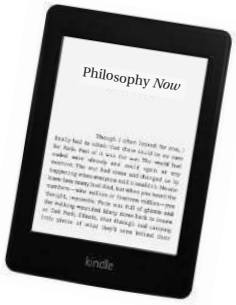
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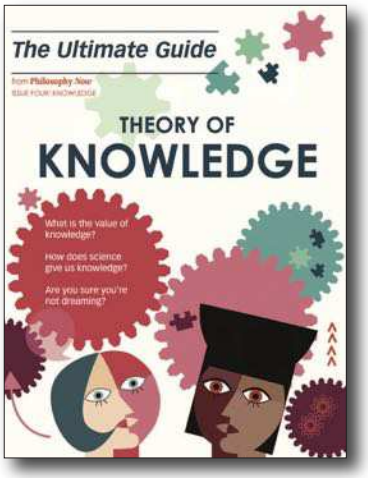
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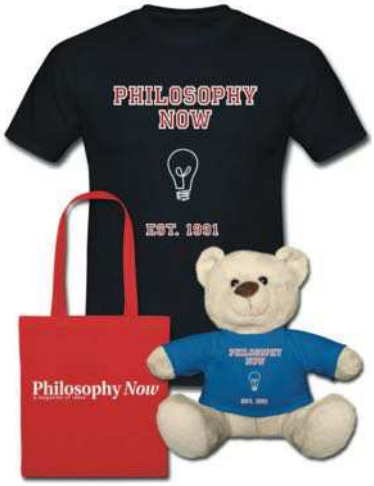
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Tallis in Wonderland

An Unholy Trinity

Raymond Tallis reflects on the man in the mirror.

Philosophy has many things going for it. Not the least is that it doesn't require expensive equipment. Even the armchair – that iconic piece of furniture invoked by those who denigrate philosophy – is dispensable. Philosophers worth their salt can do it standing up or while walking the dog. This said, the rewards for mobilizing even a modest amount of equipment are disproportionate to the outlay. Consider what can be unpacked about our nature with the aid of a humble mirror.

I have recently spent a lot of time looking at myself in the mirror. This is not out of vanity on my part – which would be best served by banning all mirrors from my vicinity. While my gaze has been directed at a bald-headed, grey-bearded individual, it is not a particular entity that I seek in the mirror, but a general type. Or rather types, in the plural. More precisely, a generic three-in-one, an Unholy Trinity, in which are united a Thing, a Beast, and (in my case) a Bloke.

The Thing

Thing? There is no doubt that what I see before me, apparently as far behind the mirror as I am in front of it, is a material object. This object obstructs the light and bounces some of it onto the mirror, where it heads for my eyes, so that I can see what I usually call myself.

There is much else that is thing-like about this humblest member of the Trinity. Those lower limbs sheathed in black corduroy leave depressions in the carpet just like the chairs and tables and other solid objects that surround him. Further evidence of the physicality of the figure in the mirror is to be found in the pressure marks imprinted on chairs and cushions and other items to which he has recourse when he wishes to take the weight off the aforementioned legs. His massive participation in the gravitational field is also evident to those who carry him to a place of safety after they have found him in a state of collapse. When he walks to the shops or squeezes a dishcloth, Newton's Third Law of Motion ('Action and reaction are equal and opposite'), is applied to both parties to the action without fear or favour. And the interchange of heat is equally democratic: when he deposits his hindquarters on a cool surface, they donate some of their warmth to said surface strictly in accordance with the Second Law of Thermodynamics.

The Beast

Next up, the Beast. It has properties not seen in the inanimate part of the universe (which is most of it). The most arresting is that, by interacting with part of nature, the Beast has, from its beginning in the maternal womb, assembled itself by appropriating its environment. To this extraordinary achievement Humberto Maturana and Francisco Varela gave the term '*autopoiesis*'.

The processes by which organisms put themselves together and subsequently curate what they have assembled, are extraordinarily complex in any living organism; but in specimens of exotic megafauna such as your columnist they're even more mind-boggling. They operate at the level of the cell, the organ, the system, and the whole body. And in addition to the visible activities – such as eating and defaecating, drinking and urinating, shivering and sweating, self-propulsion towards this and away from that – there are innumerable goings on, most of which are unknown to either Beast or Bloke. His beating heart, gurgling gut, breathing chest, and creaking joints give away little of the events beneath and within his skin. Countless micro-agents – enzymes, first- and second-messengers, hormones, to name but a few – regulate every aspect of his bodily chemistry in the battle to maintain the precisely coordinated functions exercised through a variety of structures established to resist the universal tendency to head towards the ultimate disorder of thermodynamic equilibrium – or become dust, as I elaborated upon in a recent column (Issue 147).

The Bloke

However, the most mysterious characteristic of certain beasts is the *consciousness* that somehow arises in the exquisitely regulated soupy scaffolding and scaffolded soup of living tissue. Which brings us to the third member of the Trinity: the Bloke. What's most striking about him is the extent to which he is aware of the environment from which the Beast forged itself, of the world beyond that environment, and of himself. If there is nothing in a self-constructed organism that accounts for even elementary sentience – and there isn't – there is less than nothing that explains the extraordinary consciousness of the Thing that is the Beast that is the Bloke.

The varieties of his consciousness and the extent to which they are unique to the species to which he belongs are topics suitable for a fat book. Indeed, he's written several of them. It is, however, worth reminding ourselves that he is blessed (or cursed) with many modes of sensory perception of his body and the world around it; with several types of memory (including habitual, factual, episodic, and autobiographical); and with different kinds of knowledge (including of facts, of concepts, of himself…). What's more, his consciousness is interwoven with that of a boundless constituency of other people – a community of minds to which he belongs as a paid-up member of a culture or cultures, as an inheritor of shared pasts, an anticipator of a multitude of collective futures, and a native of a landscape of technologies.

The Man in the Mirror

Most of this is hidden from the gaze of the Man in the Mirror. And there could be no better (and certainly no cheaper) way of closing in on this fact than by gazing at that gaze.

As I look at my gaze, I trace it to the eyes I can see in the image that appears to be looking out of the mirror at me. The eyes have Thing-like physical properties. If I examine them carefully, a spark of reflected light in the cornea – reflecting light just as do other material objects – reminds me that that in virtue of which I see myself is a material object. I watch the eyes moving, seemingly of their own accord, thus demonstrat-



Tallis in Wonderland

ing to me that they belong to an instinctively self-moving Beast. And then I see the eyes' gaze that tells me that these organs belong to a self-conscious being – in this case, a Bloke.

Not so fast. *See the gaze*? I do not literally, or in any other sense, *see the gaze*. At best, I infer it. For instance, I can't observe anything coming out of my reflected eyes, even less see that what's coming out of those eyes is the gaze in virtue of which the eyes, the head and body to which they belong are visible.

Should the Bloke be surprised at this? Perhaps not. Why should we expect that that which makes things visible should itself be visible? Nevertheless, when I am asked what I see in the mirror, I say that I see *myself*, the one who gazes, the one whose gaze makes me visible to myself. And so we start getting closer to the mystery of consciousness, most evident or perhaps only fully evident in human beings, in blokes who, in this respect at least, are more than beasts.

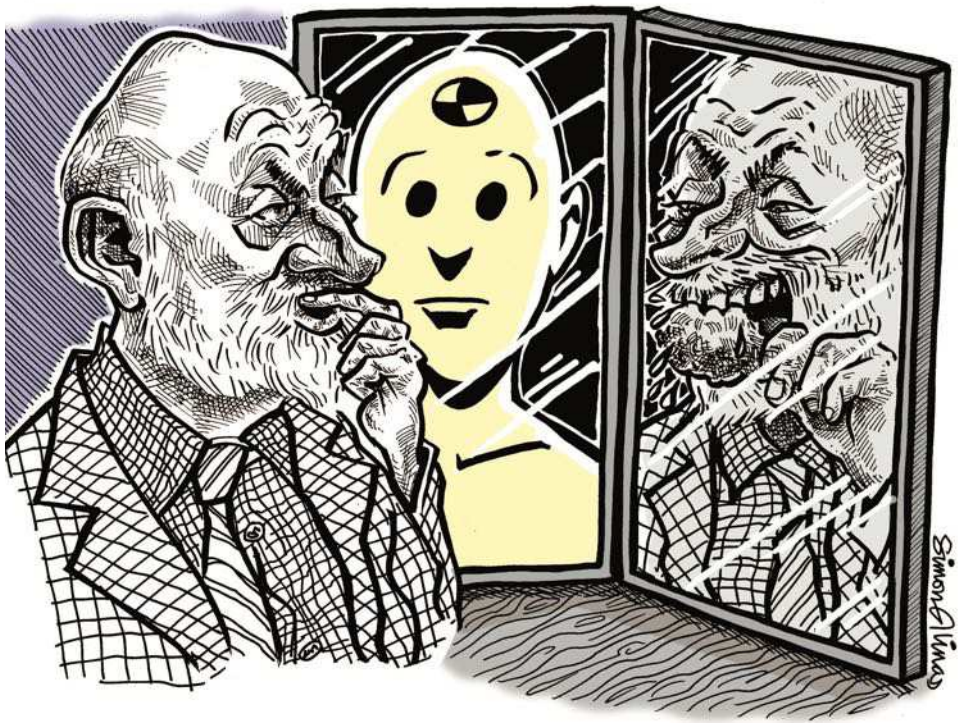


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So much for the Thing, the Beast, and the Bloke. Matter is universal; animate matter is rather localized and relatively recent; and self-conscious matter that identifies itself as 'this thing here' and 'that thing (in the mirror)' is very much a *parvenu* in the order of things. How are they related to, and how do they arise out of, one another?

Many philosophers respond to this problem with a lot of hand-waving, and the hand-waver's current favourite term is 'emergence'. Beasts, they say, *emerge* out of Things because the Things develop a certain complex structure which facilitates organic activity. And Blokes emerge from Beasthood when their complex structures include sufficiently complex nervous systems. It is, however, becoming increasingly obvious that 'emergence' doesn't reduce the puzzle of the origin of life, even less the puzzle of conscious intelligent life. Emergence looks more like a description than an explanation. If emergence *seems* to have explanatory power, it is because it sounds gradual, and gradual changes arising out of business-as-usual seem less surprising and to require less explanation than sudden discontinuities. But this is deceptive, if only because gradualness and suddenness are matters of judgement. The Unholy Trinity is even more challenging to emergence as explanation because the sequence 'Beasts emerge from Things and Blokes emerge from Beasts' presupposes that Things require no explanation other than the fact that they exist (existence is no small mystery itself, but that's for another day). But is it true that my being a Thing requires no explanation?

It is generally accepted that everything physical is made of atoms, and that the truth about atoms is revealed by quantum physics. This is a reasonable assumption given the unparalleled predictive power of quantum mechanics and its successful application in technologies that create the landscape of our daily lives. Courtesy of quantum theory, we have lasers, and thus optical fibre communications, and thus I can speak to a friend in Australia without raising my voice. Unfortunately, the properties of matter seen at the microphysical, quantum level are utterly different from the properties observed at the level of the Thing in the mirror seeing his own body. The entangled, uncertain, non-local, indeterministic, probabilistic nature of quantum particles makes ordinary bodies seem quite difficult to explain. In an early expression of the disjunction between the world of ordinary objects experienced in daily life and those same objects seen through the eyes of physics, the astrophysicist Arthur Eddington gave the example of a seemingly substantial table: "Sparsely scattered in that emptiness are numerous electric charges rushing about with great speed but their combined bulk amounts to less than a billionth of the bulk of the table itself" (*The Nature of the Physical World*, 1928). The same would apply to the body of the Bloke in the mirror, and the mirror he is using to catch sight of himself.

So, while nothing could be seemingly more straightforward than looking at oneself in the mirror, there could be no deeper mysteries than those deftly excavated by a gaze that unpeels the gazer as a material object, a living organism, and a person. And while the Thing might seem easier to explain than the Beast or the Bloke, this overlooks the apparent fact that the Bloke is implicated in the construction of the macroscopic Thing – in the transformation of the insubstantial buzz of quantum probabilities into an item that can block and reflect light, sense it, and translate it into a revelation of a solid object. This is before we address the mystery of the gaze, itself invisible, turning what is into that-it-is, inanimate stuff into a world faced by a conscious subject.

Confession time: I haven't actually been looking in the mirror while writing this. Rather, I have been reflecting on the idea of looking in the mirror. No equipment was needed for the Bloke to imagine looking at himself and seeing a Thing, a Beast, and a Bloke. Philosophy is even cheaper than I claimed at the outset.

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Raymond Tallis's latest book, Freedom: An Impossible Reality *was published recently, and reviewed in this issue's review section.*

Pylyp Orlyk (1672-1742)

Hilarius Bogbinder tells us about an innovative Ukrainian philosopher, democratic theorist and campaigner against tyranny.

Chances are that you have never heard of Pylyp Orlyk (1672-1742), or perhaps any other Ukrainian philosopher for that matter – Gregory Skovoroda (1722-1794), perhaps? Anyway, you should have; for Orlyk, a Cossack politician, was the first to establish a democratic standard for the separation of the executive, the legislative, and the judicial branches of government. If you're American, you may be familiar with James Madison's conclusion in *Federalist Paper 51* (1787), that "The structure of the Government must furnish the proper checks and balances between the different departments"; and if you're European you might have read Charles Montesquieu's famous dictum from *The Spirit of the Laws* (1748) that "When the legislative and executive powers are united in the same person, or in the same body of magistrates, there can be no liberty." These deep and insightful arguments made a lasting contribution to political and legal philosophy. But they were not original. They were first pioneered not in Paris or in Philadelphia, but in Poland by exiled thinker and politician Pylyp Stepanovych Orlyk. He did so in 1710, in a document which in Ukrainian is known as *Konstytutsiya Pylypa Orlyka* – simply, *Pylyp Orlyk's Constitution*. Its rather long and tongue-twisting actual title was *Pacta et Constitutiones Legum Libertatumque Exercitus Zaporoviensis*– roughly translated as *Agreements and Constitutions of the Laws and Liberties of the Army of Zaporovia*. As was usual for the time, the document was in Latin.

We know relatively little about Orlyk's life but what little we can find in the annals suggest that he was more than a mere politician. He began as a student of philosophy at the National University of Kyiv, Mohyla Academy. In one of the few biographical sketches written about him, 'General Characteristics of Pylyp Orlyk' (B. Krupnvtskyi, *Annals* 6, 1958), we learn that "Classical authors such as Herodotus, Strabo, Pliny, Virgil, etc., were very well known to him… His scholarly interests lay more or less in the realm of theology, history and politics. He was interested in legal problems as presented by contemporary authors. As a politician he derived his knowledge of world events from French, Italian and Dutch newspapers." After his studies he became an advisor to the so-called '*Hetman*', Ivan Mazepa. The Hetman ('chief') was the elected leader of the Cossacks.

Perhaps unknown to many, in addition to being excellent horsemen the Cossacks were a remarkably democratic and egalitarian lot. It is worth understanding a bit about them to fully appreciate Orlyk's thoughts. Their name comes from the old East Slavonic word *Kozak*, which means 'free men'. This was fitting. Originally, they had been a loose band of former serfs who roamed the plains, but they gradually developed remarkably democratic institutions. A study of them emphasized that "Don Cossacks constitute the only society in Russia that managed to build a democracy during the 16th and 17th centuries… All questions were debated and decided in the assembly called Club of the Don Army, where each Cossack had a place with a right to speak and to vote. All leaders were elected by the Club" (*The Fabulous Fate of the Don Cossacks*, Vladimir Kostov, 2011, p.265). So in the sixteenth century, while Russia was sinking into tyranny under Ivan the Terrible, the Cossacks were experimenting with democracy, pluralism, and egalitarianism in a way that at the time can only be compared with the Swiss Cantons and the Italian city states. Yet they were not able to fully decide their own affairs. In the Treaty of Pereyaslav (1654), the Ukrainians had pledged allegiance to the Muscovite Tsar (though apparently the original document got lost!). This agreement gave the Ukrainians relatively extensive autonomy while formally being under Russian suzerainty. It wasn't optimal, but the Ukrainians had little choice.

Their relatively peaceful relations with the Russians were to change. Orlyk was right at the centre of things when it happened.

Tsar Peter the Great (1672-1725) was unhappy with Mazepa as Hetman; and when Mazepa learned that the Tsar intended to remove him, he entered into an alliance with the Swedish King Charles XII. At this time Orlyk was Mazepa's aide-de-camp. He drafted his letters, and was instrumental in establishing an anti-Russian coalition. When his mentor died, Orlyk was elected as the new Hetman. However, soon after, the Russians subdued the Ukrainians, and Orlyk was forced to flee to Poland, where his *Constitution* was drafted. He then travelled onto Sweden. He later lived in Thessaloniki, then governed by the Ottoman Empire.

In exile, he devoted himself to philosophical pursuits and correspondence in Latin, French, Polish, and Ukrainian. All his letters were duly transcribed into his notebook, which is a treasure trove for historians. In these he chronicled, "the misbehaviour of his loutish servants, the local fare, his bag after a day's shooting in the plains, [and] stories told him by tailors, interpreters and bodyguards, Jesuits, consuls, doctors, spies and the Turkish judges and governors" (*Salonica: City of Ghosts*, *Mark Mazower*, 2005, p.107).

Although leader of his country, Orlyk never saw it again. He died in Moldova in 1742.

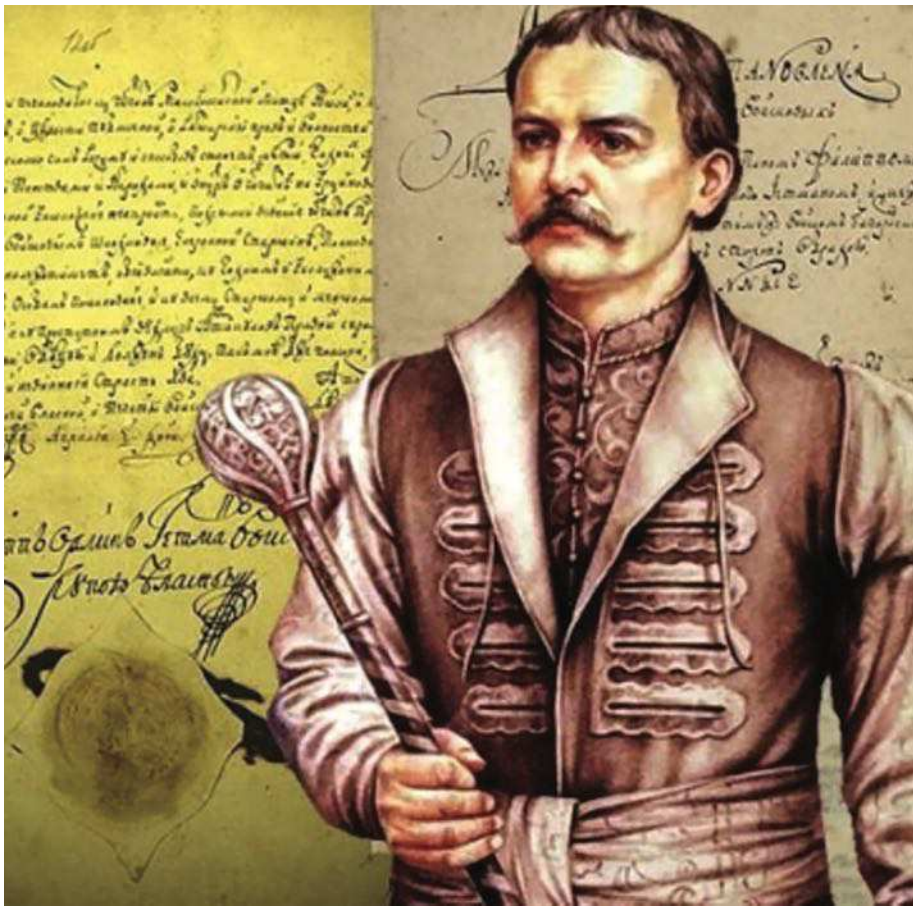
The Constitution of the *Constitution*

None of Orlyk's writings were as influential as *Konstytutsiya*. It's important to stress that his constitution is not a legal document, like, say, Magna Carta or the US Constitution, but rather, a short essay on opposition to tyranny and on the principles of a state under democratic governance.

So what exactly did Orlyk write in it, and why was it so important? Orlyk is at pains to point out that "the good of the Fatherland is always privately and publicly debated, both in time of war and in time of peace" and that it was bad for a country when auto-

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crats prevented the rulers' decisions from being discussed (Article 6). This point is explicitly directed against autocratic government, and by implication, against Moscow. In dictatorships, as he wrote, "the autocratic powers have legitimized such a right by their own authority." The remedy against this was to be democracy, with "distinguished, judicious and meritorious individuals elected to the general council" and a kind of Senate with members appointed by the elected Hetman. In the future, nothing should be decided "except by their authority without their will" (Article 6).

Countries with dictators are often characterised by corruption. Powerful individuals – maybe today we would call them *oligarchs* – would be likely to try to bribe the government. Orlyk, more than many other contemporary writers, was alert to this, and made provisions against it:

> "The Hetman must not be guided by any gifts and favors and must not appoint anyone to the rank of colonel or other military or civil office in return for a bribe, nor assign anyone arbitrarily to these positions. That both military and civil officers, especially colonels, must be elected by a free vote and after the election, be confirmed by the Hetman's authority."
>
> (Quoted in *From Autonomy to Independence: The Evolution of Ukrainian Political Thought*, Song Hong, 2019, p.64.)

This was only one of the ways in which Orlyk was ahead of his time. Many constitutions established written later contain provisions for impeachment – the removal from office of the President or leader. Such clauses were not part of the constitutional framework that John Locke drew up in his *Second Treatise of Government* (1689). Orlyk, however, was prescient enough to include it: "If anything is found in the actions of the Grand Hetman that is incompatible with the rights and freedoms of the Grand Hetman, or that is harmful to the State, then the Sergeant Major, the Colonels and the General Councillors shall be called to account by private votes or privately, if the necessity arises, to denounce him" (Art. 6). But Orlyk is equally clear that the Hetman should not resign before due process has been observed. Indeed, while being tried, "the Grand Hetman should not repent", but equally, neither should he "take revenge, but should, instead, try to rectify the deficiencies."

Constitutional Conclusions

Like all documents, Orlyk's *Constitution* was written in a particular context. Documents cannot easily be transplanted from their native soil into foreign lands, nor are they easily adaptable across time. Much as we may admire great political minds of the past, such as Plato (429-347 BCE), Aristotle (384-322 BCE), or even Thomas Hobbes (1588-1679), we do not enact their ideas in full. It's the same with Orlyk's constitution. Yet in many ways his *Konstytutsiya* transcended the parochial concerns of the early eighteenth century. Orlyk made it clear in his Introduction that the reason for writing it was prompted by the "the Moscow State, by its numerous guilty methods, which violated the rights and freedoms..." Maybe history repeats itself? Certainly, many of his compatriots in 2022 would agree with Orlyk's assessment that "the Moscow State, being able to fulfil its evil intentions… always wanted to annex our towns to her provinces" (Introduction). And in addition to making stipulations about rules and the conduct of the Prince, Orlyk's *Constitution* also makes political demands, some of which are eerily relevant today: "the lands under the rule of Moscow must be returned to the original territory" (Article 4). When Sweden returned the original copy of Orlyk's *Constitution* to Ukraine in June 2021, Ukraine's President Volodymyr Zelenskyy told its parliament that "a Constitution is the last chord in the symphony of state formation" (Speech at the Verkhovna Rada, 28th June 2021).

Since the war with Russia started in February 2022, and indeed before, the Ukrainians have stressed that they're a European country and a democracy under the rule of law. Reading Orlyk's *Constitution* of 1710, we realise that Ukraine is not just *part* of the family of constitutional democracies, they *founded* this tradition. Maybe this is another reason to say "Glory to Ukraine!"

Sláva Ukrayíni!

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Hilarius Bogbinder is a Danish-born writer and translator. He studied politics and theology at Oxford University and lives in London.

The Confession

Mike Mallory sits in on a future tribunal.

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Provide a full statement of events:

When it was first announced that health care and gene therapy had reached the point that humans could be made capable of immortality, I was, like everyone else, ecstatic. All I could think about was how lucky I was to be born at this exact time. It was like winning the lottery of all lotteries.

Then the restrictions started rolling in. I was not surprised when the International Immortality Commission determined that the planet could not support both reproducing and immortal humans. We *all* saw that coming. But then, when they declared that only the last surviving generation of any family was eligible – that having living children disqualified you from the program… Well, I had two children. I had touched immortality, and now it was being ripped from my hands! I was distraught. I could not think of anything but the unfairness of being denied when I was so close to the prize.

The regulations stated that if my children were to die of disease or accident before the list was finalized then my eligibility would be restored. At first I would simply imagine a calamity which took my children. I would be overcome with sorrow for them, but also elated in my own victory. As the weeks passed, my thoughts grew darker. Gradually I recognized that my desire for immortality was more powerful than my love for my children. This is not a realization any parent wants to have, and I am no exception. It drove me to a self-loathing which sickened me and could not be stilled with either drugs or alcohol. Yet I kept returning with vivid clarity to the certainty that my children and I were standing on the threshold of the greatest gift to humanity since creation put us under the wheel of time. I could see that they were no more entitled to this treasure than I was. Would they drift upon the waves of chance and wash up on the shores of eternity like so much flotsam: or would I break the chains of destiny and rise from the sea to walk upon those shores through my own will? Seen in that light, who is the most worthy?

The course of my life was in my hands. My wife would never accept what had to be done, so she would have to perish with the children. I wanted to be compassionate and limit the suffering, but their deaths would have to appear accidental. It took me almost a year of research before a plan was ready.

The closing of the list seemed imminent. It was time to act. An electrical fire at night without accelerant promised to be the cause of death least likely to raise questions.

I stumbled from the house covered in soot, with singed hair, howling to the two witnesses you've already heard from. My escape was early enough to avoid injury, and late enough to ensure that there was insufficient time to rescue the others. I'd learned that rather than from the fire itself, fire victims usu-

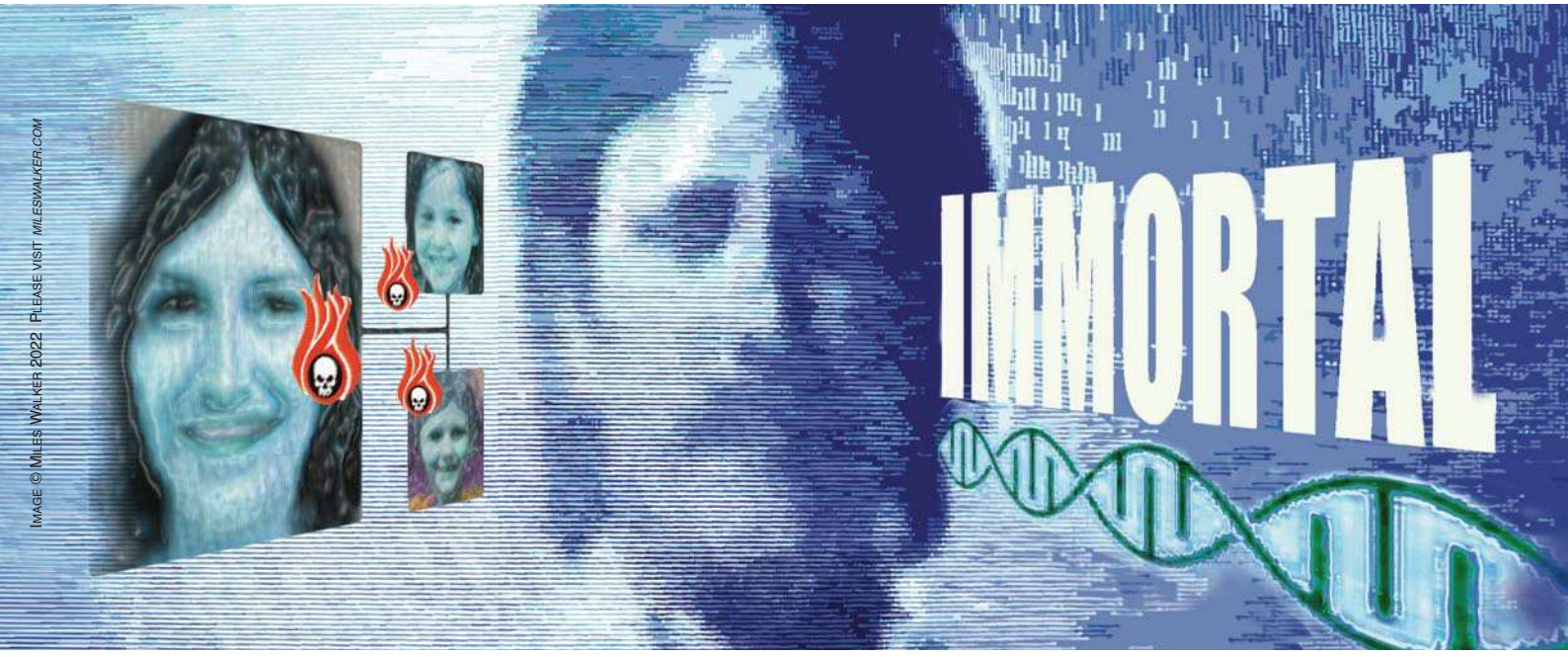


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ally die of smoke inhalation, often without ever regaining consciousness. I prayed that this was so, but stood outside the burning house forcing myself to listen for screams or cries from those inside. Thankfully, I did not hear any, only the turbulence of the fire.

Explain how you have benefited from or been burdened by the crime:

The benefit was my eligibility at the time the list was closed.

The burden? Soon after the fire I became depressed with guilt over what I had done. At first I could not accept that I had actually acted out my fantasy. There was a coating of shame and remorse which clung to every aspect of my life. I daily concluded that my actions had not been worth it, and that instead of eternal happiness I had crafted my own designer hell to which I was forever consigned. Many times I thought of taking my own life to pay for what I had done to my family.

However, as the distance from the incident grew, first in years, then in decades, the horror of what I had done started to lose its disemboweling edge, then began to fade. Whether it was my acceptance of what I had done or simply the insulation of the time, the entire incident began to change slowly from one of immobilizing self-loathing to a mere historical fact of my life. I vividly recall the day thirty-two years after the list was sealed when I laughed out-loud for the first time since the fire. The sound of my own happiness and pleasure affirmed to me that I would survive my guilt, that my self-inflicted trauma would heal over.

Of course, even after many decades stood between me and the fire there was always a concern that my crime might come to light and I would be served a never-ending life-sentence. So, on the Centennial of the closing of the list, when the Immortality Commission agreed to grant amnesty for any act committed before the list was closed upon a full public confession, I recognized the new policy as the withering of my last concern. I knew that there would be some unfavorable reaction by other citizens, but just as my own self-revulsion waned, the judgements of my fellow immortals would also have their limits. Therefore I want to thank the Committee.

Compliance Determination: The Committee rejects the confession. The victims are not identified, and the description of culpability is ambiguous.

Supplementary Statement: I did it. I, John Creston, set the fire. The names of those who died in the fire are Joan Creston, James (Jimmy) Creston, and Sheila Creston.

Action: Confession Approved. Amnesty Granted.

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Mike Mallory majored in Philosophy at the University of Washington and then went into law. He is now retired and collects wisdom.

Philosophical Haiku



Simone Weil
(1909–1943)

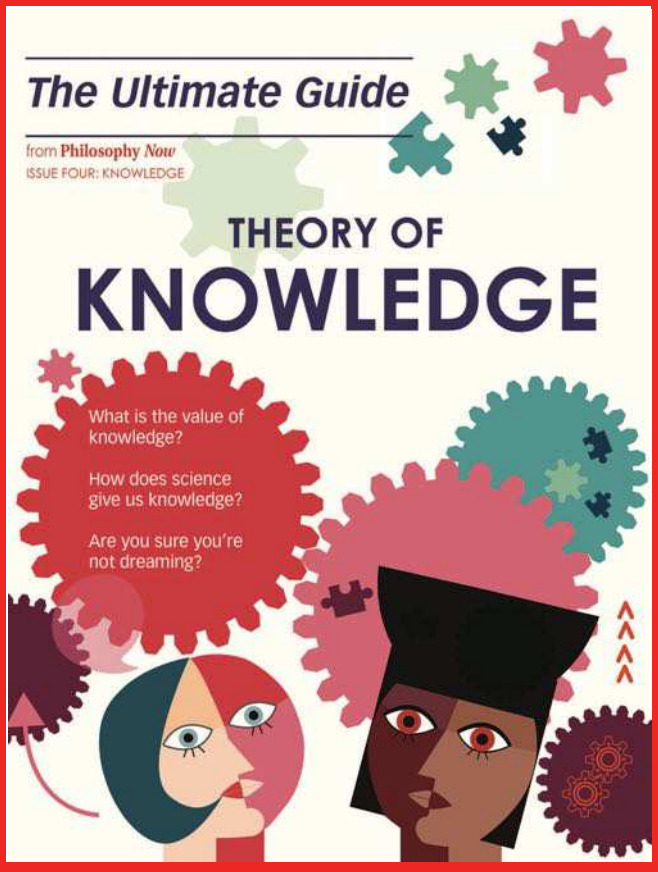
Strip away the Self
Discover the Eternal
Truth, Beauty, the Good

Simone Weil was born in Paris into a secular Jewish family. She died in Kent a Christian Platonist. She was, for André Gide, the 'patron saint of outsiders'; for Leon Trotsky, the 'melancholy revolutionary'; and for Albert Camus, the '*only* great spirit of our time'. She was a Marxist manqué and a mystic *de malheur* (affliction). After beating Simone de Beauvoir to first place in their university examination, Weil became a teacher, a lecturer, a factory worker, and, briefly, a revolutionary. Deeply troubled by the world's troubles, she sought solace and answers in both practical and theologico-philosophical ways – in fact, for Weil, the distinction did not exist: "Philosophy," she wrote, "is *exclusively* an affair of action and practice."

Seeking an immovable foundation for a morality of compassion, she found it in the mutual acknowledgement each of us, by an instinct of understanding and recognition, gives every person we encounter. This, she believed, reflected the universal, eternal and immutable image of God we all carry in us – that part of us that is not particular to any but is shared by all. This is why renunciation of the Self – the particular – is necessary to attain to an ethics that acknowledges the equal worth of every individual. Yet too often we find ourselves in Plato's (allegorical) cave, mistaking shadows for reality, knowing neither the Good for ourselves nor the Good for others, enslaved in a society founded on a love of money and of the illusory modern state. Here there is no bread for the human soul, so it withers and dies. Since she feared Plato's 'Great Beast' – the unthinking, irrational mob – Weil opposed all ideologies and the fatal human tendency to reify abstractions such as the Nation, the State, the People. But she also understood the need to belong. True to her word, she lived out her philosophy of renunciation: she renounced her Jewish heritage, relationships (they hinder the quest for knowledge), and the Self (renunciation of which is the only way to God, others, and the eternal verities). She renounced the world she found herself living in, and, perhaps, she renounced life itself. In 1943, in sympathy with the suffering of occupied France, she barely ate, all the while feverishly writing in her journal, until she fell ill and died. Her final act of renunciation was the complete erasure of herself, as if she had never been: her grave was unmarked.

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Terence Green is a writer, historian, and lecturer who lives in Eastbourne, New Zealand.

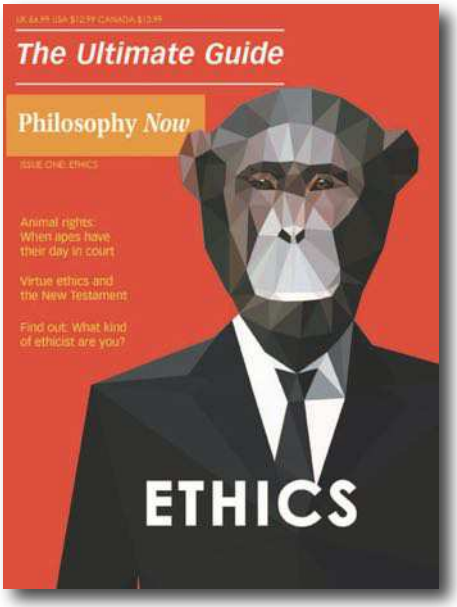


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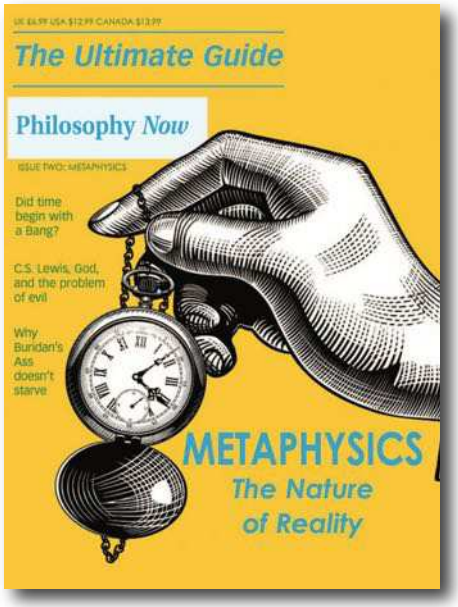
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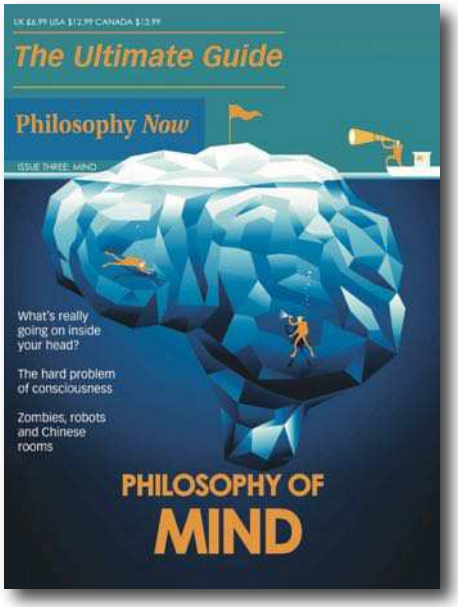
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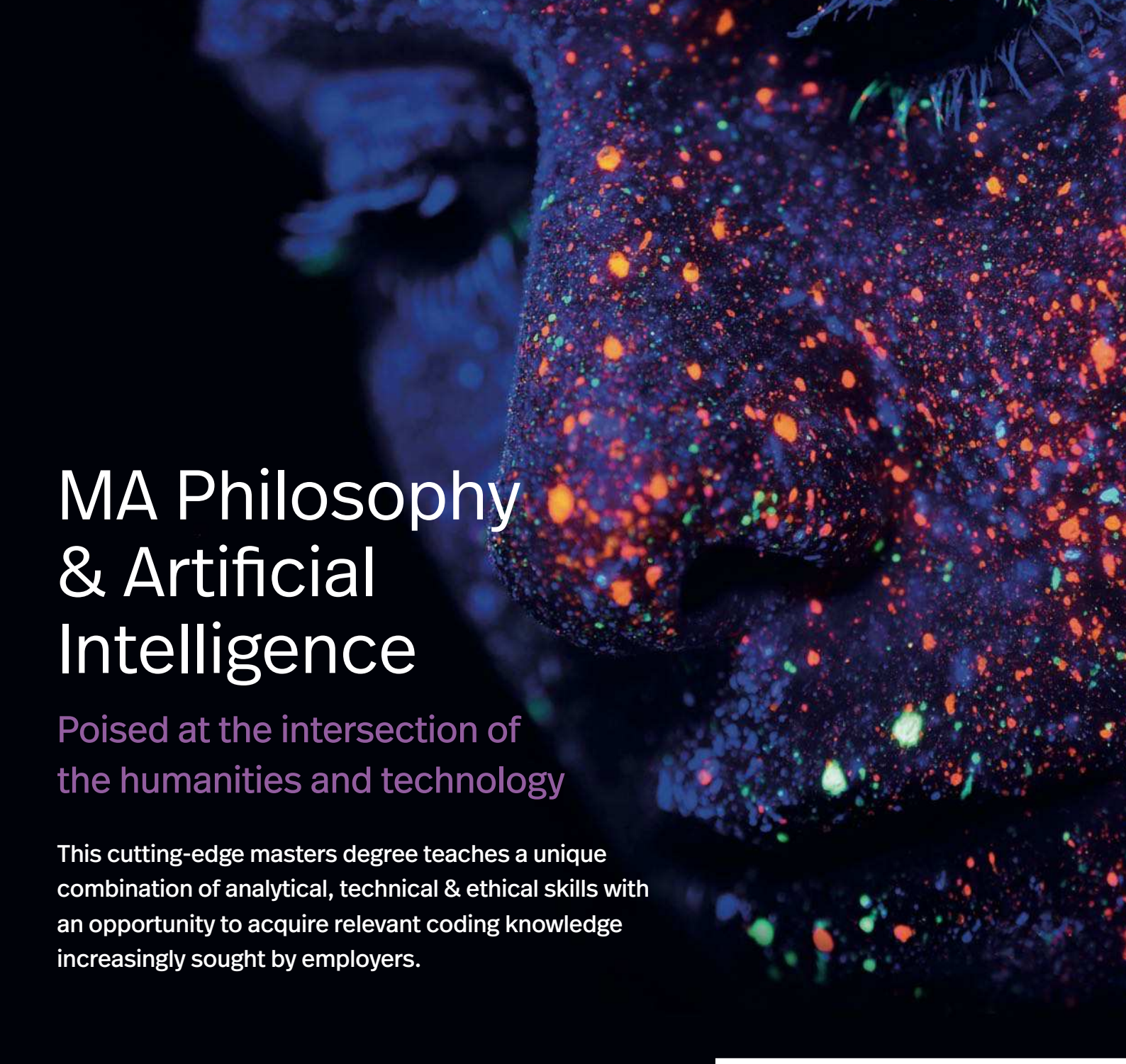


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